

Criminal Law 1 Finals Reviewer

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TRISHA'S CASE NOTES

SUPER DIGEST
COMPILED SAMPLEX

I. BASIC CONCEPTS AND PRINCIPLES

A. Concept of Penal Law

Criminal Law

- The branch or division of law which defines crimes, treats of their nature, and provides for their punishment

RPC, ARTICLE 3. *Definitions.* — Acts and omissions punishable by law are felonies (*delitos*).
Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).
There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

RPC, ARTICLE 4. *Criminal liability.* — Criminal liability shall be incurred:
1. By any person committing a felony (*delito*) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

Definitions

- **Crime**
  - A generic term that embraces any violation of the RPC, special penal laws, and municipal or city ordinances.
- **Felony**
  - An act or omission violative of the RPC, whether intentionally or negligently
- **Offense**
  - An act or omission violative of a special law
- **Misdemeanor**
  - Minor infraction of law

Elements of Felonies

1. Must be an act or omission
   a. Act - refers to any bodily movement that produces some effect in the external world
   b. Omission - refers to the failure to perform a positive duty which one is bound to perform
2. Must be punishable by the RPC
3. Must be performed or incurred by means of dolo or culpa

Types of Felonies

1. By means of dolo or with malice
   a. Intent to do an injury to the person, property, or rights of another
   b. Requisites
      i. Freedom
      ii. Intelligence
      iii. Intent
2. By means of culpa or fault
   a. Performed without malice
      i. Imprudence - indicates a deficiency of action; or lack of skill
      ii. Negligence - Indicates a deficiency of perception; or lack of foresight

Kinds of Felonies

1. Mala in se (wrongful from its nature)
   a. So serious in their effects on society as to call for almost unanimous condemnation
2. Mala prohibita (wrong merely because of prohibition by statute)
   a. Violations of mere rules created to secure a more orderly regulation of society

B. State Authority to Punish Crime

ARTICLE II, 1987 Constitution
Section 4. The prime duty of the Government is to serve and protect the people. The Government may call upon the people to defend the State, and in the fulfillment thereof, all citizens may be required, under conditions provided by law, to render personal military or civil service.

ARTICLE II, 1987 Constitution
Section 5. The maintenance of peace and order, the protection of life, liberty, and property, and the promotion of the general welfare are essential for the enjoyment by all the people of the blessings of democracy.

ARTICLE VI, 1987 Constitution
Section 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

***cf* ARTICLE VIII**
Section 5(5). The Supreme Court shall have the following powers:
(5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the Integrated Bar, and legal assistance to the underprivileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

Power to define and punish crime

- The State has the authority, under its police power, to define and punish crimes and to lay down the rules of criminal procedure. States, as a part of their police power, have a large measure of discretion in creating and denning criminal offenses (*People vs. Santiago, 43 Phil. 120, 124*)
- The right of prosecution and punishment for a crime is one of the attributes that by a natural law belongs to the sovereign power instinctively charged by the common will of the members of society to look after, guard and defend the interests of the community, the individual and social rights and the liberties of every citizen and the guaranty of the exercise of his rights (*U.S. vs. Pablo, 35 Phil. 94, 100*).

Sources of Philippine Criminal Law

- RPC
- Special Penal Laws
- Penal Presidential decrees issued during the martial law

b. Constitutional Limitations on Punishment

Limitation on Punishment		**ARTICLE III, 1987 Constitution**
1	Due Process, Equal Protection	**Section 1.** No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of laws. **Section 14(1).** No person shall be held to answer for a criminal offense without due process of law. **(2).** In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused: Provided, that he has been duly notified and his failure to appear is unjustifiable.
2	Political Belief, Involuntary Servitude	**Section 18(1).** No person shall be detained solely by reason of his political beliefs and aspirations. **(2).** No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted.
3	Excessive Fines and Cruel, Degrading, and Inhuman Punishment, Torture and Substandard or Inadequate Penal Facilities	**Section 19(1).** Excessive fines shall not be imposed, nor cruel, degrading or inhuman punishment inflicted. Neither shall death penalty be imposed, unless, for compelling reasons involving heinous crimes, the Congress hereafter provides for it. Any death penalty already imposed shall be reduced to *reclusion perpetua*. **(2).** The employment of physical, psychological, or degrading punishment against any prisoner or detainee or the use of substandard or inadequate penal facilities under subhuman conditions shall be dealt with by law. *cf* **a. RA 9745 (Torture)** ● AN ACT PENALIZING TORTURE AND OTHER CRUEL, INHUMAN AND DEGRADING TREATMENT OR PUNISHMENT AND PRESCRIBING PENALTIES THEREFOR **b. RA 7659 (Death Penalty)** ● AN ACT TO IMPOSE THE DEATH PENALTY ON CERTAIN HEINOUS CRIMES, AMENDING FOR THAT PURPOSE THE REVISED PENAL LAWS, AS AMENDED, OTHER SPECIAL PENAL LAWS, AND FOR OTHER PURPOSES **c. RA 9346 (Non-Imposition of Death Penalty)** ● AN ACT PROHIBITING THE IMPOSITION OF DEATH PENALTY IN THE PHILIPPINES
4	Imprisonment for Debt or Non-Payment of Poll Tax	**Section 20.** No person shall be imprisoned for debt or non-payment of a poll tax.
5	Double Jeopardy and Ex Post Facto Legislation	**Section 21.** No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction or acquittal under either shall constitute a bar to another prosecution for the same act. **Section 22.** No ex post facto law or bill of attainder shall be enacted.

i. Judicial Perspective on the Bill of Rights

Limitations on the power of the lawmaking body to enact penal legislation

- No ex post facto law or bill of attainder shall be enacted (Art. III, Sec. 22, 1987 CONST)
    - Prohibits the passage of retroactive laws which are prejudicial to the accused.
    - An ex post facto law is one which (*Mejia v. Pamaran*)
        - Makes criminal an act done before the passage of the law and which was innocent when done, and punishes such an act
        - Aggravates a crime, or makes it greater than it was, when committed
        - Changes the punishment and inflicts a greater punishment than the law

annexed to the crime when it was committed
        - Alters the legal rules of evidence, and authorizes conviction upon less or different testimony that the law required at the time of the commission of the offense
        - Assumes to regulate civil rights and remedies only, in effect imposes penalty or deprivation of a right for something which when done was lawful
        - Deprives a person accused of a crime some lawful protection to which he has become entitled, such as the protection of a former conviction or acquittal, or a proclamation of amnesty
    - A bill of attainder is a legislative act which inflicts punishment without trial
- No person shall be held to answer for a criminal offense without due process of law (Art. III, Sec 14[1], 1987 CONST).

Constitutional Rights of the Accused (Art. III, 1987 CONST)

1. Right to a speedy disposition of their cases before all judicial, quasi-judicial or administrative bodies (Sec. 16).
2. Due process of law (Sec 14[1])
3. The right to bail (Sec. 13)
    a. Shall not be impaired even when the privilege of the writ of habeas corpus is suspended
    b. Exception: Those charged with offenses punishable by reclusion perpetua when evidence of guilt is strong
4. The accused shall be presumed innocent until the contrary is proved (Sec. 14[2])
5. No person shall be compelled to be a witness against himself (Sec. 17).
    a. Right to remain silent and to have competent and independent counsel
        i. If cannot afford it, must be provided with one (Sec 12[1])
    b. No torture, threat, force, or any other means which vitiate the free will shall be used against him. Secret detentions and its other forms are prohibited (Sec 12[2])
    c. Any confession or admission obtained in violation of this or Section 17 hereof shall be inadmissible in evidence against him (Sec 12[3])
6. Excessive fines, cruel, degrading or inhuman punishment shall not be imposed (Sec 19[1])
7. No person shall be twice put in jeopardy of punishment for the same offense. Acquittal or conviction shall constitute a bar to another prosecution of the same act (Sec. 21)
8. Free access to the courts and quasi-judicial and adequate legal assistance shall not be denied to any person by reason of poverty (Sec. 11)

ii. Civil Code Provisions

NCC, ARTICLE 2. Laws shall take effect after fifteen days following the completion of their publication either in the Official Gazette, or in a newspaper of general circulation in the Philippines, unless it is otherwise provided. (*As amended be E.O. No. 200*)

NCC, ARTICLE 4. Laws shall have no retroactive effect, unless the contrary is provided.

C. Basic Principles

i. Legality

General Rule: Criminal liability and punishment should be based only upon a prior enactment of a prohibition that is expressed with adequate precision and clarity.

- No act or omission shall be pronounced criminal when it is not clearly made so by a statute.

RPC, ARTICLE 3. *Definitions.* — Acs and omissions punishable by law are felonies (*delitos*).
Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).
There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

Felonies, defined

- Felonies are acts and omissions punishable by the RPC
- The elements of felonies in general
    - Must be an act or omission
        - The action must be an external one
            - Criminal thought or a mere intention, however improper, will never constitute a felony
    - Must be punishable by the RPC
    - Incurred by means of dolo or culpa

"Punishable by law"

- *Nullum crimen, nulla poena sine lege* → there is no crime when there is no law punishing it
- The phrase "punishable by law" should be understood as "*punished by the RPC*"
    - The term felony, as meaning punishable by the RPC, shall be distinguished from "crimes" and "offense"

A penal law has two elements, (1) Prohibition, and (2) Penalty.

- No reinforcement of prohibition if there is no penalty

RPC, ARTICLE 21. *Penalties that may be imposed.* — No felony shall be punishable by any penalty not prescribed by law prior to its commission.

Policy of the State as regards punishing crimes

- The government is prohibited from punishing any person for any felony with any penalty which has not been prescribed by the law.
- The provision may then be invoked when a person is being tried for an act or omission for which no penalty has been prescribed by law
- Guarantees the citizen that no act of his shall be considered criminal until the Government has made it so by law and has provided a penalty

Reason for the provision

- A law cannot be rationally obeyed unless it is first shown
- A man cannot be expected to obey when there is not yet an order

The legality principle tells us that we have to look at the source of the law

ii. Generality

General Rule: Criminal law is binding on all persons who live or sojourn in the Philippines.

NCC, ARTICLE 14. Penal laws and those of public security and safety shall be obligatory upon all who live or sojourn in the Philippine territory, subject to the principles of public international law and to treaty stipulations.

Exceptions to the general rule

1. Treaties
    - Example: Under the RP-US VFA, the Philippines agreed that US shall have the right to exercise within the Philippines all criminal and disciplinary jurisdiction conferred on them by the military law of the US over US personnel in the Philippines
    - Under the VFA, citizenship is immaterial, what matters is one's membership in the US Armed Forces
2. Laws of Preferential Application (Article 2, RPC)
    - See Art. 2, RP discussion under Territoriality
3. Principles of Public International Law
    - The following persons are exempted
        - Sovereigns and other heads of state
        - Ambassadors
        - Ministers plenipotentiary
        - Ministers resident
        - Charges d'affaires
    - Diplomatic representatives, such as ambassadors of public ministers and their official retinue, possess immunity from the criminal jurisdiction of the country of their sojourn and cannot be sued, arrested, or punished by the law of that country (*II Hyde, International Law*)
    - Consuls, vice-consuls and other commercial representatives of foreign nations cannot claim the privileges and immunities accorded to ambassadors and ministers

iii. Territoriality

General Rule: Penal laws of the Philippines have force and effect only within its territory.

Territoriality **:** Where **::** Territory **:** What

Article I, 1987 Constitution. The national territory comprises the Philippine archipelago, with all the islands and waters embraced therein, and all other territories over which the Philippines has sovereignty or jurisdiction, consisting of its terrestrial, fluvial and aerial domains, including its territorial sea, the seabed, the subsoil, the insular shelves, and other submarine areas. The waters around, between, and connecting the islands of the archipelago, regardless of their breadth and dimensions, form part of the internal waters of the Philippines.

Exceptions

- The RPC shall not be enforced within or outside the Philippine territories if so provided under
    - Treaties
    - Laws of Preferential Application
- Extraterritoriality is the application of the RPC outside Philippine territory

RPC, ARTICLE 2. *Application of its provisions.* — Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine Archipelago, including its atmosphere, its interior waters and maritime zone, but also outside of its jurisdiction, against those who:

1. Should commit an offense while on a Philippine ship or airship
2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;
3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the presiding number;
4. While being public officers or employees, should commit an offense in the exercise of their functions; or

5. Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code.

Should commit an offense while on a Philippine ship or airship

- The Philippine vessel is considered part of the national territory
  - The ship or airship must not be within the territorial jurisdiction of another country, it must be in international waters
    - If in the territory of another country, then the crime is under the jurisdiction of that country
  - The ship or airship must be registered in the Philippines under Philippine law
    - Has to be registered under Philippine laws even if owned by a foreigner
    - A vessel not registered or unlicensed → provision does not apply
    - Owned by a filipino, not registered under PH law → provision does not apply
- Thus, any person who committed a crime on such can be tried before Philippine courts

Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands

- Forgery is committed by giving to a treasury or bank note or any instrument payable to bearer or to order the appearance of a true genuine document or by erasing, substituting, counterfeiting or altering, by any means, the figures, letters, words or signs contained therein
- Refers only to Philippine coin, currency note, or obligations and securities

Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the preceding number

- Those who introduced and counterfeited items are criminally liable
- The introduction of forged or counterfeited obligations and securities into the Philippines is as dangerous as the forging or counterfeiting of the same, to the economical interest of the country.

While being public officers or employees, should commit an offense in the exercise of their functions

- Example felonies
  - Direct bribery (Art 210) and Indirect bribery (Art 211)
  - Frauds against the public treasury (Art 213)
  - Possession of prohibited interest (Art 216)
  - Malversation of public funds or property (Art 217)
  - Failure of accountable officer to render accounts (Art 218)
  - Illegal use of public funds or property (Art 220)
  - Failure to make delivery of public funds or property (Art 221)
  - Falsification by a public officer or employee committed with abuse of his official position (Art 171)
- A crime committed within the grounds of a Philippine embassy in foreign soil shall be subject to Philippine penal law, although it may or may not have been committed by a public officer in relation to his official duties
- Embassy grounds are considered as extensions of the sovereignty of the country occupying them

Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code

- Example felonies
  - Treason (Art 114)
  - Conspiracy and proposal to commit treason (Art 115)
  - Espionage (Art 117)
  - Inciting to war and giving motives for reprisals (Art 118)
  - VIolation of neutrality (Art 119)
  - Correspondence with hostile country (Art 120)
  - Flight to enemy's country (Art 121)
  - Piracy and mutiny on the high seas (Art 122)

Crimes committed on board a foreign merchant ship in international waters

- Not triable by Philippine Courts, as it is the extension of territory of the country in which it is registered

Continuing offense on board a foreign vessel

- A continuing crime that is committed on a vessel sailing to the Philippines is triable in the Philippines
  - Only when the forbidden conditions existed during the time the ship was within territorial waters, regardless of the fact that the same conditions existed when the ship sailed from the foreign port and while on the high seas (*US vs. Bull, 15 Phil. 7*)

Rules as to jurisdiction over crimes committed aboard foreign merchant vessels

French Rule (Flag or Nationality)	English Rule (Territoriality or Situs of the Crime)
General Rule	
Crimes committed aboard a vessel within the territorial waters of a country are not triable in the courts of the said country.	Crimes committed aboard a vessel within the territorial waters of a country are triable in the courts of such country.
Exception	
When their commission affects the peace and security of the territory or when the safety of the State is endangered.	When the crimes merely affect things within the vessel or when they only refer to the internal management thereof.

iv. Prospectivity

General Rule: Penal laws cannot make an act punishable in a manner in which it was not punishable when it was committed.

Art 366 of the RPC states that crimes are punished under the laws in force at the time of their commission.

Exception: It may be applied retroactively when the new law is more lenient or favorable to the accused.

- But this exception cannot be applied:
  - Where the new law is expressly made inapplicable to pending actions or existing causes of action
  - Where the offender is a habitual criminal (Art. 22, RPC)

Effects of Repeal of Penal Law

- If the repeal makes the penalty lighter in the new law, the new law shall be applied
  - Except when the new law is made inapplicable to pending actions or existing causes of action
- If the new law imposes a heavier penalty, the law in force at the time of the commission of the offense shall be applied
- If the new law totally repeals the existing law so that the act which was penalized under the old law is no longer punishable, the crime is obliterated

RPC, ARTICLE 21. *Penalties that may be imposed*. — No felony shall be punishable by any penalty not prescribed by law prior to its commission.

RPC, ARTICLE 22. *Retroactive effect of penal laws.* — Penal Laws shall have a retroactive effect insofar as they favor the persons guilty of a felony, who is not a habitual criminal, as this term is defined in Rule 5 of Article 62 of this Code, although at the time of the publication of such laws a final sentence has been pronounced and the convict is serving the same.

Article 22 is not applicable to the provisions of the RPC

- Its application to the RPC can only be invoked where some former or subsequent law is under consideration
- It must relate
  - To penal laws existing prior to the RPC, in which the penalty was less severe than those of the Code
  - To laws enacted subsequent to the RPC, in which the penalty is more favorable to the accused

General rule is to give criminal laws prospective effect

- Exception — to give them retroactive effect when favorable to the accused
- Inasmuch as the amendatory law is favorable to the accused, the same may be retroactively applied.

The exception applies to a law dealing with prescription of time

- Art. 22 applies to a law dealing with the prescription of an offense which is intimately connected with that of the penalty, for the length of time for prescription depends upon the gravity of the offense

Giving a law retroactive effect, if unfavorable to accused, will violate the constitutional inhibition as to ex post fact laws

- An ex post facto law is one which (*Mejia v. Pamaran*)
  - Makes criminal an act done before the passage of the law and which was innocent when done, and punishes such an act
  - Aggravates a crime, or makes it greater than it was, when committed
  - Changes the punishment and inflicts a greater punishment than the law annexed to the crime when it was committed
  - Alters the legal rules of evidence, and authorizes conviction upon less or different testimony that the law required at the time of the commission of the offense
  - Assumes to regulate civil rights and remedies only, in effect imposes penalty or deprivation of a right for something which when done was lawful
  - Deprives a person accused of a crime some lawful protection to which he has become entitled, such as the protection of a former conviction or acquittal, or a proclamation of amnesty

Who is a habitual criminal

- A person who, within ten years from the date of his release or last conviction of the crimes of serious or less serious physical injuries, robbery, theft, estafa, or falsification, is found guilty of any said crimes a third time or oftener (*Rule 5, Art. 62*)

Not applicable to civil liability

- The rights of offended persons or innocent third parties are not within the gift of arbitrary disposal of the State

v. Interpretation and Construction of Penal Statutes

ARTICLE III, 1987 Constitution
Section 14(2). In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused: Provided, that he has been duly notified and his failure to appear is unjustifiable.

The Constitution provides the accused the right to be presumed innocent until proven guilty.

- ***In dubio pro reo***

II. PERSONS RESPONSIBLE AND CONDUCT PUNISHED

A. Felonies and Crimes

a. Nature, Concept, Definition and Elements

RPC, ARTICLE 3. *Definitions.* — Acts and omissions punishable by law are felonies (*delitos*).
Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).
There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

b. Culpa and Dolo

RPC, ARTICLE 3. *Definitions.* — Acts and omissions punishable by law are felonies (*delitos*).
Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).
There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

RPC, ARTICLE 365. *Imprudence and negligence.* — Any person who, by reckless imprudence, shall commit any act which, had it been intentional, would constitute a grave felony, shall suffer the penalty of arresto mayor in its maximum period to prision correccional in its minimum period; if it would have constituted a less grave felony, the penalty of arresto mayor in its minimum and medium periods shall be imposed.

Any person who, by simple imprudence or negligence, shall commit an act which would otherwise constitute a grave felony, shall suffer the penalty of arresto mayor in its medium and maximum periods; if it would have constituted a less serious felony, the penalty of arresto mayor in its minimum period shall be imposed.

When the execution of the act covered by this article shall have only resulted in damage to the property of another, the offender shall be punished by a fine ranging from an amount equal to the value of said damages to three times such value, but which shall in no case be less than 25 pesos.

A fine not exceeding 200 pesos and censure shall be imposed upon any person who, by simple imprudence or negligence, shall cause some wrong which, if done maliciously, would have constituted a light felony.

In the imposition of these penalties, the courts shall exercise their sound discretion, without regard to the rules prescribed in article 62.

The provisions contained in this article shall not be applicable:
1. When the penalty provided for the offense is equal to or lower than those provided in the first two paragraphs of this article, in which case the courts shall impose the penalty next lower in degree than that which should be imposed, in the period which they may deem proper to apply.
2. When, by imprudence or negligence and with violation of the Automobile Law, the death of a person shall be caused, in which case the defendant shall be punished by prision correccional in its medium and maximum periods.

Reckless imprudence consists in voluntarily, but without malice, doing or failing to do an act from which material damage results by reason of inexcusable lack of precaution on the part of the person performing or failing to perform such act, taking into consideration his employment or occupation, degree of intelligence, physical condition and other circumstances regarding persons, time and place.

Simple imprudence consists in the lack of precaution displayed in those cases in which the damage impending to be caused is not immediate nor the danger clearly manifest.

Classification of Felonies According to the Means by Which They are Committed

1. **Intentional felonies**
   - Act or omission committed is malicious / with deliberate intent, which must necessarily be voluntary
   - The offender has the intention to cause an injury to a person, property, or right of another
     - If the act or omission is punished by the RPC, he is liable for intentional felony
2. **Culpable felonies**
   - Injury caused by the offender to another person is unintentional, it being simply the incident of another act performed without malice, but at the same time punishable by the RPC, though in a lesser degree and with an equal result
     - The wrongful act results from:
       - Imprudence – deficiency of action; if a person fails to take the necessary precaution to avoid injury to person or damage to property
       - Negligence – deficiency of perception
       - Lack of foresight
       - Lack of skill
     - The act or omission must also be voluntary

- A person who caused an injury, without intention to cause an evil, may be held liable for a culpable felony

The Act or Omission in Felonies Must Be Voluntary
A criminal act is presumed to be voluntary. Fact prevails over assumption, and in absence of indubitable explanation, the act must be declared voluntary and punishable.

In felonies by *dolo*, the act is performed with deliberate intent which must necessarily be voluntary; and in felonies by *culpa*, the imprudence consists in voluntarily, but without malice, doing or failing to do an act from which material injury results

Requisites of *dolo* or malice
1. He must have **freedom** while doing an act or omitting to do an act
2. He must have **intelligence** while doing the act or omitting to do the act
3. He must have **intent** while doing the act or omitting to do the act

Intent
- Presupposes the exercise of freedom and the use of intelligence
    - One who acts without freedom necessarily has no intent to do an injury to another. One who acts without intelligence has no such intent.
    - But a person who acts with freedom and with intelligence may not have the intent to do an injury to another. Thus, a person who has caused an injury by mere accident had freedom and intelligence, but since he had no fault or intention of causing it, he is not criminally liable. (Article 12(4), RPC).
- Is shown by the overt acts of a person

Criminal Intent is Necessary in Felonies Committed by Means of *dolo*
Due to the legal maxims:
1. *Actus non facit reum nisi mens sit rea* – "the act itself does not make a man guilty unless his intention were so."
2. *Actus me invito factus non est meus actus* – "an act done by me against my will is not my act."

There is No Felony by *dolo* if There is No Intent
The presumption of criminal intent from the commission of an unlawful act may be rebutted by proof of lack of such intent.

Distinction Between General Intent and Specific Intent
In felonies committed by *dolo*, the third element of voluntariness is a general intent; whereas in some particular felonies, proof of particular specific intent is required.

Examples
- In certain crimes against property, there must be the intent to gain (Article 293 – Robbery; Article 308 – Theft)
- In frustrated or attempted homicide (Article in relation to Article 249), intent to kill is essential
- In forcible abduction (Article 342), the specific intent of lewd designs must be proved

When the Accused is Charged with Intentional Felony, Absence of Criminal Intent is a Defense
There is no liability for intentional felony. All reasonable doubt intended to demonstrate error and not crime should be indulged in for the benefit of the accused.

If there is only error on the part of the person doing the act, he does not act with malice, and for that reason he is not criminally liable for intentional felony.

***Dolo* is Not Required in Crimes Punished by Special Laws**
General Rule: When the crime is punished by a special law, intent to commit the crime is not necessary.
- It is sufficient that the offender has the intent to perpetrate the act prohibited by the special law.

Criminal Intent is Replaced by Negligence and Imprudence in Felonies Committed by Means of *culpa*
In felonies committed by means of *culpa*, the mind of the accused is not criminal. However, his act is wrongful, because the injury or damage caused to the injured party results from the imprudence, negligence, lack of foresight, or lack of skill of the accused.

Therefore, in order that the act or omission in felonies committed by means of fault or *culpa* may be considered voluntary, the following requisites must concur:
1. He must have **freedom** while doing an act or omitting to do an act
2. He must have **intelligence** while doing an act or omitting to do an act
3. He is **imprudent, negligent,** or **lacks foresight** or **skill** while doing the act or omitting to do the act

Intent to Commit A Crime vs. Intent to Perpetrate the Act
- A person may not have consciously intended to commit a crime, but he did intend to commit an act, and that act is, by the very nature of things, the crime itself
- **Intent to commit a crime** – there must be criminal intent
- **Intent to perpetrate the act** – it is enough that the prohibited act is done freely and consciously

A Person Causing Damage or Injury to Another, Without Malice or Fault, is Not Criminally Liable Under the RPC
In such a case, he is exempt from criminal liability because he causes an injury by mere accident, without fault or intention of causing it. (Article 12(4), RPC).

Intent vs. Motive
- **Motive** is the moving power which impels one to action for a definite result while **intent** is the purpose to use a particular means to effect such result
- Motive is not an essential element of a crime, and, hence, need not to be proved for purposes of conviction
    - One may be convicted of a crime whether his motive appears to be good or bad or even though he has no motive

When is Motive Relevant
1. Identity of the accused
    - Motive is essential only when:
        a. there is doubt as to the identity of the assailant
        b. the identification of the accused proceeds from an unreliable source and the testimony is inconclusive and not free from doubt
2. Antagonistic theories
    - Motive is important in ascertaining the truth between two antagonistic theories or versions of the killing
3. No eyewitnesses
    - When there are no eyewitnesses to the crime, and where suspicion is likely to fall upon a number of persons, motive is relevant and significant
4. Circumstantial evidence or sufficient evidence

- If the evidence is merely circumstantial, proof of motive is essential

How Motive is Proved

Established by the testimony of witnesses on the acts or statements of the accused before or immediately after the commission of the offense. Such deeds or words may indicate the motive.

Motive Alone is Not Sufficient to Support a Conviction

- Mere proof, no matter how strong, is not sufficient to support a conviction if there is no reliable evidence from which it may be reasonably deduced that the accused was the malefactor.
- Proof beyond reasonable doubt > Strong motive

i. Effect of Mistake of Fact on Liability

RPC, ARTICLE 3. *Definitions.* — Acs and omissions punishable by law are felonies (*delitos*).
Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).
There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill.

Mistake of Fact

- Mistake of fact relieves the accused from criminal liability (*ignorantia facti excusat*)
- It is a misapprehension of fact on the part of the person who caused injury to another. He is not, however, criminally liable, because he did not act with criminal intent.
- An honest mistake of fact destroys the presumption of criminal intent which arises upon the commission of a felonious act.
- The act done would have been lawful, had the facts been as the accused believed them to be
- The mistake must be without fault or carelessness on the part of the accused
- There is no crime of resistance when there is a mistake of fact

Requisites of Mistake of Fact as a Defense

1. That the act done would have been lawful had the facts been as the accused believed them to be;
2. That the intention of the accused in performing the act should be lawful; and
3. That the mistake must be without fault or carelessness on the part of the accused

ii. Crimes defined and penalized by special penal laws

RPC, ARTICLE 10. *Offenses not subject to the provisions of this Code.* — Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

R.A. 9165, SECTION 98. *Limited Applicability of the Revised Penal Code.* — Notwithstanding any law, rule or regulation to the contrary, the provisions of the Revised Penal Code (Act No. 3814), as amended, shall not apply to the provisions of this Act, except in the case of minor offenders. Where the offender is a minor, the penalty for acts punishable by life imprisonment to death provided herein shall be reclusion perpetua to death.

Interpretation of Article 10

- First clause: special penal laws are controlling with regard to offenses therein specifically punished
- Second clause: the code shall be supplementary to special laws, unless the latter should specifically provide the contrary

Important Words and Phrases

1. "Special laws"
    - A penal law which punishes acts not punished in the RPC
        - Enacted by the legislative
        - Not a law which amends the RPC
        - Usually follows the form of American penal law
2. "Supplementary"
    - The RPC supplies what is lacking in the special laws unless the latter provides for the contrary

When is the RPC not Suppletory

- The suppletory effect of the RPC to special laws cannot be invoked when there is a legal impossibility of application, either by express provision or by necessary implication
- When the penalties under the special law are different from and are without reference or relation to those under the RPC, there can be no suppletory effect

Provisions of the revised penal code on penalties cannot be applied to offenses punishable under special law

- Special laws do not provide a scale of penalties where a given penalty can be lowered by one or two degrees.
- Special laws use the term "imprisonment" rather than the other terms ascribed to the penalties found in the Revised Penal Code.

Article 6 Of The Revised Penal Code (Attempted, Frustrated, Consummated) Cannot Be Applied To Offenses Punished By Special Laws

Special laws are mala prohibita which means you either commit them or you don't.

Special Law Has To Fix Penalties For Attempted And Frustrated Crime Before They Can Be Punished

- The special law does not provide for a penalty one or two degrees lower than that provided for that consummated stage.
- If the special law covers the mere attempt to commit the crime defined by it, then the mere attempt is punishable.

Article 10 Is Not Applicable To Punish An Accomplice Under The Special Law

Unless expressly provided, the penalty imposed is clearly intended only for the one committing the offense.

Special Laws Amending The Revised Penal Code Are Subject To Its Provisions
If the special law is an amendment of a certain article in the Revised Penal Code, that special law will necessarily be covered by relevant provisions in the Revised Penal Code.

B. Punishable Conduct

RPC, ARTICLE 10. *Offenses not subject to the provisions of this Code.* — Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

i. Const. (1987), art. II, sec. 4; The prime duty of the Government is to serve and protect the people. The Government may call upon the people to defend the State and, in the fulfillment thereof, all citizens may be required, under conditions provided by law, to render personal military or civil service.

a. Wrongful Act Different from That Intended

RPC, ARTICLE 4(1). *Criminal liability.* — Criminal liability shall be incurred:
1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.

i. Aberratio Ictus (Mistake in the Blow)

There is a mistake in the blow
- A situation where the harm inflicted is directed at a person different from the intended victim due to a mistake in the blow or act.
- In *People vs. Valdez,* the accused intended to shoot A but accidentally hit B. The intent to harm A is transferred to B.
- The liability of the accused extends to the actual victim due to negligence or lack of care, provided there was criminal intent against the original target.

ii. Error in Personae (Mistake in Identity)

Mistake in the Identity of the Intended Victim is <u>Not</u> Reckless Imprudence
- A deliberate intent to do an unlawful act is essentially inconsistent with the idea of reckless imprudence.
- Where such an unlawful act is willfully done, a mistake in the identity of the intended victim cannot be considered as reckless imprudence

iii. Praeter Intentionem (No Intent to Commit so Grave a Wrong)

The injurious result is greater than that intended
- When the harm caused exceeds the intent of the accused
- In *People v. Pugay*, a simple slap led to the accidental death of the victim due to unforeseen circumstances.
- While the accused did not intend the graver harm, liability is mitigated as the act lacked intent for full extent of the damage

b. Omission

RPC, ARTICLE 4. *Criminal liability.* — Criminal liability shall be incurred:
1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

Felony by omission
- The failure to perform an act required by law
- In *People v. Silvestre*, a failure to act to prevent arson was deemed non-criminal due to absence of a legal duty
- There must be a law or specific duty obliging the person to act; otherwise, omission is not punishable

RPC, ARTICLE 116. *Misprision of treason.* — Every person owing allegiance to the United States or the Government of the Philippine Islands, without being a foreigner, and having knowledge of any conspiracy against them, who conceals or does not disclose and make known the same, as soon as possible to the governor or fiscal of the province, or the mayor or fiscal of the city in which he resides, as the case may be, shall be punished as an accessory to the crime of treason.

RPC, ARTICLE 137. *Disloyalty of public officers or employees.* — The penalty of prision correccional in its minimum period shall be imposed upon public officers or employees who have failed to resist a rebellion by all the means in their power, or shall continue to discharge the duties of their offices under the control of the rebels or shall accept appointment to office under them.

RPC, ARTICLE 208. *Prosecution of offenses; negligence and tolerance.* — The penalty of prision correccional in its minimum period and suspension shall be imposed upon any public officer, or officer of the law, who, in dereliction of the duties of his office, shall maliciously refrain from instituting prosecution for the punishment of violators of the law, or shall tolerate the commission of offenses.

RPC, ARTICLE 223. *Conniving with or consenting to evasion.* — Any public officer who shall consent to the escape of a prisoner custody or charge, shall be punished:

1. By prision correccional in its medium and maximum periods and temporary special disqualification in its maximum period to perpetual special disqualification, if the fugitive shall have been sentenced by final judgment to any penalty.
2. By prision correccional in its minimum period and temporary special disqualification, in case the fugitive shall not have been finally convicted but only held as a detention prisoner for any crime or violation of law or municipal ordinance.

RPC, ARTICLE 234. *Refusal to discharge elective office.* — The penalty of arresto mayor or a fine not exceeding 1,000 pesos, or both, shall be imposed upon any person who, having been elected by popular election to a public office, shall refuse without legal motive to be sworn in or to discharge the duties of said office.

RPC, ARTICLE 275. *Abandonment of persons in danger and abandonment of one's own victim.* — The penalty of arresto mayor shall be imposed upon:

1. Anyone who shall fail to render assistance to any person whom he shall find in an uninhabited place wounded or in danger of dying, when he can render such assistance without detriment to himself, unless such omission shall constitute a more serious offense.
2. Anyone who shall fail to help or render assistance to another whom he has accidentally wounded or injured.
3. Anyone who, having found an abandoned child under seven years of age, shall fail to deliver said child to the authorities or to his family, or shall fail to take him to a safe place.

c. Proposal and Conspiracy

RPC, ARTICLE 8. *Conspiracy and proposal to commit felony.* — Conspiracy and proposal to commit felony are punishable only in the cases in which the law specially provides a penalty therefor.

A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.

There is proposal when the person who has decided to commit a felony proposes its execution to some other person or persons.

Conspiracy is not a crime except when the law specifically provides a penalty therefor

1. Proposal: a suggestion by one person to another to commit a felony
    - Merely proposing to commit a robbery does not amount to a crime unless followed by an overt act.
    - Proposal is generally not punishable unless specified
2. Conspiracy: an agreement between two or more persons to commit a felony
    - In *People v. Hernando*, multiple persons planned and executed a crime, establishing a conspiracy
    - All conspirators are equally liable for the felony, even if they did not directly perform the criminal act.

R.A. 9165, SECTION 26. *Attempt or Conspiracy.* — Any attempt or conspiracy to commit the following unlawful acts shall be penalized by the same penalty prescribed for the commission of the same as provided under this Act:

(a) Importation of any dangerous drug and/or controlled precursor and essential chemical;

(b) Sale, trading, administration, dispensation, delivery, distribution and transportation of any dangerous drug and/or controlled precursor and essential chemical;

(c) Maintenance of a den, dive or resort where any dangerous drug is used in any form;

(d) Manufacture of any dangerous drug and/or controlled precursor and essential chemical; and

(e) Cultivation or culture of plants which are sources of dangerous drugs.

R.A. 9372, SECTION 4. *Conspiracy to Commit Terrorism.* — Persons who conspire to commit the crime of terrorism shall suffer the penalty of forty (40) years of imprisonment.

There is conspiracy when two or more persons come to an agreement concerning the commission of the crime of terrorism as defined in Section 3 hereof and decide to commit the same.

R.A. 11479, SECTION 7. *Conspiracy to Commit Terrorism.* — Any conspiracy to commit terrorism as defined and penalized under Section 4 of this Act shall suffer the penalty of life imprisonment without the benefit of parole and the benefit of Republic Act No. 10592.

There is conspiracy when two (2) or more persons come to an agreement concerning the commission of terrorism as defined in Section 4 hereof and decide to commit the same.

R.A. 11479, SECTION 8. *Proposal to Commit Terrorism*. — Any person who proposes to commit terrorism as defined in section 4 hereof shall suffer the penalty of imprisonment of twelve (12) years.

d. Impossible Crimes

RPC, ARTICLE 4. *Criminal liability.* — Criminal liability shall be incurred:
1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

RPC, ARTICLE 59. *Penalty to be imposed in case of failure to commit the crime because the means employed or the aims sought are impossible.* — When the person intending to commit an offense has already performed the acts for the execution of the same but nevertheless the crime was not produced by reason of the fact that the act intended was by its nature one of impossible accomplishment or because the means employed by such person are essentially inadequate to produce the result desired by him, the court, having in mind the social danger and the degree of criminality shown by the offender, shall impose upon him the penalty of arresto mayor or a fine ranging from 200 to 500 pesos.

- Acts that do not constitute a felony due to inherent impossibility or inadequate means
- Example: Shooting a corpse under the mistaken belief that it is a living person
- The act must have been performed with intent to commit a crime
- The impossibility must arise from either the means employed or the object of the crime.
- Article 59 provides for a penalty lower than that for the attempted felony, as the act is inherently incapable of achieving its objective

C. Stages of Execution Giving Rise to Liability

RPC, ARTICLE 6. *Consummated, frustrated, and attempted felonies.* - Consummated felonies as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly or over acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than this own spontaneous desistance.

- All are stages in execution that give rise to criminal liability; all produce a felony but differ in punishment

a. Attempt

A felony is **attempted** when the:
(1) Offender commences the commission of a felony directly by overt acts
    - There are external acts
        - "overt acts" - physical activity or deed indicating the intention to commit a particular crime which if carried to its complete termination following its natural course, without being frustrated by external obstacles nor by the voluntary desistance of the perpetrator, will logically and necessarily ripen into a concrete offense

        - vs. “preparatory act”
    - Such external acts have direct connection with the crime intended to be committed
(2) Has not performed all the acts of execution which should produce the felony
    - There is something that remained for him to do
(3) The offender’s act is stopped due to some cause or accident
    - Offender fails to perform all the acts of execution which should produce the felony because of some cause or accident
(4) Other than his own spontaneous desistance
    - If due to his own spontaneous desistance → then there is no attempted felony; law does not punish him
        - Reward to those who, having one foot on the verge of crime, heed the call of their conscience and return to the path of righteousness
        - Desistance should be made before all the acts of execution are performed

Rape → only exists in its attempted and consummated stage

b. Frustration

A felony is **frustrated** when the:
(1) Offender performs all the acts of execution
    - Nothing more is left to be done by the offender; has performed the last act necessary to produce the crime
(2) Which would produce the felony as a consequence
    - All the acts of execution performed by the offender could have produced the felony as a consequence
(3) But the felony is not produced
    - If it was produced then it would be consummated
(4) By reason of causes independent of the will of the perpetrator
    - There were certain causes that prevented its consummation
    - If due to his own spontaneous desistance → then there is no frustrated felony (4th element is not present)

For murder/homicide → look at actions executed and location of wound (if it would naturally result to death)

Attempted felony	Frustrated felony	Impossible crime
Offender has not accomplished his criminal purpose; evil intent of the offender is not accomplished		
Offender merely commences the commission of a felony directly by overt acts and does not perform all the acts of execution → but felony is possible of accomplishment but wasn’t because of the intervention of certain cause or accident	Offender has performed all the acts of execution which would produce the felony as a consequence → but felony is possible of accomplishment but wasn’t because of the intervention of certain cause or accident	Offender performed all the acts of execution → but the evil intent / felony cannot be accomplished because of its inherent impossibility or because the means employed are inadequate or ineffectual

c. Consummation

A felony is **consummated** when all the elements necessary for its **execution** and **accomplishment** are present.

- How to determine what stage of execution the crime is:
    - Nature of the offense
    - Elements constituting the felony
    - Manner of committing the same

D. Persons Criminally Liable

a. In Grave and Less Grave Felonies

i. Principals

RPC, ARTICLE 17. *Principals.* — The following are considered principals:
1. Those who take a direct part in the execution of the act;
2. Those who directly force or induce others to commit it;
3. Those who cooperate in the commission of the offense by another act without which it would not have been accomplished.

Two Or More Persons Participating In The Crime
- Single individual committing a crime is always a principal by direct participation (take direct part in the execution of the act).
- (Par 1.) Principal by direct participation

(Par 2.) Principal by induction
(Par 3.) Principal by indispensable cooperation

Difference Between A Principal Under Any Of The Three Categories Enumerated In Article 17 And A Co-Conspirator

- Principal in Article 17: criminal liability is limited to his own acts

By Direct Participation

"Take A Direct Part In The Execution Of The Act."

- Principal by direct participation personally takes part in the execution of the act constituting the crime.
    - Example: One who shoots at and kills another (homicide) or one who burns the house of another (arson) personally executes the act of killing another or the act of burning the house of another.
- The one who orders or induces another to commit a crime is a principal by induction while the other who follows the order and executes the act constituting the crime is a principal by direct participation. (People v. Lao)

Two or More Offenders as Principals by Direct Participation

Two or more persons may take direct part in the execution of the acts constituting crime – principals by direct participation.

Elements for two or more persons to be considered as principals by direct participation: ("co-principals")

1. That they participated in the criminal resolution;
2. That they carried out their plan and personally took part in its execution by acts which directly tended to the same end.

FIRST ELEMENT: Participation In The Criminal Resolution

- Usually, this points to a conspiracy. BUT it is also possible that there is no conspiracy between the actors.
    - They will only be liable for their own/individual actions.
- Two or more persons are said to have participated in the criminal resolution when they were in conspiracy at the time of the commission of the crime.
    - When there has been conspiracy or unity of purpose and intention in the commission of the crime – a person may be convicted for the criminal act of another.

Conspiracy

- A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it (Article 8, Paragraph 2).
- The conspiracy in this first requisite is not a felony but only a manner of incurring criminal liability.
- To be a party to a conspiracy, one must have the intention to participate in the transaction with a view to the furtherance of the common design and purpose.

Silence does not make one a conspirator

It is not a circumstance indicating participation in the same criminal design.

Conspiracy transcends companionship

The fact that the two accused may have happened to leave together, and one of them left a closing warning to the victim, cannot instantly prove a finding of conspiracy.

Participation in the criminal resolution essential

- It is not enough that a person participated in the assault made by another in order to consider him a co-principal in the crime committed. He must also participate in the criminal resolution of the other.
- Cooperation which the law punishes: assistance which is knowingly or intentionally given and which is not possible without previous knowledge of the criminal purpose
- Co-conspirator: His responsibility includes the acts of his fellow conspirators (People v. Peralta)
- In the absence of a previous plan or agreement to commit a crime, the criminal responsibility arising from different acts directed against the same person is individual and not collective – each of the participants is liable only for the acts he committed.
- In the absence of concerted action pursuant to a common criminal design, each of the accused – responsible only for the consequences of his own acts.

Existence Of Conspiracy

- Existence of conspiracy does not require an agreement for an appreciable length of time prior to the execution of its purpose.
    - From the legal viewpoint, conspiracy exists if at the time of the commission of the offense the accused had the same purpose and were united in its execution
- Conspiracy arises on the very instant that the plotters agree expressly or impliedly to commit the felony and forthwith decide to pursue it. – each and everyone of the conspirators is made criminally liable for the crime actually committed by anyone of them

Proof of Conspiracy

- Direct evidence of conspiracy: interlocking judicial confessions of several accused and the testimony of one accused who was discharged and made a witness against his co-accused who did not make any confession.
    - In the absence of any collusion among the declarants, their confessions may be considered collectively as corroborative and/or confirmatory of the evidence independent therefrom
    - Two or more extrajudicial confessions given separately, untainted by collusion, and which tally with one another in all material respects, are admissible as evidence of the conspiracy of the declarants
- Formal agreement or previous acquaintance among several persons not necessary in conspiracy.
- Conspiracy need not be proved by direct evidence (need not be shown that the parties actually came together and agreed in express terms to enter into and pursue a common design) – can be inferred from proof of facts and circumstances when taken together indicate they are parts of a complete whole

Conspiracy must be established by positive and conclusive evidence

- While conspiracy may be implied from circumstances attending the commission of the crime, it is nevertheless a rule that conspiracy must be established by positive and conclusive evidence (People v. Ancheta)
- Proof beyond reasonable doubt = degree of proof to prove conspiracy (same as degree of proof to establish the crime); it must be established by positive and conclusive evidence; conspiracy cannot be appreciated when facts are consistent with the non-participation of the accused in the fancied cabal (People v. Furugganan)
- Mere presence at the scene of the crime at the time of its commission is not by itself sufficient to establish conspiracy (People v. Tacca)

Unity of purpose and intention in the commission of the crime is shown in the following cases

1. Spontaneous agreement at the moment of the commission of the crime sufficient to create joint responsibility.
2. Active cooperation by all the offenders in the perpetration of the crime.
3. Contributing by positive acts to the realization of a common criminal intent.
4. Presence during the commission of the crime by a band and lending moral support thereto, also create joint responsibility with the material executors.
5. Where one of the accused knew of the plan of the others to kill the two victims and he accepted the role assigned to him, which was to shoot one of the victims, and he actually performed that role, he is a co-principal by direct participation in the double murder

There may be conspiracy even if there is no evident premeditation on the part of the accused

Even if appellants were unarmed, which may indicate lack of evident premeditation, this does not necessarily negate the existence of conspiracy because conspiracy does not necessarily require an agreement for an appreciable time prior to the occurrence.

When there is no conspiracy, each of the offenders is liable only for the act performed by him

Liability of participants where there is conspiracy

When there is conspiracy, the act of one is the act of all → Collective criminal responsibility

Where there is conspiracy to commit a felony, all the conspirators are liable for its consequences.

Liability of a conspirator for another conspirator's acts which differ radically and substantially from that which they intended to commit.

- Conspirator should necessarily be liable for the acts of another conspirator even though such acts differ radically or substantially from that which they intended to commit. (People v. Enriquez)
- As has been said by the U.S. Supreme Court: "If a number of persons agree to commit, and enter upon the commission of a crime which will probably endanger human life such as robbery, all of them are responsible for the death of a person that ensues as a consequence"

Exceptions (from equal liability)

1. Crime of parricide – element of relationship must be present as regards all the offenders
    - **Reason for exception:** Article 62 paragraph 3 provides that aggravating circumstances which arise from private relations of offender with offended party shall serve to aggravate only liability of principals, accomplices, and accessories to whom such circumstances are attendant. Provision applies when element of felony arises from private relation of offender with offended party.
2. Crime of murder where treachery is an element of the crime – all offenders must at least have knowledge of the employment of treachery at time of execution of act or their cooperation therein
    - **Reason for exception:** Article 62 par 4. Provides that circumstances which consist in the material execution of the ac, or in the means employed to accomplish it, shall serve to aggravate the liability of only those persons who had knowledge of them at the time of the execution of the act or their cooperation therein

There could be no conspiracy to commit an offense through negligence

- Conspiracy presupposes an agreement and a decision to commit a felony, when it appears that the injuries inflicted on the offended party were due to the reckless imprudence of two or more persons, it is not proper to consider conspiracy between or among them.

SECOND ELEMENT: That The Culprits "Carried Out Their Plan And Personally Took Part In Its Execution By Acts Which Directly Tended To The Same End."

The principals by direct participation must be at the scene of the crime, personally taking part in its execution

- **General Rule:** Principal by direct participation must personally take part in executing the criminal plan to be carried out. This means that he must be at the scene of the commission of the crime, personally taking part in its execution.
- **Exception:** For as long as the conspirators perform specific acts that were coordinated pursuant to the conspiracy, they are all principals. Even if their acts are performed in different places

The acts of each offender must directly tend to the same end

- While principals by direct participation personally take part in the execution of their common purpose, it is not necessary that each of them should perform a positive act directly contributing to the accomplishment of their common purpose.

When the second requisite is lacking, there is only conspiracy to commit a crime

- IF this 2nd requisite is lacking: there is, at most, only conspiracy among several defendants who participated in criminal resolution; if the crime they agreed and decided to commit is not treason, rebellion or sedition, they are not criminally liable.

By Inducement

"Those Who Directly Force Or Induce Others To Commit [The Act]."

- Those who directly induce others to commit the act are called "principals by inducement" or "principals by induction" from the Spanish "autores por induccion".
- "Inducement" comprises price, promise of reward, command and pacto

The principal by induction becomes liable only when the principal by direct participation committed the act induced

The qualifying circumstance of price, reward or promise in Article 14 is considered for both the principal by inducement and principal by direct participation.

Two Ways Of Becoming Principal By Induction

Under Article 17, paragraph 2:

1. By directly forcing another to commit a crime, and
2. By directly inducing another to commit a crime.

By Directly Forcing Another To Commit A Crime

Two ways of directly forcing another to commit a crime:

1. By using irresistible force.

2. By causing uncontrollable fear.

In these cases (using force or causing fear), there is no conspiracy, not even a unity of criminal purpose and intention. Only the one using force or causing fear is criminally liable. The material executor is not criminally liable because of Article 12, paragraph 5 and 6.

By Directly Inducing Another To Commit A Crime

Two ways of directly inducing another to commit a crime:

1. By giving price, or offering reward or promise.
    - Both the one giving the price or offering reward or promise and the one committing the crime in consideration thereof are principals (former by inducement and latter by direct participation). There is collective criminal responsibility.
    - This applies even if the inducer does not pay the principal by direct participation after the commission of the crime.
2. By using words of command.
    - Both the person who used the words of command and the persons who committed the crime (because of the words of command) are equally liable. There is also collective responsibility.

The inducement may be by acts of command, advice, or through influence, or agreement for consideration

Inducement and the commission of the crime wherein the inducer becomes the principal (with same extent and effect as if he had physically committed the crime) may exist in acts of command, of advice, agreement for a consideration, or through an influence so effective that it alone determines the commission of the crime

1. The promise of love can be sufficient inducement.
2. The words of advice or the influence must have actually moved the hands of the principal by direct participation.
3. By using words of command.

Elements To Hold Person Liable As Principal By Inducement Through The Use Of Commands

All five requisites must be present in order that a person using words of command be held liable as principal by inducement:

1. That the one uttering the words of command must have the intention of procuring the commission of the crime.
2. That the one who made the command must have an ascendancy or influence over the person who acted.
3. That the words used must be so direct, so efficacious, so powerful as to amount to physical or moral coercion.
4. The words of command must be uttered prior to the commission of the crime.
5. The material executor of the crime has no personal reason to commit the crime.

Elements To Be Considered A Principal By Inducement

1. That the inducement be made directly with the intention of procuring the commission of the crime;
    - The principal by inducement should be obeyed.
    - A thoughtless expression without intention to produce the result is not an inducement to commit a crime
2. That such inducement be the determining cause of the commission of the crime by the material executor.
    - The inducement must precede the act induced and must be so influential in producing the criminal act that without it, the act would not have been performed.
    - Price given to the principal by direct participation after the commission of the crime, without prior promise to give a price or reward, could not be an inducement.

Principal By Inducement vs. Offender Who Made Proposal to Commit A Felony

Principal By Inducement	Offender Who Made Proposal to Commit A Felony
There is inducement to commit a crime	
Liable only when crime is committed by principal by direct participation	Mere proposal to commit a felony is punishable in treason or rebellion; person to whom proposal is made should NOT commit the crime
Inducement involves ANY crime	Must involve ONLY treason and rebellion to be punishable

Effects of Acquittal of Principal by Direct Participation Upon the Liability of Principal by Inducement

1. Conspiracy is negative by acquittal of co-defendant.
2. It must be shown that another has actually committed the crime; otherwise one cannot be guilty of instigating the crime.
    - If the one charged as principal by direct participation was acquitted because he acted without criminal intent or malice – his acquittal is not grounds for acquitting the principal by inducement.
    - Reason for rule: In exempting circumstances, when the act is not voluntary because of lack of intent – there is a crime committed but no criminal; in intentional felonies, act of a person does not make him criminal unless his mind be criminal

By Indispensable Cooperation

Elements to be Liable as Principal by Indispensable Cooperation

1. Participation in the criminal resolution.
2. Cooperation in the commission of the offense by performing another act, without which it would not have been accomplished.

FIRST ELEMENT: Participation In The Criminal Resolution

The participation of a principal by indispensable cooperation is different from the overt act committed by a principal by direct participation.

Being a Co-Conspirator is Not Necessary

A principal by indispensable cooperation need not be a party in the planning stage of the conspiracy for he may become a principal at the moment of the execution of the crime with the other principals, if his act was indispensable to the crime.

May There Be Cooperation By Acts Of Negligence?

A person becomes a co-principal through acts of negligence cooperates in the commission of estafa through falsification or malversation through falsification (without which the commission of the crime could not have been accomplished).

The Principal by Indispensable Cooperation Need Not Be in the Scene of the Crime

SECOND REQUISITE: Cooperation must be indispensable without which the commission of the crime would not have been accomplished.

"Cooperate X X X By Another Act"

- Act of the principal by indispensable cooperation should be different from the act of the principal by direct participation.
- Law says "by another act" which means it should not be the act of one who would be classified as principal by direct participation.
- If cooperation of one accused consists in doing an act necessary in the execution of the crime, he is a principal by direct participation.

Collective Criminal Responsibility

- Present when offenders are criminally liable in the same manner and to the same extent; penalty imposed must be the same for all.
- Who has collective criminal responsibility?
  - Principals by direct participation.
  - Principal by induction with the principal by direct participation (EXCEPT the principal by induction who directly forced another to commit a crime).
  - Principal by indispensable cooperation with the principal by direct participation.

Individual Criminal Responsibility

- If there is no previous conspiracy/ unity of criminal purpose and intention immediately before commission of crime/ community of criminal design = criminal responsibility arising from different acts directed against one and the same person is individual and not collective.
- Each of the participants is liable only for the act committed by him.

ii. Accomplices

RPC, ARTICLE 18. *Accomplices.* — Accomplices are those persons who, not being included in article 17, cooperate in the execution of the offense by previous or simultaneous acts.

R.A. 9372, SECTION 5. *Accomplice.* - Any person who, not being a principal under Article 17 of the Revised Penal Code or a conspirator as defined in Section 4 hereof, cooperates in the execution of either the crime of terrorism or conspiracy to commit terrorism by previous or simultaneous acts shall suffer the penalty of from seventeen (17) years, four months one day to twenty (20) years of imprisonment.

Liability Of Accomplice Based On Principal

- May one be charged and convicted as accomplice/accessory even before the principal is charged or convicted? Should the PDP first be convicted before the accomplice/accessory be charged or convicted?
  - As long as the commission of the crime is proven beyond reasonable doubt, determination of criminal responsibility of accessory/accomplice may be determined independently of and separately from liability of principal by direct participation
- **Dismissal of case against principal:** If the case is dismissed against the principal by direct participation, the case against the accessory/accomplice must also be dismissed because the liability of the accomplice/accessory is subordinate to that of the principal by direct participation. The accomplice/accessory is like a shadow that follows the principal by direct participation and not the other way around
- **Exemption of principal from criminal liability:** BUT if the principal by direct participation is exempted from the crime, it does not follow that the accomplice/accessory is exempted, or that the case against the accomplice/accessory should be dismissed as well.
- Principal by direct participation is dead. Can accomplice/ accessory still be charged? Yes, they can still be prosecuted.

The Participation of an Accomplice Presupposes the Commission of the Crime by the Principal by Direct Participation

- Principal element of complicity: concurrence of will of accomplice with the will of the author of the crime (principal).
  - He is not a principal (so he must not be part of the conspiracy), but he supplies material or moral aid to the principal in an efficacious way.
- The accomplice cooperates by previous or simultaneous acts in the execution of the offense by the principal.

"Not being included in Article 17."

- An accomplice does not fall under any of the three concepts defined in Article 17.
- Those who cooperated by previous or simultaneous acts cannot be held liable as principals but as accomplices.

In Case of Doubt as to Whether Principal or Accomplice

- In case of DOUBT – participation of offender is considered as accomplice rather than principal.
- Mere presence at scene, knowledge of plan, and acquiescence is insufficient ground to hold a person as conspirator therefore will be held liable only as accomplice.

When The Participation Of An Accused Is Not Disclosed, He Is Only As Accomplice

In criminal cases, the participation of accused must be proved by positive and competent evidence (beyond reasonable doubt) BY the prosecution. It can't be presumed.

An accomplice does not have previous agreement of understanding or is not in conspiracy with the principal by direct participation.

- Accomplice does not enter into conspiracy with principal by direct participation nor does he have a previous agreement or understanding with him to commit a crime BUT he participates to a certain point in the common criminal design.
- Accomplices come to know of the criminal resolution of the principals after the latter have reached a decision to commit a crime. The accomplice does not decide the commission of a crime. The accomplice just agrees after the criminal resolution is accomplished, he does not conspire. But if the accomplice commits an act of execution, he becomes a PDP.
- NOTE: An accomplice gets a penalty one degree lower than that provided for the principal in a consummated felony (Article 52).

Accomplice	Conspirator
Knowing and agreeing with criminal design	
Gets knowledge of the criminal intent after principals have reached the decision – and then they agree to cooperate in its execution	Knowledge of the criminal intention is because they decided the specific course of action
Merely concurs to do the crime; merely assent to the plan and cooperate in its accomplishment	Decide that a crime should be committed
Instruments who perform acts not essential to perpetration of offense	Authors of a crime

Elements to be Liable As Accomplices

1. There be community of design: knowing the criminal design of the principal by direct participation and concurs with him/her in that purpose.
2. That he cooperates in the execution of the offense by previous or simultaneous acts by supplying material or moral aid in the execution of the crime in an efficacious way.
3. There be a relation between the acts by the principal and the accomplice.

Accomplice vs. Principal

As to…	Accomplice	Principal
Inducement	Inducement or utterance is dispensable with or without such, the crime would still be committed (since principal already determined to commit the crime)	Without such inducement, crime would not be committed
Cooperation	Minor	Indispensable
When acts are committed	Act before or during the commission of the crime	
Conspiracy	Merely concurs with the plan already decided	Decide the crime's commission
	Mere instruments who perform acts not essential to the perpetration	Authors of the crime

iii. Accessories

RPC, ARTICLE 19. *Accessories.*— Accessories are those who, having knowledge of the commission of the crime, and without having participated therein, either as principals or accomplices, take part subsequent to its commission in any of the following manners:

1. By profiting themselves or assisting the offenders to profit by the effects of the crime.
2. By concealing or destroying the body of the crime, or the effects or instruments thereof, in order to prevent its discovery.
3. By harboring, concealing, or assisting in the escape of the principal of the crime, provided the accessory acts with abuse of his public functions or Whenever the author of the crime is guilty of treason, parricide, murder, or an attempt to take the life of the Chief Executive, or is known to be habitually guilty of some other crime.

An accessory does not participate in the criminal design, nor cooperate in the commission of the felony, but with knowledge of the commission of the crime he subsequently takes part in three ways mentioned in the article.

I. Two Classes Of Accessories Contemplated In Paragraph 3

A. Public Officers
   1. The accessory is a public officer.
   2. He harbors, conceals or assists in the escape of the principal.
   3. The public officer acts with abuse of his public functions.
   4. The crime committed by the principal is any crime, provided it is not a light felony.

B. Private Persons
   1. That the accessory is a private person
   2. That he harbors, conceals or assists in the escape of the author of the crime.
   3. That the crime committed by the principal is either:
      a) Treason
      b) Parricide
      c) Murder
      d) Attempt on the life of the President
      e) That the principal is known to be habitually guilty of some other crime.

RPC, ARTICLE 20. *Accessories who are exempt from criminal liability.* — The penalties prescribed for accessories shall not be imposed upon those who are such with respect to their spouses, ascendants, descendants, legitimate, natural, and adopted brothers and sisters, or relatives by affinity within the same degrees, with the single exception of accessories falling within the provisions of paragraph 1 of the next preceding article.

Basis For Exemption

Based on ties of blood, and preservation of the cleanliness of one's name, which compels one to conceal crimes committed by relatives so near as those mentioned in this article.

Principals Related To Accessories Exempt From Criminal Liability

When principal is his:

- Spouse
- Descendant
- Ascendant
- Legitimate, natural or adopted brother, sister or relative by affinity within the same degree.

Extent Of Coverage

- Exemption applies even if the accessory is related to only two of found principals guilty of murder (U.S. v. Abanzado).
- Relationship by affinity between surviving spouse and blood relatives of the deceased spouse survives even after the death of the deceased spouse.
- Nephew or niece is not included among such relatives.

Accessory Is Not Exempt From Criminal Liability Even If The Principal Is Related To Him If Such Accessory:

1. Profited by the effects of the crime or
2. Assisted the offender to profit by the effects of the crime

- If the accessory performs the two acts mentioned, he is liable even if the principal falls within the listed relatives because such acts are prompted not by affection but be detestable greed.
- Only accessories under paragraphs 2 and 3 of Article 19 are exempt from criminal liability if they are related to the principals.

R.A. 9372, SECTION 6. *Accessory.* - Any person who, having knowledge of the commission of the crime of terrorism or conspiracy to commit terrorism, and without having participated therein, either as principal or accomplice under Articles 17 and 18 of the Revised Penal Code, takes part subsequent to its commission in any of the following manner: (a) by profiting himself or assisting the offender to profit by the effects of the crime; (b) by concealing or destroying the body of the crime, or the effects, or instruments thereof, in order to prevent its discovery; (c) by harboring, concealing, or assisting in the escape of the principal or conspirator of the crime, shall suffer the penalty of ten (10) years and one day to twelve (12) years of imprisonment.

Notwithstanding the above paragraph, the penalties prescribed for accessories shall not be imposed upon those who are such with respect to their spouses, ascendants, descendants, legitimate, natural, and adopted brothers and sisters, or relatives by affinity within the same degrees, with the single exception of accessories falling within the provisions of subparagraph (a).

b. In Light Felonies

Persons Liable for Felonies

- In light felonies, only principals and accomplices are criminally liable, as provided under Article 16 of the RPC
- Accessories are not liable for light felonies except when such felonies are committed against persons or property
- In theft (a light felony when the value is minimal), only those who directly participated in the act or aided in its commission are liable
- Article 7 and Article 16 of the RPC emphasize that the distinction lies in the nature of the offense and the degree of participation

c. In Crimes Punished by Special Penal Laws

Applicability to Special Penal Laws

- In crimes punished by special penal laws, criminal liability is not confined to principals, accomplices, or accessories as defined in the RPC but is determined by the specific provisions of the special law.
- Intent is generally immaterial unless otherwise provided in the special law
- The act itself, regardless of intent, often constitutes the crime (e.g. mala prohibita offenses)
- Example, in violations of anti-smuggling laws, all individuals who knowingly participated in the act, whether as principals or otherwise, may be held liable
- Special laws often have self-contained provisions that override or supplement general principles of the RPC to address specific offenses or regulatory requirements
- The distinction between criminal liability under the RPC and special laws ensures that liability is tailored to the nature and purpose of the law
- Light felonies emphasize minimal participation, while special penal laws focus on strict compliance with statutory obligations

E. Circumstances Affecting Criminal Liability

a. Applicability to Special Penal Statutes

Applications of its provisions

- Article 10 emphasizes the supplementary application of the RPC to special laws unless otherwise expressly stated
- The general provisions of the RPC apply to special penal statutes ensure coherence and fairness in the application of penalties
- If a special law prescribes a penalty but does not define justifying or exempting circumstances, the provisions under Articles 11 and 12 of the RPC are applied.

RPC, ARTICLE 10. *Offenses not subject to the provisions of this Code.* — Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary.

R.A. 9165, SECTION 98. *Limited Applicability of the Revised Penal Code.* — Notwithstanding any law, rule or regulation to the contrary, the provisions of the Revised Penal Code (Act No. 3814), as amended, shall not apply to the provisions of this Act, except in the case of minor offenders. Where the offender is a minor, the penalty for acts punishable by life imprisonment to death provided herein shall be reclusion perpetua to death.

b. Justifying Circumstances

Definition: When the act of a person is said to be in accordance with the law so that such person is deemed not to have transgressed the law
  - Person is therefore free from both criminal and civil liability
  - Civil liability can however be applied if the person benefited from the justified act

- Basis
  - **Article 11** expressly states "the following do not incur criminal liability"

Circumstances which Affect Criminal Liability

1. Self-Defense: The accused performs an act to defend themselves against unlawful aggression
   - Requisites:
     - Unlawful aggression
     - Reasonable necessity of the means employed to prevent or repel it
     - Lack of sufficient provocation on the part of the person defending themselves
   - In *People vs. Oanis,* the court considered self-defense when the accused acted against an imminent threat to their life
2. Defense of Relative: Protecting a relative from an unlawful aggression
   - Requisite: same as self-defense, with the relationship factor
3. Defense of Stranger: Protecting a stranger from an unlawful aggression
   - Requisites
     - Unlawful aggression against the stranger
     - The means employed must be necessary and reasonable
     - The person defending must not have acted out of revenge, resentment, or other improper motives
4. State of necessity / avoidance of a greater evil
   - Requisites:
     - Evil sought to be avoided actually exists
     - Injury feared is greater than the one done to avoid it
     - No other practical / less harmful means of preventing it
5. Fulfilment of duty or lawful exercise of right/office
6. Obedience to lawful superior orders
   - Requisites:
     - Person who issues the order has the authority to do so
     - Order has to be for some lawful purpose

RPC, ARTICLE 11. *Justifying circumstances.* — The following do not incur any criminal liability:

1. Anyone who acts in defense of his person or rights, provided that the following circumstances concur:
   First. Unlawful aggression;
   Second. Reasonable necessity of the means employed to prevent or repel it;
   Third. Lack of sufficient provocation on the part of the person defending himself.
2. Anyone who acts in defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or of his relatives by affinity in the same degrees, and those by consanguinity within the fourth civil degree, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the provocation was given by the person attacked, that the one making defense had no part therein.
3. Anyone who acts in defense of the person or rights of a stranger, provided that the first and second requisites mentioned in the first circumstance of this article are present and that the person defending be not induced by revenge, resentment, or other evil motive.
4. Any person who, in order to avoid an evil or injury, does an act which causes damage to another, provided that the following requisites are present:
   First. That the evil sought to be avoided actually exists;
   Second. That the injury feared be greater than that done to avoid it;
   Third. That there be no other practical and less harmful means of preventing it.
5. Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.
6. Any person who acts in obedience to an order issued by a superior for some lawful purpose.

c. Exempting Circumstances

RPC, ARTICLE 12. *Circumstances which exempt from criminal liability.* — The following are exempt from criminal liability:

1. An imbecile or an insane person, unless the latter has acted during a lucid interval.

   When the imbecile or an insane person has committed an act which the law defines as a felony (delito), the court shall order his confinement in one of the hospitals or asylums established for persons thus afflicted, which he shall not be permitted to leave without first obtaining the permission of the same court.
2. A person under nine years of age.
3. A person over nine years of age and under fifteen, unless he has acted with discernment, in which case, such minor shall be proceeded against in accordance with the provisions of article 80 of this Code.

   When such minor is adjudged to be criminally irresponsible, the court, in conformity with the provisions of this and the preceding paragraph, shall commit him to the care and custody of his family who shall be charged with his surveillance and education; otherwise, he shall be committed to the care of some institution or person mentioned in said article 80.
4. Any person who, while performing a lawful act with due care, causes an injury by mere accident without fault or intention of causing it.
5. Any person who acts under the compulsion of an irresistible force.
6. Any person who acts under the impulse of an uncontrollable fear of an equal or greater injury.
7. Any person who fails to perform an act required by law, when prevented by some lawful or insuperable cause.

Imbecility or Insanity

- The accused is unable to discern right from wrong at the time of the crime due to a mental condition
- In *People v. Formigones*, the court ruled that the accused was exempted from criminal liability due to insanity

1. Minority: Offenders below the age of 15 are exempt from criminal liability. Those aged 15 to below 18 may also be exempt if they act without discernment
   - In *People v Doquena*, the court considered the age and discernment of the offender in exempting liability
2. Accident: the offender commits the act without fault or intent
   - Dropping a firearm that accidentally discharges, killing another, may qualify as an accident if there is no negligence
3. Compulsion of an Irresistible Force: the offender acts under physical force or violence that cannot be resisted
   - A person forced at gunpoint to commit theft may invoke this exemption
4. Uncontrollable Fear: the offender acts under immediate and real fear of a grave harm
   - A person compelled by armed rebels to drive them to a location to avoid harm to their family
5. Lawful Exercise of a Right or Office: Acts performed in the lawful exercise of a right or duty are exempt
   - Example: A police officer using reasonable force to subdue a criminal in the line of duty

Important:

- Circumstances affecting criminal liability are applied to ensure that penalties are commensurate with both the act and the surrounding context
- Articles 11 and 12 serve as safeguards for justice by considering justification and exemptions in the application of law.

III. PENALTIES

A. Nature and Classification

a. Penalty Prescribed

- Penalty prescribed is found in Book 2, where there is description of felonies and penalties for each.
- Recall the principle of legality.

ARTICLE 46. *Penalty to be imposed upon principals in general.* - The penalty prescribed by law for the commission of a felony shall be imposed upon the principals in the commission of such felony.

Whenever the law prescribes a penalty for a felony is general terms, it shall be understood as applicable to the consummated felony.

- General rule: whenever the law prescribes a penalty to a felony, it is imposed for consummated state for principals.
  - *Refer to Arts. 6 (Consummated, frustrated, and attempted felonies) and 17 (Principals)*
- Exception: penalty prescribed for frustrated or attempted state or committed by accomplices or accessories
  - Defined by Arts. 50-57, which subsequently refers to Art. 71
  - Depends on stage of execution and degree of participation

Graduation of penalties by degrees or by periods

1. By degrees: stages of execution (consummated frustrated, attempted)

2. By degree of criminal participation: principal, accomplice, accessory
3. By periods: maximum, medium, minimum

b. Penalty Imposable

- Penalty imposable is not necessarily the penalty prescribed by law because it is a function of circumstances that affect the penalty, not the liability
  - Not a function of Art. 11 and 12, which talks about liability
  - Function of Arts. 13, 14, 15 (circumstances affecting penalties to be imposed)
- Effect of attendance of mitigating, aggravating circumstances prescribed in law depends on
  - whether the penalty is divisible or indivisible (as defined in Arts. 63 and 64)

ARTICLE 25. *Penalties Which May Be Imposed.* — The penalties which may be imposed, according to this Code, and their different classes, are those included in the following:

Scale

Principal Penalties

Capital punishment:
Death.

Afflictive penalties:
Reclusión perpetua,
Reclusión temporal,
Perpetual or temporary absolute disqualification,
Perpetual or temporary special disqualification,
Prisión mayor.

Correctional penalties:
Prisión correccional,
Arresto mayor,
Suspensión,
Destierro.

Light penalties:
Arresto menor,
Public censure.

Penalties common to the three preceding classes:
Fine, and
Bond to keep the peace.

Accessory Penalties

Perpetual or temporary absolute disqualification,
Perpetual or temporary special disqualification,
Suspension from public office, the right to vote and be voted for, the profession or calling.
Civil interdiction,
Indemnification,
Forfeiture or confiscation of instruments and proceeds of the offense,
Payment of costs.

Applicability of Art. 25
1. Felonies under RPC
2. Suppletory to special penal laws given Art. 10(2) as seen in the case of *Padilla v. Dizon.*
3. Key to understanding Article 63 and 64

What Art. 25 gives us:
1. Characterization of each type of penalty
2. Two scales
3. Hierarchy of penalties from most severe to least severe

Pursuant to RA 9346, which prohibits the imposition of the death penalty, the highest possible penalty that could be imposed is reclusion perpetua without benefit of parole = same duration as reclusion perpetua, except for the added condition of ineligibility for parole

What distinguishes penalty from each other in RPC: 1 day
Special laws do not need to follow particular distinction in duration (i.e., without the 1 day)

ARTICLE 9. *Grave Felonies, Less Grave Felonies and Light Felonies.* — Grave felonies are those to which the law attaches the capital punishment or penalties which in any of their periods are afflictive, in accordance with article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are correctional, in accordance with the above mentioned article.

Light felonies are those infractions of law for the commission of which the penalty of arresto menor or a fine not exceeding 200 pesos or both, is provided.

Arts. 25 and 9 are relevant in understanding Arts. 16-18 (which gave us who are the principals, accomplices, and accessories who have criminal liability)

Art. 9 determines what are grave, less grave, and light felonies
a. Grave: capital punishment to afflictive penalties
b. Less grave: correctional
c. Light: arresto menor or fine of less than 200 or both

ARTICLE 71. *Graduated scales.* - In the case in which the law prescribed a penalty lower or higher by one or more degrees than another given penalty, the rules prescribed in Article 61 shall be observed in graduating such penalty.

The lower or higher penalty shall be taken from the graduated scale in which is comprised the given penalty.

The courts, in applying such lower or higher penalty, shall observe the following graduated scales:

SCALE NO. 1

1. Death,
2. Reclusion perpetua,
3. Reclusion temporal,
4. Prision mayor,
5. Prision correccional,
6. Arresto mayor,
7. Destierro,
8. Arresto menor,
9. Public censure,
10. Fine.

SCALE NO. 2

1. Perpetual absolute disqualification,
2. Temporal absolute disqualification
3. Suspension from public office, the right to vote and be voted for, the right to follow a profession or calling,
4. Public censure,
5. Fine.

Art. 71 relevant for application of Arts. 50-57. It only applies to felonies, not to crimes which do not use the penalty described in Art. 25.

What is a degree in relation to penalty?

- Degree: one entire penalty or one unit of penalty enumerated in the graduated scales

Arts. 50-57 in relation to Art. 46 and Art. 71:

Participation/stage	Consummated	Frustrated	Attempt
Principal	P	1	2
Accomplice	1	2	3
Accessory	2	3	4
			P = penalty prescribed; # = degrees lower from P

ARTICLE 70. *Successive Service of Sentences.* — When the culprit has to serve two or more penalties, he shall serve them simultaneously if the nature of the penalties will so permit otherwise, the following rules shall be observed:

In the imposition of the penalties, the order of their respective severity shall be followed so that they may be executed successively or as nearly as may be possible, should a pardon have been granted as to the penalty or penalties first imposed, or should they have been served out.

For the purpose of applying the provisions of the next preceding paragraph the respective severity of the penalties shall be determined in accordance with the following scale:

1. Death.
2. Reclusión perpetua.
3. Reclusión temporal
4. Prisión mayor.
5. Prisión correccional .
6. Arresto mayor.
7. Arresto menor.

A person sentenced to destierro who is also sentenced to the penalty of prisión or arresto shall be required to serve these latter penalties before serving the penalty of destierro.

Art. 25	Art. 71	Art. 70
Determine which penalty is capital, afflictive, correctional, light, common penalty and which accessory penalty goes with principal penalty For purposes of Art. 9, relevant to Arts. 16 and 48	Determine which penalty is higher or lower; relevant in privileged mitigating circumstance or felonies under Book 2 with penalties with one degree higher than what is provided by law	Successive service of sentences Not imposition of penalty but **service** of penalty

c. Penalty Imposed

- How it arrives in the penalty imposed: consider Indeterminate Sentence Law
    - It gives the judge discretion in sentencing an offender

Acts No. 4103 Indeterminate Sentence Law

SECTION 1. Hereafter, in imposing a prison sentence for an offense punished by acts of the Philippine Legislature, otherwise than by the Revised Penal Code, the court shall order the accused to be imprisoned for a minimum term, which shall not be less than the minimum term of imprisonment provided by law for the offense, and for a maximum term which shall not exceed the maximum fixed by law; and where the offense is punished by the Revised Penal Code, or amendments thereto, the court shall sentence the accused to such maximum as may, in view of attending circumstances, be properly imposed under the present rules of the said Code, and to a minimum which shall not be less than the minimum imprisonment period of the penalty next lower to that prescribed by said Code for the offense. Except as provided in section two hereof, any person who shall have been so convicted and sentenced and shall have served the minimum sentence imposed hereunder, may be released on parole in accordance with the provisions of this Act.

SECTION 2. This Act shall not apply to persons convicted of offenses punished with death penalty or life imprisonment; to those convicted of treason, conspiracy or proposal to commit treason; to those convicted of misprision of treason, sedition or espionage; to those convicted of piracy; to those who are habitual delinquents; to those who shall have escaped from confinement or evaded sentence; to those who having been granted conditional pardon by the Chief Executive shall have violated the terms thereof; to those whose maximum term of imprisonment does not exceed one year; nor to those already sentenced by final judgment at the time of approval of this Act except as provided in section five hereof.

- Sec. 1: How to apply the indeterminate sentence law
    - If covered by RPC
        - Maximum and minimum range <u>of indeterminate sentence</u>
            - Not the same as maximum and minimum of the penalty
            - **Maximum: obtained from penalty <u>imposable</u> (in view of circumstances; Art. 64)**
                - Significance: judge cannot go beyond that
            - **Minimum: penalty lower than one degree to the penalty <u>prescribed</u>**
                - It starts with the minimum period of the penalty lower in degree
    - If punished by any special law
        - Maximum term: taken from maximum fixed by law
        - Minimum term: not be less than minimum fixed by law
- Sec. 2: Which offenses not subject to indeterminate sentence law
- Why is it indeterminate: judge can impose any period within the minimum and maximum range
- Indeterminate sentence is pro reo = beneficial to the accused
    - How
        - For RPC, reduced by one degree
        - Judge cannot go beyond maximum range
        - Once the minimum range is served, person can apply for parole

d. Penalty Served

B. Penalties Imposable and Measures Not Considered Penalty

a. Principal

(1) Indivisible

- People v. Gattward: provided the rule that despite its duration, reclusion perpetua as amended in 1994, remains to be indivisible
- Reclusion perpetua is the only penalty that involves imprisonment that is indivisible
- Destierro is also indivisible

ARTICLE 47. *In What Cases the Death Penalty Shall Not Be Imposed.* — The death penalty shall be imposed in all cases in which it must be imposed under existing laws, except in the following cases.

1. When the guilty person be more than seventy years of age.
2. When upon appeal or revision of the case by the Supreme Court, all the members thereof are not unanimous in their voting as to the propriety of the imposition of the death penalty. For the imposition of said penalty or for the confirmation of a judgment of the inferior court imposing the death sentence, the Supreme Court shall render its decision per curiam, which shall be signed by all justices of said court, unless some member or members thereof shall have become disqualified from taking part in the consideration of the case, in which event the unanimous vote and signature of only the remaining justices shall be required.

ARTICLE 27. Reclusion perpetua. - The penalty of reclusion perpetua shall be from twenty years and one day to forty years.

Reclusion temporal. - The penalty of reclusion temporal shall be from twelve years and one day to twenty years.

Prision mayor and temporary disqualification. - The duration of the penalties of prision mayor and temporary disqualification shall be from six years and one day to twelve years, except when the penalty of disqualification is imposed as an accessory penalty, in which case, it shall be that of the principal penalty.

Prision correccional, suspension, and destierro. - The duration of the penalties of prision correccional, suspension, and destierro shall be from six months and one day to six years, except when the suspension is imposed as an accessory penalty, in which case, its duration shall be that of the principal penalty.

Arresto mayor. - The duration of the penalty of arresto mayor shall be from one month and one day to six months.

Arresto menor. - The duration of the penalty of arresto menor shall be from one day to thirty days.

Bond to keep the peace. - The bond to keep the peace shall be required to cover such period of time as the court may determine.

ARTICLE 63. *Rules for the application of indivisible penalties.*— In all cases in which the law prescribes a single indivisible penalty, it shall be applied by the courts regardless of any mitigating or aggravating circumstances that may have attended the commission of the deed.

In all cases in which the law prescribes a penalty composed of two indivisible penalties, the following rules shall be observed in the application thereof:

1. When in the commission of the deed there is present only one aggravating circumstance, the greater penalty shall be applied.
2. When there are neither mitigating nor aggravating circumstances and there is no aggravating circumstance, the lesser penalty shall be applied.
3. When the commission of the act is attended by some mitigating circumstances and there is no aggravating circumstance, the lesser penalty shall be applied.
4. When both mitigating and aggravating circumstances attended the commission of the act, the court shall reasonably allow them to offset one another in consideration of their number and importance, for the purpose of applying the penalty in accordance with the preceding rules, according to the result of such compensation.

- If penalty is indivisible: penalty is applied regardless of aggravating or mitigating circumstances; the circumstances will not affect the duration of imprisonment to be imposed

(2) Divisible

- Duration can be divided into three equal parts because they have definite starting point and end point
    - Minimum, medium, maximum

ARTICLE 76. *Legal Period of Duration of Divisible Penalties.* — The legal period of duration of divisible penalties shall be considered as divided into three parts, forming three periods, the minimum, the medium, and the maximum in the manner shown in the following table:

TABLE SHOWING THE DURATION OF DIVISIBLE PENALTIES AND THE TIME INCLUDED IN EACH OF THEIR PERIODS

Penalties	*Time (entirety)*	*Time (minimum period)*	*Time (medium period)*	*Time (maximum period)*
Reclusion temporal	From 12 years and 1 day to 20 years	From 12 years and 1 day to 14 years and 8 months	From 14 years, 8 months and 1 day to 17 years and 4 months	From 17 years, 4 months and 1 day to 20 years
Prision mayor, absolute disqualification and special temporary disqualification	From 6 years and 1 day to 12 years	From 6 years and 1 day to 8 years	From 8 years and 1 day to 10 years	From 10 years and 1 day to 12 years
Prisión correccional, suspension and destierro	From 6 months and 1 day to 6 years	From 6 months and 1 day to 2 years and 4 months	From 2 years, 4 months and 1 day to 4 years and 2 months	From 4 years, 2 months and 1 day to 6 years
Arresto mayor	From 1 month and 1 day to 6 months	From 1 to 2 months	From 2 months and 1 day to 4 months	From 4 months and 1 day to 6 months
Arresto menor	From 1 to 30 days	From 1 to 10 days	From 11 to 20 days	From 21 to 30 days

ARTICLE 77. *When the Penalty is a Complex One Composed of Three Distinct Penalties.* — In cases in which the law prescribes a penalty composed of three distinct penalties, each one shall form a period; the lightest of them shall be the minimum, the next the medium, and the most severe the maximum period.

Whenever the penalty prescribed does not have one of the forms specially provided for in this book, the periods shall be distributed, applying by analogy the prescribed rules.

ARTICLE 65. *Rule in Cases in Which the Penalty is Not Composed of Three Periods.* — In cases in which the penalty prescribed by law is not composed of three periods, the courts shall apply the rules contained in the foregoing articles, dividing into three equal portions the time included in the penalty prescribed, and forming one period of each of the three portions.

Meaning of the rule

1. Compute and determine first the three periods of the entire penalty.
2. The time included in the penalty prescribed should be divided into three equal portions, after subtracting the minimum (eliminate the 1 day) from the maximum of the penalty.
3. The minimum of the minimum period should be the minimum of the given penalty (including the 1 day).
4. The quotient should be added to the minimum prescribed (eliminate the 1 day) and the total will represent the maximum of the minimum period.
   Take the maximum of the minimum period, add 1 day, and make it the minimum of the medium period; then add the quotient to the minimum (eliminate the 1 day) of the medium period, and the total will represent the maximum of the medium period.
   Take the maximum of the medium period, add 1 day, and make it the minimum of the maximum period; then add the quotient to the minimum (eliminate the 1 day) of the maximum period, and the total will represent the maximum of the maximum period.

ARTICLE 64. *Rules for the application of penalties which contain three periods.* — In cases in which the penalties prescribed by law contain three periods, whether it be a single divisible penalty or composed of three different penalties, each one of which forms a period in accordance with the provisions of Articles 76 and 77, the court shall observe for the application of the penalty the following rules, according to whether there are or are not mitigating or aggravating circumstances:

1. When there are neither aggravating nor mitigating circumstances, they shall impose the penalty prescribed by law in its medium period.
2. When only a mitigating circumstances is present in the commission of the act, they shall impose the penalty in its minimum period.
3. When an aggravating circumstance is present in the commission of the act, they shall impose the penalty in its maximum period.
4. When both mitigating and aggravating circumstances are present, the court shall reasonably offset those of one class against the other according to their relative weight.
5. When there are two or more mitigating circumstances and no aggravating circumstances are present, the court shall impose the penalty next lower to that prescribed by law, in the period that it may deem applicable, according to the number and nature of such circumstances.
6. Whatever may be the number and nature of the aggravating circumstances, the courts shall not impose a greater penalty than that prescribed by law, in its maximum period.
7. Within the limits of each period, the court shall determine the extent of the penalty according to the number and nature of the aggravating and mitigating circumstances and the greater and lesser extent of the evil produced by the crime.

- To arrive at the penalty imposable under the circumstances, you have to considered the circumstances **alleged and proven**
- No mitigating and aggravating circumstances = medium
- Mitigating present and no aggravating = minimum
- Aggravating present and no mitigating = maximum
- Both mitigating and aggravating = cancel each other out
  - Unless it is a privilege mitigating circumstance
    - Privileged mitigating circumstance cannot be offset by any aggravating circumstance
- Two or more mitigating and no aggravating = penalty next lower to what is prescribed
  - You can find the degree lower in Art. 71

When Art. 64 is not applicable?

1. Indivisible penalties
2. Penalties prescribed by special laws
3. Fines

(3) Alternative Penalties

a. Arresto Mayor and Arresto Menor

ARTICLE 88(a). *Community Service.* - The court in the discretion may, in lieu of service in jail, require that the penalties of arresto menor and arresto mayor may be served by the defendant by rendering community service in the place where the crime was committed, under such terms as the court shall determine, taking into consideration the gravity of offense and the circumstances of the case, which shall be under the supervision of a probation officer: Provided, That the court will prepare an order imposing the community service, specifying the number of hours to be worked and the period within which to complete the service. The order is then referred to the assigned probation officer who shall have responsibility of the defendant.

The defendant shall likewise be required to undergo rehabilitative counseling under the social welfare and development office of the city or municipality concerned with the assistance of the Department of Social Welfare and Development (DSWD). In requiring community service, the court shall consider the welfare of the society and the reasonable probability that the person sentenced shall not violate the law while rendering a public service.

Community service shall consist of any actual physical activity which inculcates civic consciousness, and is intended towards the improvement of a public work or promotion of a public service.

If the defendant violates the terms of the community service, the court shall order his/her re-arrest and the defendant shall serve the full term of the penalty, as the case may be, in jail, or in the house of the defendant as provided under Article 88. However, if the defendant has fully complied with the terms of the community service, the court shall order the release of the defendant unless detained for some other offenses.

The privilege of rendering community service in lieu of service in jail shall be availed of only once.

Community Service Act, RA 11362

AN ACT AUTHORIZING THE COURT TO REQUIRE COMMUNITY SERVICE IN LIEU OF IMPRISONMENT FOR THE PENALTIES OF ARRESTO MENOR AND ARRESTO MAYOR, AMENDING FOR THE PURPOSE CHAPTER 5, TITLE 3, BOOK 1 OF ACT NO. 3815, AS AMENDED, OTHERWISE KNOWN AS "THE REVISED PENAL CODE"

- A person who is convicted and sentenced to penalty of arresto mayor or arresto menor may instead of serving imprisonment be ordered to do community service
- Caveat: it can only be availed of once
- New provision: Art. 88(a) to be integrated in RPC

AM No. 20-06-14-SC

GUIDELINES IN THE IMPOSITION OF COMMUNITY SERVICE AS PENALTY IN LIEU OF IMPRISONMENT

(4) Effect of Cybercrime Protection Act

Cybercrime Prevention Act of 2012, RA 10175.

SECTION 6. All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act: Provided, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.

b. Accessory Penalties

ARTICLE 40. Death — Its Accessory Penalties. — The death penalty, when it is not executed by reason of commutation or pardon shall carry with it that of perpetual absolute disqualification and that of civil interdiction during thirty years following the date of sentence, unless such accessory penalties have been expressly remitted in the pardon.

ARTICLE 41. Reclusión Perpetua and Reclusión Temporal — Their accessory penalties. — The penalties of reclusión perpetua and reclusión temporal shall carry with them that of civil interdiction for life or during the period of the sentence as the case may be, and that of perpetual absolute disqualification which the offender shall suffer even though pardoned as to the principal penalty, unless the same shall have been expressly remitted in the pardon.

ARTICLE 42. Prisión Mayor — Its Accessory Penalties. — The penalty of prisión mayor shall carry with it that of temporary absolute disqualification and that of perpetual special disqualification from the right of suffrage which the offender shall suffer although pardoned as to the principal penalty, unless the same shall have been expressly remitted in the pardon.

ARTICLE 43. Prisión Correccional — Its Accessory Penalties. — The penalty of prisión correccional shall carry with it that of suspension from public office, from the right to follow a profession or calling, and that of perpetual special disqualification from the right of suffrage, if the duration of said imprisonment shall exceed eighteen months. The offender shall suffer the disqualification provided in this article although pardoned as to the principal penalty, unless the same shall have been expressly remitted in the pardon.

ARTICLE 44. Arresto — Its Accessory Penalties. — The penalty of arresto shall carry with it that of suspension of the right to hold office and the right of suffrage during the term of the sentence.

ARTICLE 45. Confiscation and Forfeiture of the Proceeds or Instruments of the Crime. — Every penalty imposed for the commission of a felony shall carry with it the forfeiture of the proceeds of the crime and the instruments or tools with which it was committed.

Such proceeds and instruments or tools shall be confiscated and forfeited in favor of the Government, unless they be the property of a third person not liable for the offense, but those articles which are not subject of lawful commerce shall be destroyed.

Art. 40-44

Outline of accessory penalties inherent in principal penalties

- Death, when not executed by reason of commutation or pardon — (1) perpetual absolute disqualification; and (2) civil interdiction for 30 years, if not expressly remitted in the pardon
- Reclusion perpetua and reclusion temporal — (1) civil interdiction for life or during the sentence; and (2) perpetual absolute disqualification, unless expressly remitted in the pardon of the principal penalty
- Prision mayor — (1) temporary absolute disqualification; and (2) perpetual special disqualification from suffrage, unless expressly remitted in the pardon of the principal penalty
- Prision correccional — (1) suspension from public office, profession or calling, and (2) perpetual special disqualifica- tion from suffrage, if the duration of imprisonment exceeds 18 months, unless expressly remitted in the pardon of the principal penalty
    - Note: There is perpetual special disqualification from suffrage, only when the duration of the imprisonment exceeds 18 months
- Arresto — suspension of the right to hold office and the right of suffrage during the term of the sentence

Destierro has no accessory penalty

- The Code does not provide for any accessory penalty for destierro

Is there an accessory penalty attached to death penalty?

- None, for obvious reasons
- It is only when the death penalty is not executed by reason of commutation or pardon that the accessory penalty provided for in Art. 40 shall be suffered by the convict.

Unless expressly remitted in the pardon

- The accessory penalties mentioned in Articles 40 to 43 must be suffered by the offender, although pardoned as to the principal penalties. To be relieved of the accessory penalties, the same must be expressly remitted in the pardon

Persons who served out the penalty may not have the right to exercise the right of suffrage

- Absolute pardon for any crime for which one year imprisonment or more was meted out restores the prisoner to his political rights. Where the penalty is less than one year, disqualification does not attach, except when the crime committed is one against property. For illustrations: (1) A was prosecuted for physical injuries and condemned to suffer 10 months imprisonment.

Though not pardoned, he is not disqualified. (2) B was prosecuted for theft and sentenced to imprisonment for 10 months. He cannot vote unless he is pardoned. (3) C was prosecuted and sentenced to 4 years for physical injuries, or estafa. C has to be pardoned if he is to exercise the right of suffrage. The nature of the crime is immaterial when the penalty imposed is one year imprisonment or more. (Pendon vs. Diasnes, 91 Phil. 848, explaining paragraphs a and b of Section 99 of Rep. Act No. 180, as amended by Rep. Act No. 599)

Accessory penalties need not be expressly imposed; they are deemed imposed

- The accessory penalties are understood to be always imposed upon the offender by the mere fact that the law fixes a certain penalty for a given crime
- Article 73 provides that whenever the courts shall impose a penalty which, by provision of law, carries with it other penalties, according to the provisions of Articles 40, 41, 42, 43, 44, and 45 of this Code, it must be understood that the accessory penalties are also imposed upon the convict
- Thus, when the law provides that those guilty of homicide shall be punished by reclusion temporal, it is understood that it includes civil interdiction during the period of the sentence and perpetual absolute disqualification

Accessory penalties do not determine jurisdiction

- The accused was charged with estafa, and was sentenced to arresto mayor with the accessory penalty of suspension from public office and the right of suffrage during the term of his sentence by the justice of the peace court.
- The accused raised the question of jurisdiction of the justice of the peace court.
    - Held: The justice of the peace court has jurisdiction. The acces- sory penalties do not affect the jurisdiction of the court in which the information is filed, because they do not modify, or alter the nature of the penalty provided by the law. What determines jurisdiction in criminal cases is the extent of the principal penalty which the law imposes for the crime charged in the information or complaint. (People vs. Fajardo, supra; People vs. Caldito, supra)
    - Note: Under Sec. 2 of R.A. No. 7691, the MTC has exclusive original jurisdiction over offenses punishable with im- prisonment not exceeding 6 years irrespective of the amount of the fine, and regardless of other imposable accessory or other penalties, including the civil liability arising from such offenses or predicated thereon, irre- spective of kind, nature, value or amount thereof.

Art. 45

Outline of the provision of this article

- Every penalty imposed carries with it the forfeiture ofthe proceeds ofthe crime and the instruments or tools used in the commission of the crime.
- The proceeds and instruments or tools of the crime are confiscated and forfeited in favor of the Government.
- Property of a third person not liable for the offense, is not subject to confiscation and forfeiture.
- Property not subject of lawful commerce (whether it belongs to the accused or to third person) shall be destroyed.

No forfeiture where there is no criminal case

- Where the slot machines were seized under a search warrant and there is no criminal case as yet against their operator for viola- tion of the gambling law, and there is only a civil case brought by the operator to enjoin the municipal officials from banning the operation of the slot machines, the court cannot order the destruction of the machines as not subject of lawful commerce. (Philips vs. Municipal Mayor, 105 Phil. 1344 [Unrep.], No. L-9183, May 30, 1959)
- The ruling is based on the phrase "every penalty imposed." A penalty cannot be imposed unless there is a criminal case filed, the case is tried, and the accused is convicted.
- The forfeiture of the proceeds or instruments of the crime cannot be ordered if the accused is acquitted, because no penalty is imposed.

Confiscation and forfeiture are additional penalties

- After several defendants had pleaded guilty to a charge of gam- bling, the court sentenced each of them to pay a fine. Immediately after the sentence was read to them, they paid the fine. Subsequently, the fiscal discovered that a certain sum of money used by the defendants in gambling had not been ordered confiscated. He moved the court to modify the judgment by issuing an order confiscating the money. Can the court properly issue such order? No, because the confiscation of the money is an additional penalty and as the sentence has become final, the court cannot modify, alter or change that sentence. (U.S. vs. Hart, 24 Phil. 578, 581-582)
- This Court has held in People vs. Alejandro Paet y Velasco Phil. 357, that where the penalty imposed did not include the confiscation of the dollars involved, the confiscation or forfeiture of the said dollars as is sought in the Government's appeal, would be an additional penalty and would amount to an increase of the penalty already imposed, thereby placing the accused in double jeopardy. And under Rule 118 (now Rule 122), Section 2, of the Rules of Court, the Government cannot appeal in a criminal case if the defendant would be placed thereby in double jeopardy. (People vs. Sanchez, 101 Phil. 745, 747-748)

When the accused has appealed, confiscation and forfeiture not ordered by the trial court, may be imposed by the appellate court

- Article 45 of the Revised Penal Code (providing for the confiscation or forfeiture of the instruments or tools employed in the commission of a crime) has repeatedly been applied to crimes penalized by special laws, in default of a contrary mandate therein. While this Court in the case of People vs. Paet, 53 O.G. 668 and People vs. Sanchez, supra, refused to entertain the Government's appeal from the refusal of the Court to decree such a forfeiture, it did so, not because Art. 45 of the Penal Code did not apply but exclusively on the ground that in a criminal case wherein the accused had not appealed, no appeal can be interposed by the Government with a view to increasing the penalty imposed by the Court below; and confiscation being an additional penalty, the accused would be placed twice in jeopardy of punishment for the same offense, should the Government's appeal be entertained. But in the present case, the accused's own appeal has removed all bars to the review and correction of the penalty imposed by the court below, even if an increase thereof should be the result. Judgment modified by ordering that the unlicensed money found in the possession of the appellant be declared forfeited to the Government. (People vs. Exconde, 101 Phil. 1125, 1133-1134)

c. Measures not considered penalty

ARTICLE 24. Measures of Prevention or Safety Which are Not Considered Penalties. — The following shall not be considered as penalties:
1. The arrest and temporary detention of accused persons, as well as their detention by reason of insanity or imbecility, or illness requiring their confinement in a hospital.
2. The commitment of a minor to any of the institutions mentioned in article 80 and for the purposes specified therein.
3. Suspension from the employment or public office during the trial or in order to institute proceedings.
4. Fines and other corrective measures which, in the exercise of their administrative or disciplinary powers, superior officials may impose upon their subordinates.
5. Deprivation of rights and the reparations which the civil laws may establish in penal form.

As well as their detention by reason of insanity or imbecility

- This paragraph does not refer to the confinement of an insane or imbecile who has not been arrested for a crime. It refers to "accused persons" who are detained "by reason of insanity or imbecility." The word "their" in the second clause of paragraph No. 1, refers to "accused persons" in the first clause

Why are they not considered penalties?

- They are not penalties because they are not imposed as a result of judicial proceedings. Those mentioned in paragraphs Nos. 1,3 and 4 are merely preventive measures before conviction of offenders
- The commitment of a minor mentioned in paragraph 2 is not a penalty, because it is not imposed by the court in a judgment of conviction. The imposition of the sentence in such case is suspended

The fines mentioned in this article should not be imposed by the court

- The "fines" mentioned in paragraph 4 are not imposed by the court, because when imposed by the court, they constitute a penalty (See Art. 25)
- The Commissioner of Civil Service may, on certain grounds, fine an employee in an amount not exceeding six months' salary.

Example of deprivation of rights established in penal form

- The deprivation of rights established in penal form by the civil laws is illustrated in the case of parents who are deprived of their parental authority if found guilty of the crime of corruption of their minor children, in accordance with Art. 332 of the Civil Code

ARTICLE 247. Death or Physical Injuries Inflicted Under Exceptional Circumstances. — Any legally married person who, having surprised his spouse in the act of committing sexual intercourse with another person, shall kill any of them or both of them in the act or immediately thereafter, or shall inflict upon them any serious physical injury, shall suffer the penalty of destierro.

FAMILY CODE

ARTICLE 228. Parental authority terminates permanently:
(1) Upon the death of the parents;
(2) Upon the death of the child; or
(3) Upon emancipation of the child.

ARTICLE 229. Unless subsequently revived by a final judgment, parental authority also terminates:
(1) Upon adoption of the child;
(2) Upon appointment of a general guardian;
(3) Upon judicial declaration of abandonment of the child in a case filed for the purpose;
(4) Upon final judgment of a competent court divesting the party concerned of parental authority; or
(5) Upon judicial declaration of absence or incapacity of the person exercising parental authority.

d. Relationship between penalty and civil liability for damages

ARTICLE 100. Civil Liability of Person Guilty of Felony. — Every person criminally liable for a felony is also civilly liable.

ARTICLE 104. What is Included in Civil Liability. — The civil liability established in articles 100, 101, 102, and 103, of this Code includes:
1. Restitution;
2. Reparation of the damage caused;
3. Indemnification for consequential damages.

ARTICLE 105. Restitution — How Made. — The restitution of the thing itself must be made whenever possible, with allowance for any deterioration or diminution of value as determined by the court.
The thing itself shall be restored, even though it be found in the possession of a third person who has acquired it by lawful means, saving to the latter his action against the proper person, who may be liable to him.
This provision is not applicable in cases in which the thing has been acquired by the third person in the manner and under the requirements which, by law, bar an action for its recovery.

ARTICLE 106. Reparation — How Made. — The court shall determine the amount of damage, taking into consideration the price of the thing, whenever possible, and its special sentimental value to the injured party, and reparation shall be made accordingly.

ARTICLE 107. Indemnification — What is Included. — Indemnification for consequential damages shall include not only those caused the injured party, but also those suffered by his family or by a third person by reason of the crime.

Persons Civilly Liable for Felonies *(title 5 chapter 1 reyes book 1)*

- As a general rule, an offense causes two classes of injuries:

- Social injury, produced by the disturbance and alarm which are the outcome of the offense.
- Personal injury, caused to the victim of the crime who may have suffered damage, either to his person, to his property, to his honor, or to her chastity.

- The social injury is sought to be repaired through the imposition of the corresponding penalty; while the personal injury, through indemnity, which is civil in nature

What Civil Liability Includes *(title 5 chapter 2 reyes book 1)*

Table 7. Penalties

Name	Nature	Period	Accessory Penalties	Relevant Laws/Cases
Death	Capital Indivisible, Grave		Art. 40	AN ACT PROHIBITING THE IMPOSITION OF DEATH PENALTY IN THE PHILIPPINES, **RA 9349.** People v. Bon
Reclusion Perpetua	Afflictive Indivisible, Grave	20 years 1 day to 40 years	Art. 41	Arts. 9, 27, 70, 71 People v. Gatward People v. Malakas
Life Imprisonment (LI) *(LI and RP are the same only for the purposes of the Indeterminate Sentence Law - People v. Lusa)*		No definite duration Dependent on law providing for the penalty		COMPREHENSIVE DANGEROUS DRUGS ACT OF 2002, **RA 9165** People v. Gatward, supra People v. Medina, Jr People v. Ballabare People v. Gregorio People v. Malakas People v. Lusa (cf People v. Saberola)
Life Imprisonment without Parole		Not provided		**RA 9349 SECTION 3.** Person convicted of offenses punished with reclusion perpetua, or whose sentences will be reduced to reclusion perpetua, by reason of this Act, shall not be eligible for parole under Act No. 4180, otherwise known as the Indeterminate Sentence Law, as amended.
40 Years without Parole		Not provided		HUMAN SECURITY ACT OF 2007, **RA 9372** **SECTIONS 3 & 4** *(after table)*
Reclusion Temporal	Afflictive Divisible, Grave	12 years 1 day to 20 years	Art. 41	Arts. 9, 25, 27, 70, 71
Prision Mayor		6 years 1 day to 12 years	Art. 42	
Prision Correccional	Correctional Divisible, Less Grave	6 months 1 day to 6 years	Art. 43	
Arresto Mayor		1 month 1 day to 6 months	Art. 44	Arts. 9, 25, 27, 70, 71 Art. 88(a) *(not sure why it's in this part… just based on the syllabus)* COMMUNITY SERVICE ACT, **RA 11362**
Destierro	Correctional Indivisible, Less Grave			Arts. 9, 25, 27, 70, 71 Art. 88(a) People v. Juatan
Arresto Menor	Light Divisible	1 day to 30 days	Art. 44	
Public Censure	Light Indivisible			
Fine	Light Common Penalty to	AN ACT ADJUSTING THE		Arts. 9, 26, 66, 70, 71

	Afflictive Correctional and Light Penalties Divisible	**AMOUNT OR THE VALUE OF PROPERTY AND DAMAGE ON WHICH A PENALTY IS BASED, AND THE FINES IMPOSED UNDER THE REVISED PENAL CODE, RA 10951** Afflictive: > ₱1,200,000 Correctional: Does not exceed ₱1,200,000 but not less than ₱40,000 Light: Less than ₱40,000		People v. Soliman (libel and cyberlibel)
Bond to Keep Peace		Determined by the court		Arts. 9, 25, 27, 35, 70, 71

ARTICLE 9. Grave Felonies, Less Grave Felonies and Light Felonies. — Grave felonies are those to which the law attaches the capital punishment or penalties which in any of their periods are afflictive, in accordance with article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are correctional, in accordance with the abovementioned article.

Light felonies are those infractions of law for the commission of which the penalty of arresto menor or a fine not exceeding 200 pesos or both, is provided.

ARTICLE 25. Penalties Which May Be Imposed. — The penalties which may be imposed, according to this Code, and their different classes, are those included in the following:

Scale
Principal Penalties

Capital punishment:
Death.

Afflictive penalties:
Reclusión perpetua,
Reclusión temporal,
Perpetual or temporary absolute disqualification,
Perpetual or temporary special disqualification,
Prisión mayor.

Correctional penalties:
Prisión correccional,
Arresto mayor,
Suspensión,
Destierro.

Light penalties:
Arresto menor,
Public censure.

Penalties common to the three preceding classes:
Fine, and
Bond to keep the peace.

Accessory Penalties

Perpetual or temporary absolute disqualification,
Perpetual or temporary special disqualification,
Suspension from public office, the right to vote and be voted for, the profession or calling.
Civil interdiction,
Indemnification,
Forfeiture or confiscation of instruments and proceeds of the offense,
Payment of costs.

ARTICLE 26. Fine — When Afflictive, Correctional or Light Penalty. — A fine, whether imposed as a single or as an alternative penalty, shall be considered an afflictive penalty, if it exceeds 6,000 pesos; a correctional penalty, if it does not exceed 6,000 pesos but is not less than 200 pesos; and a light penalty, if it be less than 200 pesos.

ARTICLE 27. Reclusion perpetua. - The penalty of reclusion perpetua shall be from twenty years and one day to forty years.

Reclusion temporal. - The penalty of reclusion temporal shall be from twelve years and one day to twenty years.

Prision mayor and temporary disqualification. - The duration of the penalties of prision mayor and temporary disqualification shall be from six years and one day to twelve years, except when the penalty of disqualification is imposed as an accessory penalty, in which case, it shall be that of the principal penalty.

Prision correccional, suspension, and destierro. - The duration of the penalties of prision correccional, suspension, and destierro shall be from six months and one day to six years, except when the suspension is imposed as an accessory penalty, in which case, its duration shall be that of the principal penalty.

Arresto mayor. - The duration of the penalty of arresto mayor shall be from one month and one day to six months.

Arresto menor. - The duration of the penalty of arresto menor shall be from one day to thirty days.

Bond to keep the peace. - The bond to keep the peace shall be required to cover such period of time as the court may determine.

ARTICLE 35. Effects of Bond to Keep the Peace. — It shall be the duty of any person sentenced to give bond to keep the peace, to present two sufficient sureties who shall undertake that such person will not commit the offense sought to be prevented, and that in case such offense be committed they will pay the amount determined by the court in its judgment, or otherwise to deposit such amount in the office of the clerk of the court to guarantee said undertaking.

The court shall determine, according to its discretion, the period of duration of the bond.

Should the person sentenced fail to give the bond as required he shall be detained for a period which shall in no case exceed six months, if he shall have been prosecuted for a grave or less grave felony, and shall not exceed thirty days, if for a light felony.

ARTICLE 66. Imposition of Fines. — In imposing fines the courts may fix any amount within the limits established by law; in fixing the amount in each case attention shall be given, not only to the mitigating and aggravating circumstances, but more particularly to the wealth or means of the culprit.

ARTICLE 70. Successive Service of Sentences; Exception. — When the culprit has to serve two or more penalties, he shall serve them simultaneously if the nature of the penalties will so permit; otherwise, said penalties shall be executed successively, following the order of their respective severity, which shall be determined in accordance with the following scale:

1. Death.
2. Reclusión perpetua.
3. Reclusión temporal.
4. Prisión mayor.
5. Prisión correccional.
6. Arresto mayor.
7. Arresto menor.

ARTICLE 71. Fine. — The fine shall be considered as the last of all the principal penalties listed in the preceding article.

When a fine is so imposed, the duration of the subsidiary liability corresponding thereto, by reason of the insolvency of the offender, shall not exceed that which is provided in rule 2 of article 39.

ARTICLE 88. Arresto Menor. — The penalty of arresto menor shall be served in the municipal jail, or in the house of the defendant himself under the surveillance of an officer of the law, when the court so provides in its decision, taking into consideration the health of the offender and other reasons which may seem satisfactory to it.

HUMAN SECURITY ACT OF 2007, RA 9372
SECTION 3. Terrorism.- Any person who commits an act punishable under any of the following provisions of the Revised Penal Code:
Article 122 (Piracy in General and Mutiny in the High Seas or in the Philippine Waters);
Article 134 (Rebellion or Insurrection);
Article 134-a (Coup d' Etat), including acts committed by private persons;
Article 248 (Murder);
Article 267 (Kidnapping and Serious Illegal Detention);
Article 324 (Crimes Involving Destruction), or under

Presidential Decree No. 1613 (The Law on Arson);
Republic Act No. 6969 (Toxic Substances and Hazardous and Nuclear Waste Control Act of 1990);
Republic Act No. 5207, (Atomic Energy Regulatory and Liability Act of 1968);
Republic Act No. 6235 (Anti-Hijacking Law);
Presidential Decree No. 532 (Anti-Piracy and Anti-Highway Robbery Law of 1974); and,
Presidential Decree No. 1866, as amended (Decree Codifying the Laws on Illegal and Unlawful Possession, Manufacture, Dealing in, Acquisition or Disposition of Firearms, Ammunitions or Explosives)
thereby sowing and creating a condition of widespread and extraordinary fear and panic among the populace, in order to coerce the government to give in to an unlawful demand shall be guilty of the crime of terrorism and shall suffer the penalty of forty (40) years of imprisonment, without the benefit of parole as provided for under Act No. 4103, otherwise known as the Indeterminate Sentence Law, as amended.

SECTION 4. Conspiracy to Commit Terrorism. - Persons who conspire to commit the crime of terrorism shall suffer the penalty of forty (40) years of imprisonment.

IV. CIRCUMSTANCES AFFECTING PENALTIES TO BE IMPOSED

A. Mitigating Circumstances

Definition of Mitigating Circumstances

- Circumstances which, if present in the commission of the crime, do not entirely free the actor from criminal liability, but serve only to REDUCE the penalty
- Based on the *diminution* of either *freedom* of action, *intelligence*, or *intent*, or on the *lesser perversity* of the offender

Ordinary Mitigating Circumstances - may be offset by any aggravating circumstance and affects the application of the penalty for the crime in its MINIMUM period in case of divisible penalty

RPC, ARTICLE 13. *Mitigating circumstances.*—The following are mitigating circumstances:

1. Those mentioned in the preceding chapter, when all the requisites necessary to justify the act or to exempt from criminal liability in the respective cases are not attendant.
2. That the offender is under eighteen years of age or over seventy years. In the case of the minor, he shall be proceeded against in accordance with the provisions of article 80.
3. That the offender had no intention to commit so grave a wrong as that committed.
4. That sufficient provocation or threat on the part of the offended party immediately preceded the act.
5. That the act was committed in the immediate vindication of a grave offense to the one committing the felony (delito), his spouse, ascendants, descendants, legitimate, natural, or adopted brothers or sisters, or relatives by affinity within the same degrees.
6. That of having acted upon an impulse so powerful as naturally to have produced passion or obfuscation.
7. That the offender had voluntarily surrendered himself to a person in authority or his agents, or that he had voluntarily confessed his guilt before the court prior to the presentation of the evidence for the prosecution.
8. That the offender is deaf and dumb, blind or otherwise suffering some physical defect which thus restricts his means of action, defense, or communication with his fellow beings.
9. Such illness of the offender as would diminish the exercise of the will-power of the offender without however depriving him of consciousness of his acts.
10. And, finally, any other circumstance of a similar nature and analogous to those above mentioned.

RPC, ARTICLE 62. *Effect of the attendance of mitigating or aggravating circumstances and of habitual delinquency.*

Section 3. – Aggravating or mitigating circumstances which arise from the moral attributes of the offender, or from his private relations with the offended party, or from any other personal cause, shall only serve to aggravate or mitigate the liability of the principals, accomplices and accessories as to whom such circumstances are attendant.

Section 4. –The circumstances which consist in the material execution of the act, or in the means employed to accomplish it, shall serve to aggravate or mitigate the liability of those persons only who had knowledge of them at the time of the execution of the act or their cooperation therein.

Privilege Mitigating Circumstances - may NOT be offset by an aggravating circumstance and affects the imposition upon the offender the penalty LOWER by one of two degrees than that provided by law for the crime

RPC, ARTICLE 68. *Penalty to be imposed upon a person under eighteen years of age*.—When the offender is a minor under eighteen years and his case is one coming under the provisions of the paragraph next to the last of article 80 of this Code, the following rules shall be observed:

1. Upon a person under fifteen but over nine years of age, who is not exempted from liability by reason of the court having declared that he acted with discernment, a discretionary penalty shall be imposed, but always lower by two degrees at least than that prescribed by law for the crime which he committed.

2. Upon a person over fifteen and under eighteen years of age the penalty next lower than that prescribed by law shall be imposed, but always in the proper period.

RPC, ARTICLE 69. – ***Penalty to be imposed when the crime committed is not wholly excusable***.—A penalty lower by one or two degrees than that prescribed by law shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required to justify the same or to exempt from criminal liability in the several cases mentioned in articles 11 and 12, provided that the majority of such conditions be present. The courts shall impose the penalty in the period which may be deemed proper, in view of the number and nature of the conditions of exemption present or lacking.

Specific Circumstances

1. Incomplete Justification / Exemption
   - Justifying and exempting circumstances mentioned in Chapter Two of Title One
     - Incomplete Self-Defense
     - Incomplete Justifying Circumstance of Avoidance of Greater Evil
     - Incomplete Justifying Circumstance of Performance of Duty
     - Incomplete Exempting Circumstance of Minority
     - Incomplete Exempting Circumstance of Accident
     - Incomplete Exempting Circumstance of Uncontrollable Fear
   - But if the nature of the circumstance is not capable of being incomplete, then it can't apply
2. Under 18 or over 70 years of age
   - Repealed by R.A. 9344
3. No Intention to Commit So Grave a Wrong
   - Disproportion between means employed to execute the act and its execution
   - Internal state judged by external acts
     - Ex. location or manner of wound - determines intent to wound or kill
4. Sufficient Provocation or Threat
   - Sufficient provocation or threat immediate preceded the act

- Adequate to excite a person to commit the wrong and accordingly proportionate to its gravity
- Aggression is in retaliation, not a self-defense but can claim this circumstance
- Provocation MUST come from the offended party

5. Immediate Vindication of a Grave Offense
   - Grave offense must be before the act, proximate and proportionate to the damage caused by the act
     - Directed to the accused or the others enumerated in this item
   - Provocation: made to the person committing the felony
   - Vindication: done to offender's relatives, can have lapse of time
     - Gravity of offense: to be determined by the Court
6. Passion or Obfuscation
   - Only applies when arising from lawful sentiments
     - Act should not be lawless or in the spirit of revenge
     - Offended party has to be the one who caused such passion or obfuscation
7. Voluntary Surrender
   - Surrender to person in authority by the accused himself
   - Should be spontaneous - inner impulse of accused, not motivated by external stimulus
   - Surrender must be by reason of the commission of the crime for which he is persecuted
8. Plea of Guilt
   - Must also be spontaneous and made BEFORE the trial begins, not on appeal
   - Made at the court of competent jurisdiction
9. Physical Defects
   - Must restrict means of action, defense, or communication with fellow beings
     - Armless, cripple, stutterer, etc.
10. Illness
    - Refers to diseases of pathological state that trouble conscience or will
      - Diminution of intelligence and intent
11. Analogous Mitigating Circumstances
    - Must be similar of analogous to those mentioned above

B. Aggravating Circumstances

RPC, ARTICLE 14. *Aggravating circumstances.* - The following are aggravating circumstances:

1. That advantage be taken by the offender of his public position.
2. That the crime be committed in contempt or with insult to the public authorities.
3. That the act be committed with insult or in disregard of the respect due the offended party on account of his rank, age, or sex, or that is be committed in the dwelling of the offended party, if the latter has not given provocation.
4. That the act be committed with abuse of confidence or obvious ungratefulness.
5. That the crime be committed in the palace of the Chief Executive or in his presence, or where public authorities are engaged in the discharge of their duties, or in a place dedicated to religious worship.
6. That the crime be committed in the night time, or in an uninhabited place, or by a band, whenever such circumstances may facilitate the commission of the offense.
7. Whenever more than three armed malefactors shall have acted together in the commission of an offense, it shall be deemed to have been committed by a band.
8. That the crime be committed on the occasion of a conflagration, shipwreck, earthquake, epidemic or other calamity or misfortune.
9. That the crime be committed with the aid of armed men or persons who insure or afford impunity.

   That the accused is a recidivist.

   A recidivist is one who, at the time of his trial for one crime, shall have been previously convicted by final judgment of another crime embraced in the same title of this Code.

10. That the offender has been previously punished by an offense to which the law attaches an equal or greater penalty or for two or more crimes to which it attaches a lighter penalty.
11. That the crime be committed in consideration of a price, reward, or promise.
12. That the crime be committed by means of inundation, fire, poison, explosion, stranding of a vessel or international damage thereto, derailment of a locomotive, or by the use of any other artifice involving great waste and ruin.
13. That the act be committed with evidence premeditation.
14. That the craft, fraud or disguise be employed.
15. That advantage be taken of superior strength, or means be employed to weaken the defense.
16. That the act be committed with treachery (alevosia).
17. There is treachery when the offender commits any of the crimes against the person, employing means, methods, or forms in the execution thereof which tend directly and specially to insure its execution, without risk to himself arising from the defense which the offended party might make.

    That means be employed or circumstances brought about which add ignominy to the natural effects of the act.

18. That the crime be committed after an unlawful entry.

    There is an unlawful entry when an entrance is effected by a way not intended for the purpose.

19. That as a means to the commission of a crime a wall, roof, floor, door, or window be broken.

20. That the crime be committed with the aid of persons under fifteen years of age or by means of motor vehicles, motorized watercraft, airships, or other similar means. (As amended by RA 5438).
21. That the wrong done in the commission of the crime be deliberately augmented by causing other wrong not necessary for its commission.

Definition: Those which, if attendant in the commission of the crime, serve to increase the penalty without, however, exceeding the maximum of the penalty provided by law for the offense.

Unlike mitigating circumstances, Art. 14 has no 'catch all paragraph' (i.e., analogous or similar circumstances) because of the principle of in dubio pro reo.

Basis: *Based on the greater perversity* of the offender manifested in the commission of the felony as shown by:
(1) The motivating power itself;
(2) The place of commission;
(3) The means and ways employed;
(4) The time; or
(5) The personal circumstances of the offender, or of the offended party.

Four Kinds of Aggravating Circumstances

Kind	Definition	Example
1. Generic	Those that can generally apply to all crimes.	Nos. 1, 2, 3 (dwelling), 4, 5, 6, 9, 10, 14, 18, 29, and 20 except by "by means of motor vehicles.
2. Specific	Those that apply only to particular crimes.	Nos. 3 (except dwelling), 15, 16, 17, and 21.
3. Qualifying	Those that change the nature of the crime. (i.e., Art. 248 enumerates the qualifying ACs which qualifies the killing of a person to murder). If two or more possible qualifying circumstances were alleged and proven, only one would qualify the offense and the others would be generic AC.	1. Circumstances of treachery or evident premeditation qualifies the killing of a person to murder [Art. 248] 2. Circumstances of grave abuse of confidence and calamity qualifies the crime of theft to qualified theft [Art. 310] 3. Circumstances of minority or taking advantage of public office qualifies the crime of simple seduction to qualified seduction [Art 337]
4. Inherent	Those that must, of necessity, accompany the commission of the crime [Art. 62, par. 2]	Evident premeditation is inherent in robbery, theft, estafa, adultery and concubinage.

Generic	Specific	Qualifying
As to Penalty Imposed		
Increased the penalty to the maximum period		It places the author of the crime in such a situation as to deserve another penalty, as specially prescribed by law
As to Applicability		
Applicable to ALL crimes	Applicable to particular crimes	Applicable only to relevant provisions where such circumstances were specified
As to the Nature of the Circumstance		
It is not an ingredient of the crime. It only affects the penalty to be imposed.		Circumstance affects the nature of the crime itself such that the offender shall be liable for a more serious crime. Circumstance is actually an ingredient of the crime.
As to being offset		
Can be offset by an ordinary mitigating circumstance		Cannot be offset by any mitigating circumstance

RPC, ARTICLE 62. ***Effects of the attendance of mitigating or aggravating circumstances and of habitual delinquency.*** — Mitigating or aggravating circumstances and habitual delinquency shall be taken into account for the purpose of diminishing or increasing the penalty in conformity with the following rules:

1. Aggravating circumstances which in themselves constitute a crime specially punishable by law or which are included by the law in defining a crime and prescribing the penalty therefor shall not be taken into account for the purpose of increasing the penalty.

1(a). When in the commission of the crime, advantage was taken by the offender of his public position, the penalty to be imposed shall be in its maximum regardless of mitigating circumstances.

The maximum penalty shall be imposed if the offense was committed by any person who belongs to an organized/syndicated crime group.

An organized/syndicated crime group means a group of two or more persons collaborating, confederating or mutually helping one another for purposes of gain in the commission of any crime.

2. The same rule shall apply with respect to any aggravating circumstances inherent in the crime to such a degree that it must of necessity accompany the commission thereof.

3. Aggravating or mitigating circumstances which arise from the moral attributes of the offender, or from his private relations with the offended party, or from any other personal cause, shall only serve to aggravate or mitigate the liability of the principals, accomplices and accessories as to whom such circumstances are attendant.

4. The circumstances which consist in the material execution of the act, or in the means employed to accomplish it, shall serve to aggravate or mitigate the liability of those persons only who had knowledge of them at the time of the execution of the act or their cooperation therein.

5. Habitual delinquency shall have the following effects :

(a) Upon a third conviction the culprit shall be sentenced to the penalty provided by law for the last crime of which he be found guilty and to the additional penalty of prision correccional in its medium and maximum periods;

(b) Upon a fourth conviction, the culprit shall be sentenced to the penalty provided for the last crime of which he be found guilty and to the additional penalty of prision mayor in its minimum and medium periods; and

(c) Upon a fifth or additional conviction, the culprit shall be sentenced to the penalty provided for the last crime of which he be found guilty and to the additional penalty of prision mayor in its maximum period to reclusion temporal in its minimum period.

Notwithstanding the provisions of this article, the total of the two penalties to be imposed upon the offender, in conformity herewith, shall in no case exceed 30 years.

For the purpose of this article, a person shall be deemed to be habitual delinquent, if within a period of ten years from the date of his release or last conviction of the crimes of serious or less serious physical injuries, robo, hurto, estafa or falsification, he is found guilty of any of said crimes a third time or oftener.

(as amended by Republic Act No. 7659, [December 13, 1993])

Aggravating circumstances which do not have the effect of increasing the penalty

1. [Art. 62, par. 1] Aggravating circumstances . . . shall not be taken into account for the purpose of increasing the penalty.
    (a) which in themselves constitute a crime specially punishable by law, or
    (b) which are included by the law in defining a crime and prescribing the penalty therefore

    Examples:
    - A crime committed by means of fire or explosion [Art. 14, par. 12] = **Arson [Art. 321] or Crime involving destruction [Art. 324]**
    - An act committed in the dwelling of the offended party [Art. 14, par. 3] or after unlawful entry [Art. 14, par. 18] or broken wall, roof, floor, door, or window [Art. 14, par. 19] = **Art. 299 in defining robbery in an inhabited house**

2. [Art 62, par. 2] The same rule shall apply with respect to any aggravating circumstance inherent in the crime to such a degree that it must, of necessity, accompany the commission thereof.

    Examples:
    - Evident premeditation is inherent in theft, robbery, estafa, adultery and concubinage.
    - Taking advantage of public position is inherent in crimes where the offenders, who are public officers, committed the crime in the exercise of their functions, such as in bribery, malversation, etc.

Aggravating circumstances which are personal to the offenders

3. [Art 62, par. 3] Aggravating circumstances which arise . . . shall only serve to aggravate the liability of the principals, accomplices, and accessories as to whom such circumstances are attendant.
    (a) from the moral attributes of the offender
    (b) from his private relations with the offended party
    (c) from any other personal cause

    Examples:
    - A, with evident premeditation, gave B Pl.OOO to kill C. B immediately killed C. Evident premeditation is an aggravating circumstance which arises from the moral attribute of A. It shall serve to aggravate only the liability of A, but not that of B.
    - A, stepson of B, killed the latter. C, knowing that A killed B without justification, buried the dead body of B to prevent the discovery of the crime. The private relation of A with B shall serve to aggravate only the liability of A. It

shall not serve to aggravate the liability of C, the accessory. (Art. 19, par. 2)

- A, who was previously convicted by final judgment of theft and served sentence therefor, and B committed robbery. Both were prosecuted and found guilty after trial. Upon his conviction for robbery, A was a recidivist. Recidivism is an aggravating circumstance which arises from personal cause. It shall serve to aggravate only the liability of A, but not that of B.

Aggravating circumstances which depend for their application upon the knowledge of the offenders

4. [Art. 62, par. 4] The circumstances which consist . . . shall serve to aggravate the liability of those persons only who had knowledge of them at the time of the execution of the act or their cooperation therein.
    (a) in the material execution of the act, or
    (b) in the means employed to accomplish it

Illustrations:

- In his house, A ordered B to kill C. A and B did not talk about the manner C would be killed. B left the house of A and looked for C. B found C and killed the latter with treachery. (Art. 14, par. 16) The aggravating circumstance of treachery consists in the material execution of the act. Since A had no knowledge of it, treachery shall only aggravate the liability of B.
- A ordered B and C to kill D, instructing them to wait until nighttime so that the crime could be committed with impunity. B and C killed D at nighttime. Although A did not take direct part in the commission of the crime, the aggravating circumstance of nighttime shall also aggravate his liability, because he had knowledge of it at the time of the execution of the act by B and C.

Aggravating Circumstance	Requisites	Basis
Par. 1. Taking advantage of public office	1. Offender is a public officer 2. Such officer used the Influence, Prestige, or Ascendancy which his office gives him 3. The same was used as means by which he realizes his purpose If the public position is only incidental and does not give him an advantage, then it is not an AC.	Personal circumstance of the offender and the means to secure the commission of the crime
Par. 2. In Contempt of or with insult to public authorities	1. Public authority is engaged in the exercise of his functions 2. Public authority is not the person against whom the crime is committed 3. Offender knows him to be a public authority 4. His presence has not prevented the offender from committing the criminal act	Lack of respect for the public authorities
Par. 3. With insult or lack of regard due to offended party by reason of rank, age, or sex	1. Insult or disregard was made on account of: a. Rank - designation or title used to fix the relative position of the offended party in reference to others. There must be a difference in the social condition of the offender and offended party. b. Age c. Sex - Reyes says this refers to the female sex 2. Such insult or disregard was deliberately inteded	Personal circumstances of the offended party
Par. 3. Dwelling	1. Act was committed in the dwelling, which may pertain to a: a. Building; or b. Structure, which is c. Exclusively used for REST and COMFORT 2. Offended party must not give provocation	Place of the commission of the crime
Par. 4. Abuse of confidence	1. Offended party had Trusted the offender 2. Offender Abused such trust by committing a crime against the offended party 3. The abuse of confidence facilitated the commission of the crime There must be proof of the relationship of confidence or that which gives rise to a sense of gratitude.	Means and ways employed in commission of the crime
Par. 4. Obvious ungratefulness	1. Offended party trusted the offender 2. Offender abused such trust 3. Act was committed with obvious ungratefulness	Means and ways employed in the commission of the crime
Par. 5. In the palace of the Chief Executive or in his presence, or where public authorities are engaged in the discharge of their	Crime was committed: 1. In the Palace of the Chief Executive, or 2. In his Presence, or 3. Where public authorities are engaged in the Discharge of their	Place of the commission of the crime

duties, or in a place dedicated to religious worship	duties, or 4. In a place dedicated to Religious Worship	
Par. 6. Nighttime, uninhabited place, by a band	Circumstances of nighttime, uninhabited place or band: 1. Facilitated the commission of the crime; and 2. Was Especially Sought for by the offender to insure the commission of the crime or for the purpose of impunity "Night time" - not just the time of the day but the COVER OF DARKNESS. The offender should deliberately wait for a particular time (which is dark) so that he would not be discovered, etc. "Uninhabited place" - does not mean "no people" but the inability/improbability of getting assistance even if there are people around. "Band" - more than three armed persons	Time, place, and means of the commission of the crime
Par. 7. On occasion of a Calamity	The offender must take advantage of the calamity or misfortune	Time and place of the commission of the crime
Par. 8. Aid of Armed men or means to ensure impunity	1. That the armed men or persons took part in the Commission of the crime, directly or indirectly; and 2. Accused Availed himself of their Aid or relied upon them when the crime was committed. versus "Band" - Par. 8 does not require that (1) there are more than 3, (2) that all are armed, and (3) conspiracy. It is sufficient that there is AID of armed persons.	Means and ways employed in commission of the crime
Par. 9. Recidivism *Note: discussion on par. 9, 10, quasi-recidivism, and habitual delinquency below.*	1. Offender is on Trial for an offense 2. He was Previously Convicted by final judgment of another crime 3. That both the 1st and 2nd offenses are embraced in the Same title of the Code 4. Offender is Convicted of the new offense	Inclination to commit crime
Par. 10. Reiteracion or Habituality	1. Accused is on Trial for an offense 2. He Previously Served sentence for another offense to which the law attaches a. an equal or greater penalty, or b. For 2 or more crimes to which it attaches lighter penalty than that for the new offense; and 3. That he is Convicted of the new offense.	Inclination to commit crime
Par. 11. Price, reward, or promise	1. There must be Two or more principals a. One who gives or Offers price or promise b. One who Accepts it 2. Price, reward, or promise must be for the purpose of Inducing another to perform the deed The price, reward or promise need not: 1. Consist of or refer to Material things 2. Be Actually Delivered; it being sufficient that the offer made by the principal by inducement was accepted by the principal by direct participation before the commission of the offense The price, reward, or promise must be valuable from the perspective of the offender.	Motivating power
Par. 12. Inundation, fire, poison, explosion, etc.	Crime was committed by means of: 1. Inundation 2. Fire 3. Poison 4. Explosion 5. Stranding of a vessel 6. Intentional damage to a vessel 7. Derailment of a locomotive 8. Any Other artifice involving great waste and ruin This is not exclusive; it just describes the means. If the felony is	Means and ways employed in commission of the crime

	committed by any of these, even though they are not expressly mentioned, then this paragraph may still be appreciated.	
Par. 13. Evident premeditation	Prosecution must prove: 1. Time when the offender determined to commit the crime; 2. An Act manifestly indicating that the culprit has clung to his determination; and 3. A sufficient Lapse of time between the determination and execution, to allow him to reflect upon the consequences of his act and to allow his conscience to overcome the resolution of his will This must be read with par. 15 and 16 because all involve planning to some extent. If passion or obfuscation is proven, then there cannot be evident premeditation (i.e., cannot be a spur of the moment or an emotional response).	Means and ways employed in commission of the crime
Par. 14. Craft, fraud, or disguise	That the crime was committed by means of: 1. **Craft:** Intellectual trickery and cunning on the part of the accused; 2. **Fraud:** Insidious words or machinations used to induce the victim to act in a manner which would enable the offender to carry out his design; or 3. **Disguise:** Any device to conceal identity Example: Estafa - fraud is an element = it is not an AC. The AC must be sought after and not merely incidental.	Means and ways employed in commission of the crime
Par. 15. Superior strength or means to weaken defense	1. There is a Notorious Inequality of forces between victim and aggressor. 2. Offender Purposely used excessive force out of proportion to the means of defense available to the persons attacked. This must be distinguished from treachery where the means of defense is ENTIRELY foreclosed; the person is rendered unable to mount a defense by the means that are employed.	Means and ways employed in commission of the crime
Par. 16. Alevosia (Treachery)	1. Offender Consciously Adopts particular means, methods, or forms tending directly and specially to ensure the execution of the crime 2. The employment of such means gave the offended party No opportunity to defend himself or retaliate	Means and ways employed in commission of the crime
Par. 17. Ignominy	The means employed or the circumstances brought about must tend to make the effects of the crime more humiliating or to put the offended party to shame. This must be read with cruelty because both involve an additional harm or injury that the felony produces. Ignominy - emotional harm; Cruelty - physical harm. Both can concur. They need not absorb each other because they talk about different kinds of injuries. This is only specific to felonies against persons.	Means and ways employed in commission of the crime
Par. 18. Unlawful entry	Entrance is effected by a way not intended for the purpose.	Means and ways employed in commission of the crime
Par. 19. Breaking wall, floor, roof	1. Breaking the Wall, Roof, Floor, Door, or Window is a means to the commission of the crime 2. Breaking was used as a means to effect Entrance and not merely for escape. This does not pertain to unlawful entry but simply the destruction of certain parts of the house.	Means and ways employed in commission of the crime

	If the unlawful entry is done AFTER the breaking of the wall/window, they DO NOT cancel each other out because you do not need to break a structure in order to commit an unlawful entry and vice versa.	
Par. 20. By Motor vehicles, airships, or other similar means	1. That any of the following was used: a. Motorized vehicles or b. Other efficient means of transportation Similar to automobile or airplane. 2. The same was used as Means of Committing the crime, such as by using the same to: a. Go to the place of the crime b. Carry away the effects thereof and c. Facilitate their escape	Means and ways employed in commission of the crime To counteract the great facilities found by modern criminals as means to commit crime, and flee and abscond
Par. 21. Cruelty	1. Injury caused be was Deliberately Increased by causing other wrong 2. Other wrong was Unnecessary for the Execution of the purpose of the offender	Means and ways employed in commission of the crime

Recidivism [14.9]	**Reiteracion [14.10]**	**Quasi-Recidivism [160]**	**Habitual Delinquency [63.5]**
As to When the 2nd Crime was Committed			
After conviction of 1st crime	After serving sentence for the 1st crime	After conviction of 1st crime but BEFORE serving sentence for the 1st crime, or WHILE serving such sentence	Within 10 years from his last release or conviction
As to the Crimes Committed			
2nd conviction for an offense embraced in the SAME TITLE	Offender has been previously punished of: 1. One offense to which the law attaches equal or greater penalty; or 2. Two offenses to which the law attaches lighter penalty Note: Previous and subsequent offenses must NOT be embraced in the same title of the RPC	Offender is convicted for a 2nd felony Note: 1st crime may be a felony or offense but the 2nd crime must be a felony	At least 3 convictions are required Offender is found guilty for the 3rd time or oftener of the following crimes: [T-FIRE] 1. Theft 2. Falsification 3. Less serious or serious physical Injuries 4. Robbery 5. Estafa
As to Type of Aggravating Circumstance			
Generic AC	Generic AC	Special AC	Extraordinary AC
As to Effect on Penalty			
If not offset by any mitigating circumstance, increase the penalty only to the maximum	Same as recidivism but not always an aggravating circumstance as Court should exercise discretion in favor of the accused if the previous offenses of the offender are against property and not directly against persons and applying habituality would result in a penalty of death	Imposes the maximum of the penalty for the new offense, and cannot be offset by any mitigating circumstance	An additional penalty shall be imposed

Meaning of “Final Judgment”
1. Fifteen (15) days have elapsed from its promulgation without the convict appealing
2. Offender started serving the sentence
3. Offender expressly waives his right to appeal
4. Offender applied for probation

C. Special Aggravating/Qualifying Circumstances

a. Need for Allegation in Information

2000 Rules on Criminal Procedure, Rule 110

Section 8. *Designation of the offense.* — The complaint or information shall state the designation of the offense given by the statute, aver the acts or omissions constituting the offense, and specify its qualifying and aggravating circumstances. If there is no designation of the offense, reference shall be made to the section or subsection of the statute punishing it. (8a)

Section 9. *Cause of the accusation*. — The acts or omissions complained of as constituting the offense and the qualifying and aggravating circumstances must be stated in ordinary and concise language and not necessarily in the language used in the statute but in terms sufficient to enable a person of common understanding to know what offense is being charged as well as its qualifying and aggravating circumstances and for the court to pronounce judgment. (9a)

Generic AC: Even if not alleged in the information, may be proven during the trial over the objection of the defense and may be appreciated in imposing the sentence. Such evidence merely forms part of the proof of the actual commission of the offense and does not violate the constitutional right of the accused to be informed of the nature and cause of accusation against him.

Qualifying AC: The same must be alleged in the information because it is an integral part of the offense.

Add'l from Reyes

- Where, in an information for simple theft, the qualifying circumstance of grave abuse of confidence has not been alleged, said circumstance cannot qualify the crime committed but must be regarded only as a generic aggravating circumstance.
- If not alleged in the information, treachery is only generic AC.

Cybercrime Prevention Act of 2012 (RA 10175), Section 6. — All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act: Provided, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.

b. Specific Illustrative Circumstances

1. Rape [RPC, Art. 266-B]

The death penalty shall also be imposed if the crime of rape is committed with any of the following **aggravating/qualifying circumstances**:

a. When the victim is under eighteen (18) years of age and the offender is a parent, ascendant, step-parent, guardian, relative by consanguinity or affinity within the third civil degree, or the common-law spouse of the parent of the victim;
b. When the victim is under the custody of the police or military authorities or any law enforcement or penal institution;
c. When the rape is committed in full view of the spouse, parent, any of the children or other relatives within the third civil degree of consanguinity;
d. When the victim is a religious engaged in legitimate religious vocation or calling and is personally known to be such by the offender before or at the time of the commission of the crime;
e. When the victim is a child below seven (7) years old;
f. When the offender knows that he is afflicted with the Human Immuno-Deficiency Virus (HIV)/Acquired Immune Deficiency Syndrome (AIDS) or any other sexually transmissible disease and the virus or disease is transmitted to the victim;
g. When committed by any member of the Armed Forces of the Philippines or para-military units thereof or the Philippine National Police or any law enforcement agency or penal institution, when the offender took advantage of his position to facilitate the commission of the crime;
h. When by reason or on the occasion of the rape, the victim has suffered permanent physical mutilation or disability;
i. When the offender knew of the pregnancy of the offended party at the time of the commission of the crime; and
j. When the offender knew of the mental disability, emotional disorder and/or physical handicap of the offended party at the time of the commission of the crime.

2. Illegal possession of firearms and ammunition [PD 1866, Secs. 1, 3]

The death penalty is imposed (from reclusion temporal-reclusion perpetua):

a. Use of an unlicensed firearm
b. Use of explosives
c. Offense is committed as part of or in furtherance of rebellion, insurrection, or subversion

3. *Possession of Dangerous Drugs [RA 9165]* secs. 4(2),(3), 5(3),(4), (5), (6), 6(3),(4), (6), 8(3), 10(3), 13, 14, 25, 28, 29;

D. Alternative Circumstances

RPC, ARTICLE 15. *Their concept.* – Alternative circumstances are those **which must be taken into consideration as aggravating or mitigating according to the nature and effects of the crime and other conditions attending its commission.** They are the relationship, intoxication, and the degree of instruction and education of the offender.

The alternative circumstance of **relationship** shall be taken into consideration when the offended party is the spouse, descendant, legitimate, natural, or adopted brother or sister, or relative by affinity in the same degrees of the offender.

The **intoxication** of the offender shall be taken into consideration as a mitigating circumstance when the offender has committed a felony in a state of intoxication, if the same is not habitual or subsequent to the plan to commit said felony; but when the intoxication is habitual or intentional, it shall be considered as an aggravating circumstance.

ALTERNATIVE CIRCUMSTANCES

The alternative circumstances are:

- **Relationship**
  - *Who is the offended party?*
    - Spouse
    - Ascendant - includes, by analogy, stepfather, stepmother, stepson, stepdaughter, adopted parent
    - Descendant - includes adopted child
    - Legitimate, natural, or adopted brother or sister, or
    - Relative by affinity in the same degree of the offender - vic8does not include uncle and niece
  - *When mitigating and when aggravating?*
    - The law is silent as to when relationship is mitigating and when it is aggravating
    - As a rule, relationship is *mitigating* in crimes against property.
    - It is *aggravating* in crimes against persons in case where the offended party is a relative of a higher degree than the offender (e.g., killing one's father) or when the offender and the offended party are relatives of the same level (e.g., killing one's brother).
      - However, when the crime against persons is homicide or murder, relationship is aggravating even if the victim of the crime is a relative of lower degree.
      - In crimes against chastity, relationship is always aggravating
    - Neither mitigating nor aggravating when relationship is an element of the offense (e.g., parricide, adultery, concubinage)
- **Intoxication**
  - *When mitigating and when aggravating?*
    - Mitigating:
      - If intoxication is *not habitual*
      - If intoxication is *not subsequent to the plan* to commit a felony-could be accidental
    - Aggravating:
      - If intoxication *is* habitual
      - If intoxication is *intentional* (*subsequent to the plan* to commit a felony) -Intentional when the offender drinks liquor *fully knowing* its effects, to find in the liquor a *stimulant* to commit a crime or a means to suffocate any remorse
- **Degree of instruction and education of the offender**
  - *When mitigating and when aggravating?*
    - Mitigating:
      - *Low* degree/lack of instruction and education
        - it seems that the rule of thumb is that the qualifier for this is not having any education at all
        - ordinarily, mitigating in all crimes
        - exceptions: crimes against property like estafa, theft, robbery, arson, treason, murder (the latter two being presumed natural in everyone)
    - Aggravating:
      - *High* degree/lack of instruction and education - when the offender availed himself or took advantage of his high education to commit the crime

V. APPLICATION AND COMPUTATION OF PENALTIES

A. General Principles

RPC, ARTICLE 28. *Computation of Penalties.* — If the offender shall be in prison the term of the duration of the temporary penalties shall be computed from the day on which the judgment of conviction shall have become final.

If the offender be not in prison, the term of the duration of the penalty consisting of deprivation of liberty shall be computed from the day that the offender is placed at the disposal of the judicial authorities for the enforcement of the penalty. The duration of the other penalties shall be computed only from the day on which the defendant commences to serve his sentence.

RPC, ARTICLE 29. *Period of preventive imprisonment deducted from term of imprisonment.* – Offenders or accused who have undergone preventive imprisonment shall be credited in the service of their sentence consisting of deprivation of liberty, with the full time during which they have undergone preventive imprisonment if the detention prisoner agrees voluntarily in writing after being informed of the effects thereof and with the assistance of counsel to abide by the same disciplinary rules imposed upon convicted prisoners, except in the following cases:

1. When they are recidivists, or have been convicted previously twice or more times of any crime; and
2. When upon being summoned for the execution of their sentence they have failed to surrender voluntarily.

If the detention prisoner does not agree to abide by the same disciplinary rules imposed upon convicted prisoners, he shall do so in writing with the assistance of a counsel and shall be credited in the service of his sentence with four-fifths of the time during which he has undergone preventive imprisonment.

Credit for preventive imprisonment for the penalty of reclusion perpetua shall be deducted from thirty (30) years.1âwphi1

Whenever an accused has undergone preventive imprisonment for a period equal to the possible maximum imprisonment of the offense charged to which he may be sentenced and his case is not yet terminated, he shall be released immediately without prejudice to the continuation of the trial thereof or the proceeding on appeal, if the same is under review. Computation of preventive imprisonment for purposes of immediate release under this paragraph shall be the actual period of detention with good conduct time allowance: Provided, however, That if the accused is absent without justifiable cause at any stage of the trial, the court may motu proprio order the rearrest of the accused: Provided, finally, That recidivists, habitual delinquents, escapees and persons charged with heinous crimes are excluded from the coverage of this Act. In case the maximum penalty to which the accused may be sentenced is lestierro, he shall be released after thirty (30) days of preventive imprisonment**.**

RPC, ARTICLE 46. *Penalty to be Imposed Upon Principals in General*. — The penalty prescribed by law for the commission of a felony shall be imposed upon the principals in the commission of such felony.

Whenever the law prescribes a penalty for a felony in general terms, it shall be understood as applicable to the consummated felony.

RPC, ARTICLE 71. *Fine.* — The fine shall be considered as the last of all the principal penalties listed in the preceding article.

When a fine is so imposed, the duration of the subsidiary liability corresponding thereto, by reason of the insolvency of the offender, shall not exceed that which is provided in rule 2 of article 39.

B. Principals, Accomplices, Accessories in Consummated, Frustrated, and Attempted Felonies

*see table on page 25

C. Effects of Mitigating and Aggravating Circumstances

RPC, ARTICLE 62. *Effects of the attendance of mitigating or aggravating circumstances and of habitual delinquency.* — Mitigating or aggravating circumstances and habitual delinquency shall be taken into account for the purpose of diminishing or increasing the penalty in conformity with the following rules:

1. Aggravating circumstances which in themselves constitute a crime specially punishable by law or which are included by the law in defining a crime and prescribing the penalty therefor shall not be taken into account for the purpose of increasing the penalty.

1(a). When in the commission of the crime, advantage was taken by the offender of his public position, the penalty to be imposed shall be in its maximum regardless of mitigating circumstances.

The maximum penalty shall be imposed if the offense was committed by any person who belongs to an organized/syndicated crime group.

An organized/syndicated crime group means a group of two or more persons collaborating, confederating or mutually helping one another for purposes of gain in the commission of any crime.

2. The same rule shall apply with respect to any aggravating circumstances inherent in the crime to such a degree that it must of necessity accompany the commission thereof.

3. Aggravating or mitigating circumstances which arise from the moral attributes of the offender, or from his private relations with the

offended party, or from any other personal cause, shall only serve to aggravate or mitigate the liability of the principals, accomplices and accessories as to whom such circumstances are attendant.

4. The circumstances which consist in the material execution of the act, or in the means employed to accomplish it, shall serve to aggravate or mitigate the liability of those persons only who had knowledge of them at the time of the execution of the act or their cooperation therein.

5. Habitual delinquency shall have the following effects :

(a) Upon a third conviction the culprit shall be sentenced to the penalty provided by law for the last crime of which he be found guilty and to the additional penalty of prision correccional in its medium and maximum periods;

(b) Upon a fourth conviction, the culprit shall be sentenced to the penalty provided for the last crime of which he be found guilty and to the additional penalty of prision mayor in its minimum and medium periods; and

(c) Upon a fifth or additional conviction, the culprit shall be sentenced to the penalty provided for the last crime of which he be found guilty and to the additional penalty of prision mayor in its maximum period to reclusion temporal in its minimum period.

Notwithstanding the provisions of this article, the total of the two penalties to be imposed upon the offender, in conformity herewith, shall in no case exceed 30 years.

For the purpose of this article, a person shall be deemed to be habitual delinquent, if within a period of ten years from the date of his release or last conviction of the crimes of serious or less serious physical injuries, robo, hurto, estafa or falsification, he is found guilty of any of said crimes a third time or oftener.

(as amended by Republic Act No. 7659, [December 13, 1993])

Effects of Mitigating or Aggravating Circumstances

Circumstance	Effect
Aggravating	Increase the penalty without exceeding the maximum provided by law
Mitigating	Diminish the penalty
Habitual delinquency	Increases the penalty because of recidivism, which is generally implied in habitual delinquency Also imposes an additional penalty

RPC, ARTICLE 63. *Rules for the application of indivisible penalties.* — In all cases in which the law prescribes a single indivisible penalty, it shall be applied by the courts regardless of any mitigating or aggravating circumstances that may have attended the commission of the deed.

In all cases in which the law prescribes a penalty composed of two indivisible penalties, the following rules shall be observed in the application thereof:

1. When in the commission of the deed there is present only one aggravating circumstance, the greater penalty shall be applied.

2. When there are neither mitigating nor aggravating circumstances and there is no aggravating circumstance, the lesser penalty shall be applied.

3. When the commission of the act is attended by some mitigating circumstances and there is no aggravating circumstance, the lesser penalty shall be applied.

4. When both mitigating and aggravating circumstances attended the commission of the act, the court shall reasonably allow them to offset one another in consideration of their number and importance, for the purpose of applying the penalty in accordance with the preceding rules, according to the result of such compensation.

Rules for Graduation of Periods

When penalty is:

1. **Single Indivisible:** Shall be applied regardless of any mitigating or aggravating circumstances

2. **Two indivisible penalties:**

AC	MC	Effect
1	No	Greater penalty

No	No	Lesser penalty
No	1	Lesser penalty
No	2 or more	Lesser penalty. Penalty cannot be lowered by one degree no matter how many MCs are present (XPN: privileged mitigating circumstances under Art. 68 and 69)
Both present		Offset

RPC, ARTICLE 64. *Rules for the application of penalties which contain three periods.* — In cases in which the penalties prescribed by law contain three periods, whether it be a single divisible penalty or composed of three different penalties, each one of which forms a period in accordance with the provisions of Articles 76 and 77, the court shall observe for the application of the penalty the following rules, according to whether there are or are not mitigating or aggravating circumstances:

1. When there are neither aggravating nor mitigating circumstances, they shall impose the penalty prescribed by law in its medium period.

2. When only a mitigating circumstances is present in the commission of the act, they shall impose the penalty in its minimum period.

3. When an aggravating circumstance is present in the commission of the act, they shall impose the penalty in its maximum period.

4. When both mitigating and aggravating circumstances are present, the court shall reasonably offset those of one class against the other according to their relative weight.

5. When there are two or more mitigating circumstances and no aggravating circumstances are present, the court shall impose the penalty next lower to that prescribed by law, in the period that it may deem applicable, according to the number and nature of such circumstances.

6. Whatever may be the number and nature of the aggravating circumstances, the courts shall not impose a greater penalty than that prescribed by law, in its maximum period.

7. Within the limits of each period, the court shall determine the extent of the penalty according to the number and nature of the aggravating and mitigating circumstances and the greater and lesser extent of the evil produced by the crime.

Rules for the Application of Penalties Containing Three Periods

AC	MC	Effect
No	No	Imposed in its medium period
No	1	Imposed in its minimum period
1	No	Imposed in its maximum period
Both present		Court shall reasonably offset those of one class against the other according to their relative weight.
No	2 or more	Penalty next lower in degree to that prescribed by law, in the period that it may deem applicable, according to the number and nature of such circumstances
2 or more	No	Imposed in its maximum period

RPC, ARTICLE 67. *Penalty to be imposed when not all the requisites of exemption of the fourth circumstance of Article 12 are present.* — When all the conditions required in circumstances Number 4 of Article 12 of this Code to exempt from criminal liability are not present, the penalty of arresto mayor in its maximum period to prision correccional in its minimum period shall be imposed upon the culprit if he shall have been guilty of a grave felony, and arresto mayor in its minimum and medium periods, if of a less grave felony.

RPC, ARTICLE 69. *Penalty to be imposed when the crime committed is not wholly excusable.* — A penalty lower by one or two degrees than that prescribed by law shall be imposed if the deed is not wholly excusable by reason of the lack of some of the conditions required to justify the same or to exempt from criminal liability in the several cases mentioned in Article 11 and 12, provided that the majority of such conditions be present. The courts shall impose the penalty in the period which may be deemed proper, in view of the number and nature of the conditions of exemption present or lacking.

Other rules in application of penalties

1. Incomplete Accident

a. If guilty of grave felony: Arresto mayor in its maximum period to prision correccional in its minimum period
b. **If guilty of less grave felony: Arresto mayor in its minimum and medium periods [Art. 67].**

2. Incomplete Exemption of Justification
   a. **When deed is not wholly excusable by reason of lack of some conditions required for exempting or justifying circumstances - a penalty lower by one or two degrees shall be imposed, provided that majority of the conditions are present [Art. 69].**

RPC, ARTICLE 71. *Graduated scales.* — In the case in which the law prescribed a penalty lower or higher by one or more degrees than another given penalty, the rules prescribed in Article 61 shall be observed in graduating such penalty.

The lower or higher penalty shall be taken from the graduated scale in which is comprised the given penalty.

The courts, in applying such lower or higher penalty, shall observe the following graduated scales:

SCALE NO. 1
1. Death,
2. Reclusion perpetua,
3. Reclusion temporal,
4. Prision mayor,
5. Prisión correccional,
6. Arresto mayor,
7. Destierro,
8. Arresto menor,
9. Public censure,
10. Fine.

SCALE NO. 2
1. Perpetual absolute disqualification,
2. Temporal absolute disqualification
3. Suspension from public office, the right to vote and be voted for, the right to follow a profession or calling,
4. Public censure,
5. Fine.

D. Special Rules

i) Complex Crimes

RPC, ARTICLE 48. *Penalty for complex crimes.* – When a single act constitutes two or more grave or less grave felonies, or when an offense is a necessary means for the committing the other, the penalty for the most serious crime shall be imposed, the same to be applied in its maximum period. (*As amended by Com. Act No. 4000, approved December 5, 1932*)

COMPLEX CRIMES
- Although composed of two or more crimes committed, only seen as *one* crime in the eye of the law.
  - The fact that the offender has only *one* criminal intent, even when the *single* act produces the effects of multiple crimes.
- **Two kinds of complex crimes**:
  - When a single act constitutes two or more grave or less grave felonies (*compound crime*) -elements:
    - Only a single acts is performed by the offender
    - The single act produces:
      - Two or more grave felonies; or
      - One or more grave and one or more less grave felonies; or
      - Two or more less grave felonies
  - When an offense is a necessary means for committing the other (*complex crime proper*) -elements:
    - At least two offenses are committed
    - One or some of the offenses must be necessary to commit the other
    - Both or all the offenses must be punished under the same statute

ii) Special Complex Crimes

Illustrations of *special complex crimes* (as presented in the given cases):

- Unlike with an *ordinary complex crime*, wherein the composite offenses and their respective penalties are individually factored, and subsequently, the penalty imposed is that of the “most serious crime”, the law for

a *special complex crime* effectively treats **the offense as an individual felony** in itself and then prescribes the specific penalty therefore.
- In distinguishing *special complex crimes* from *ordinary complex crimes*, the law has virtually taken into account the particularly "nefarious" nature of the former crime;

Examples:
- Robbery with homicide (People v. Fabon; People vs Escote Jr)
- Kidnapping and serious illegal detention with homicide and rape

iii) Crime Different from that Intended

RPC, ARTICLE 49. *Penalty to be imposed upon the principals when the crime committed is different from that intended* – In cases in which the felony committed is different from that which the offender intended to commit, the following rules shall be observed.
1. If the penalty prescribed for the felony committed be higher than that corresponding to the offense which the accused intended to commit, the penalty corresponding to the latter shall be imposed in its maximum period.
2. If the penalty prescribed for the felony committed be lower than that corresponding to the one which the accused intended to commit, the penalty for the former shall be imposed in its maximum period.
3. The rule established by the next preceding paragraph shall not be applicable if the acts committed by the guilty person shall also constitute an attempt or frustration of another crime, if the law prescribes a higher penalty for either of the latter offenses, in which case the penalty provided for the attempt or the frustrated shall be imposed in the maximum period.

RPC, ARTICLE 4(1). *Criminal liability.* – Criminal liability shall be incurred:
1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.

Crime Different from that Intended
- Vis-a-vis Article 4(1), Article 49 only applies to ***error in personae*** **(mistake in the identity of the victim)**
  - e.g., A, thinking that the person walking in a dark alley was B, a stranger, fired at that person, who was killed as a result. It turned out that that person was C, A's father.
    - The crime initially intended to be committed by A was homicide, punishable by reclusion temporal, if who he indeed killed was a stranger. But, in this case, the crime he *actually* committed was parricide, punishable by reclusion perpetua to death,, since he ended up killing his own father.
    - Following rule 1 of Article 49, the penalty imposed on A would be homicide, the penalty of the crime he intended to commit, in its maximum period, since the penalty of parricide, the crime he intended to commit, is higher.
  - distinguishing error in personae from aberratio ictus (mistake in the blow) and prater intentionem (where a more serious consequence not intended by the offender befalls the same person)
  - Aberratio ictus: more akin to a complex crime
  - Praeter Intentionem: the crime not intended befell the same person as intended
- Article 49 is applicable only when the intended crime and the crime actually committed are punished with **different penalties**

iv) Impossible Crimes

RPC, ARTICLE 59. *Penalty to be imposed in case of failure to commit the crime because the means employed or the aims sought are impossible.* – When the person intending to commit an offense has already performed the acts for the execution of the same but nevertheless the crime was not produced by reason of the fact that the act intended was by its nature one of impossible accomplishment or because the means employed by such person are essentially inadequate to produce the result desired by him, the court, having in mind the social danger and the degree of criminality shown by the offender, shall impose upon him the penalty of *arresto mayor* or a fine ranging from 200 to 500 pesos.

RPC, ARTICLE 4(1). *Criminal liability.* – Criminal liability shall be incurred:
2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means.

v) Additional Penalty for Certain Accessories

RPC, ARTICLE 58. *Additional penalty to be imposed upon certain accessories.* – Those accessories falling within the terms of paragraph 3 of Article 19 of this Code who should act with abuse of their public functions, shall suffer the additional penalty of absolute perpetual disqualification if the principal offender shall be guilty of a grave felony, and that of absolute temporary disqualification if he shall be guilty of a less grave felony.

ADDITIONAL PENALTY FOR CERTAIN ACCESSORIES

- Public officers who help the author of a crime by *misusing* their office and duties shall suffer the additional penalties of:
  - *Absolute perpetual disqualification,* if the principal offender is guilty of a *grave* felony.
  - *Absolute temporary disqualification,* if the principal offender is guilty of a *less grave* felony.

  -not possible to have accessories liable for light felonies
- Applies only to public officers who abused their public fuctions

vi) The Three-Fold Rule

RPC, ARTICLE 70. *Successive service of sentence.* – When the culprit has to serve two or more penalties, he shall serve them simultaneously if the nature of the penalties will so permit; otherwise, the following rules shall be observed:

In the imposition of the penalties, the order of their respective severity shall be followed, so that they may be **executed successively or as nearly as may be possible**, should a pardon have been granted as to the penalty or penalties first imposed, or should they have been served out.

For the purpose of applying the provisions of the next preceding paragraph, the respective severity of the penalties shall be determined in accordance with the following scale:

Death
Reclusion perpetua
Reclusion temporal.
Prison mayor
Prision correccional
Arresto mayor
Arresto menor
Destierro
Perpetual absolute disqualification
Temporary absolute disqualification
Suspension from public office, the right to vote and be voted for, the right to follow a profession or calling
Public censure

Notwithstanding the provisions of the rule next preceding, the maximum duration of the convict's sentence shall not be more than **three-fold** the length of time corresponding to the most severe of the penalties imposed upon him. No other penalty to which he may be liable shall be inflicted after the sum total of those imposed equals to said maximum period.

In applying the provisions of this rule, the duration of the perpetual penalties (*pena perpetua*) shall be computed at thirty years. (*As amended by Com. Act No. 217, approved November 24, 1936).*

Successive service of sentences

- Outline of the provisions of this article:
  - When the culprit has to serve *two or more penalties,* he shall serve them simultaneously **if the nature of the penalties will so permit**.
    - The penalties that can be simultaneously served are:
      - Perpetual absolute disqualification
      - Perpetual special disqualification
      - Temporary absolute disqualification
      - Temporary special disqualification
      - Suspension
      - Destierro
      - Public censure
      - Fine and bond to keep the peace
      - Civil interdiction
      - Confiscation and
  - Otherwise, the order of their respective severity shall be followed (the respective severity of the penalties is enumerated in the list above)
- The above penalties, except *destierro*, can be served simultaneously with imprisonment.
  - Penalties consisting in deprivation of liberty cannot be served simultaneously by reason of the nature of such penalties.
- **The Three Fold Rule**: the maximum duration of a culprit's confinement shall not exceed three times the *most serious* penalties imposed upon him (but shall not in any case exceed forty years).
- E.g., A person is sentenced to suffer multiple sentences, the most severe penalty being 17 years, four months, and one day. Three times that penalty is 52 years and 3 days. Since the law has limited the duration of the maximum term to not more than 40 years, the accused will have to suffer only 40 years.
  - Only applies when the convict has to serve *at least four sentences*
    - This is because, more likely than not, applying the rule to only three sentences at most would mean that the total of all penalties would be less than the most sever multiplied by three
  - In the same vein, the rule does not apply if the sum of all the penalties does not exceed the most severe multiplied by three
  - Applies only when the convict has to serve *continuous* imprisonment for several offenses
    - Would not be applicable if the convict already served sentence for one offense
    - Only the penalties which have not yet been served out can be served simultaneously
  - If the sentence is indeterminate, the basis of the three-fold rule would be the maximum term of the sentence.

vii) Where Penalty is not Composed of Three Periods

RPC, ARTICLE 65. *Rule in cases in which the penalty is not composed of three periods.* – In cases in which the penalty prescribed by law is not composed of three periods, the courts shall apply the rules contained in the foregoing articles, dividing into three equal portions the time included in the penalty prescribed, and forming one period for each of the three portions.

WHERE PENALTY IS NOT COMPOSED OF THREE PERIODS

Meaning of the rule

1. Compute and determine the three periods of the entire penalty.
2. The time included in the penalty prescribed should be divided into three equal portions, after subtracting the minimum (eliminate the one day) from the maximum of the penalty
3. The minimum of the minimum period should be the minimum of the given penalty (including the one day).
4. The quotient should be added to the minimum prescribed (eliminate the one day) and the total will represent the maximum of the minimum period. Take the maximum of the minimum period, add one day and make it the minimum of the medium period then add the quotient to the minimum (eliminate the one day) of the medium period and the total will represent the maximum of the medium period. Take the maximum of the medium period, add one day and make it the minimum of the maximum period; then add the quotient to the minimum (eliminate the one day) of the maximum period and the total will represent the maximum of the maximum period.

viii) Where penalty is based on amount

REPUBLIC ACT NO. 10951. *An Act Adjusting the Amount of the Value of Property and Damage on Which a Penalty is Based, and the Fines Imposed Under the Revised Penal Code…*

From *Hernan v. Sandiganbayan*:

"…judges, public prosecutors, public attorneys, private counsels, and such other officers of the law are hereby advised to similarly **apply the provisions of RA No. 10951** whenever it is, by reason of justice and equity, called for by the facts of each case. Hence, said recent legislation **shall find application in cases where the imposable penalties of the affected crimes such as theft, qualified theft, estafa, robbery with force upon things, malicious mischief, malversation, and such other crimes, the penalty of which is dependent upon the value of the object in consideration thereof, have been reduced, as in the case at hand, taking into consideration the presence of existing circumstances attending its commission. For as long as it is favorable to the accused, said recent legislation shall find application regardless of whether its effectivity comes after the time when the judgment of conviction is rendered and even if service of sentence has already begun. The accused, in these applicable instances, shall be entitled to the benefits of the new law warranting him to serve a lesser sentence, or to his release, if he has already begun serving his previous sentence, and said service already accomplishes the term of the modified sentence.** In the latter case, moreover, the Court, in the interest of justice and expediency, further directs the appropriate filing of an action before the Court that seeks the reopening of the case rather than an original petition filed for a similar purpose.

Indeed, when exceptional circumstances exist, such as **the passage of the instant amendatory law imposing penalties more lenient and favorable to the accused**, the Court shall not hesitate to direct the reopening of a final and immutable judgment, the objective of which is to correct not so much the findings of guilt but the applicable penalties to be imposed.

- tl;dr: The case was reopened upon the passage of RA No. 10951 because it opened the possibility that the accused would be imposed with a sentence lesser than originally intended (in the spirit of *in dubio pro reo*).

Notes on RA No. 10951 (from here)

- significance of the passage of the Act: Adjustment of fines and imprisonment terms–Prior to RA No. 10951, fines and imprisonment terms in the RPC were often considered disproportionate to the gravity of the offenses due to inflation. For example, crimes like estafa (swindling) and theft carried fines that, when adjusted to present-day values, were considered negligible. RA No. 10951 increased the minimum fines for various offenses and adjusted imprisonment terms to reflect more appropriate punishment based on current socio-economic standards.

E. The Indeterminate Sentence Law

ACTS NO. 4103. *An Act to Provide for an Indeterminate Sentence and Parole for All Persons Convicted of Certain Crimes by the Courts of the Philippine Islands; To Create a Board of Indeterminate Sentence and to Provide Funds Therefor and for Other Purposes*

RPC, ARTICLE 64. *Rule for the application of penalties which contain three periods* – In cases in which the penalties prescribed by law contain three periods, whether it be a single divisible penalty or composed of three different penalties, each one of which forms a period in accordance with the provisions of Articles 76 and 77, the courts shall observe for the application of the penalty the following rules, according to whether there are or are no mitigating or aggravating circumstances:

1. When there are neither aggravating nor mitigating circumstances, they shall impose the penalty prescribed by law in its

medium period.
2. When only a mitigating circumstance is present in the commission of the act, they shall impose the penalty in its minimum period.
3. When only an aggravating circumstance is present in the commission of the act, they shall impose the penalty in its maximum period.
4. When both mitigating and aggravating circumstances are present, the court shall reasonably offset those of one class against the other according to their relative weight.
5. When there are two or more mitigating circumstances and no aggravating circumstances are present, the court shall impose the penalty next lower to that prescribed by law, in the period that it may seem applicable, according to the number and nature of such circumstances.
6. Whatever may be the number and nature of the aggravating circumstances, the court shall not impose a greater penalty that that prescribed by law, in its maximum period.
7. Within the limits of each period, the courts shall determine the extent of the penalty according to the number and nature of the aggravating and mitigating circumstances and the greater or lesser extent of the evil produced by the crime.

INDETERMINATE SENTENCE LAW (ISL)

- Requires the courts to impose an indeterminate sentence with a **maximum and minimum term for offenses punishable by the RPC and special laws**
- **Indeterminate sentence**: a prison term which consists of a minimum and maximum term
    - considered "indeterminate" because after the convict serves the minimum term, he or she may become eligible for parole under the provisions of the ISL, which leaves the period between the minimum and maximum term indeterminate in the sense that he or she may, under the conditions set out in said Act, be released from serving said period in whole or in part.
- Purpose:
    - To uplift and redeem valuable human material
    - To prevent unnecessary and excessive deprivation of personal liberty and economic usefulness
    - To individualize the administration of criminal law
- The Court determines a **maximum** and **minimum** term
    - *When the crime is punished by the RPC*
        - Maximum term: that which could be properly imposed under the RPC in view of the attending circumstances
            - determined based on the rules of the Code: *Articles 46, 48, 50-57, 61, 62 (except par. 5), 64, 65, 68, 69, and 71*
        - Minimum term: within the range of the penalty new lower to that prescribed by the Code for the offense; left to the Court's discretion
    - NOTE: The **mitigating or aggravating circumstances** are required to be considered only in the imposition of the *maximum* term of the indeterminate sentence.
        - In determining the minimum term, the penalty next lower must be based on the penalty prescribed by the Code for the offense, *without considering in the meantime the modifying circumstances*.
        - When there is a **privileged mitigating circumstance**, so that the penalty has to be lowered by one degree, the starting point for determining the *minimum* term of the indeterminate sentence is the *penalty next lower* from that prescribed by the Code for the offense.
    - *When the crime is punished by a special law*
        - Maximum term: shall not exceed the maximum fixed by such law
        - Minimum term: shall not be less than the minimum term prescribed by such law
- Applicable only to **divisible penalties,** *not* indivisible penalties
- Applicable to the **penalty imposed**
    - also to penalties imposed as a result of plea bargaining
- Not applicable when unfavorable to the accused (e.g., would lengthen the duration of his sentence)
- Not applicable to the following
    - Persons convicted of offenses punished with death penalty or life imprisonment
    - Those convicted of treason, conspiracy, or proposal to commit treason
    - Those convicted of misprision of treason, rebellion, sedition, or espionage
    - Those convicted of piracy
    - Those who are habitual delinquents
    - Those who shall have escaped from confinement or evaded sentence
    - Those who violated the terms of conditional pardon granted to them by the Chief Executive
    - Those whose maximum term of imprisonment does not exceed one year
    - Those who, upon the approval of the law had been sentenced by final judgment
    - Those sentenced to the penalty of destierro or suspension

VI. EXECUTION AND SERVICE OF PENALTIES

A. Execution of Penalties

GENERAL PROVISION

ART. 78. When and how a penalty is to be executed.—No penalty shall be executed except by virtue of a final judgment.
A penalty shall not be executed in any other form than that prescribed by law, nor with any other circumstances or incidents than those

expressly authorized thereby.
In addition to the provisions of the law, the special regulations prescribed for the government of the institutions in which the penalties are to be suffered shall be observed with regard to the character of the work to be performed, the time of its performance, and other incidents connected therewith, the relations of the convicts among themselves and other persons, the relief which they may receive, and their diet.
The regulations shall make provision for the separation of the sexes in different institutions, or at least into different departments, and also for the correction and reform of the convicts.

ART. 86. Reclusion perpetua, reclusion temporal, prision mayor, prision correccional and arresto mayor.—The penalties of reclusion perpetua, reclusion temporal, prision mayor, prision correccional, and arresto mayor, shall be executed and served in the places and penal establishments provided by the Administrative Code in force or which may be provided by law in the future.

ART. 87. Destierro.—Any person sentenced to destierro shall not be permitted to enter the place or places designated in the sentence, nor within the radius therein specified, which shall be not more than 250 and not less than 25 kilometers from the place designated.

ART. 88. Arresto menor.—The penalty of arresto menor shall be served in the municipal jail, or in the house of the defendant himself under the surveillance of an officer of the law, when the court so provides in its decision, taking into consideration the health of the offender and other reasons which may seem satisfactory to it.

Article 78

The judgement must be final before it can be executed, because the accuse may still appeal within 15 days from its promulgation. But if the defendant has expressly waived in writing his right to appeal, the judgment becomes final immediately (Rule 120, Sec 7, Rules of Court)

Art 86-88
Destierro is imposed:

1. When death or serious physical injuries is caused or are inflicted under exceptional circumstances (Art 247)
2. When a person fails to give bond for good behavior (Art 284)
3. When a penalty for the concubine in the crime of concubinage (Art 334)
4. When after lowering the penalty by degrees, destierro is the proper penalty

Republic Act No. 10951, enacted in 2017, is an amendment to the Revised Penal Code of the Philippines. The main purpose of this Act is to update the penalties and fines for various crimes to reflect current economic conditions and societal values.

1. Adjustment of Penalties: The Act adjusts the amounts or values of property and damage on which penalties are based. For example, fines for theft, estafa (fraud), and robbery have been updated to correspond more accurately to the gravity of the offenses1.
2. Decriminalization: Certain minor offenses that were previously punishable by imprisonment have been converted to fines or decriminalized altogether.
3. Human Rights Provisions: The amendments emphasize the protection of human rights, aiming to prevent excessive punishment and ensure penalties are proportional to the crimes committed.
4. Clarifications on Criminal Liability: The Act provides clarifications on criminal liability, particularly for complex crimes and the application of penalties.

B. Effects of the Probation Law

Presidential Decree No. 968, also known as the Probation Law of 1976, was established to create a more humane and effective correctional system in the Philippines.

1. Purpose: The decree aims to promote the correction and rehabilitation of offenders through individualized treatment, provide opportunities for reformation, and prevent the commission of offenses.
2. Probation System: It establishes a probation system where offenders, after conviction and sentencing, can be released under court-imposed conditions and supervised by a probation officer.
3. Application: The decree applies to all offenders except those entitled to benefits under similar laws.
4. Grant of Probation: The court may suspend the execution of a sentence and place the defendant on probation if the defendant applies within the appeal period.
5. Post-sentence Investigation: Probation is granted only after an investigation by a probation officer and a determination that it serves the ends of justice and the best interests of the public and the defendant.

C. Suspension in Case of Insanity or Minority

ART. 79. *Suspension of the execution and service of the penalties in case of insanity*.—When a convict shall become insane or an imbecile after final sentence has been pronounced, the execution of said sentence shall be suspended only with regard to the personal penalty, the provisions of the second paragraph of circumstance number 1 of article 12 being observed in the corresponding cases.
If at any time the convict shall recover his reason, his sentence shall be executed, unless the penalty shall have prescribed in accordance with the provisions of this Code.
The respective provisions of this section shall also be observed if the insanity or imbecility occurs while the convict is serving his

sentence.

Rules regarding execution & service of penalties in case of insanity

1. When a convict becomes insane or imbecile after final sentence has been pronounced, the execution of said sentence is suspended only as regards the personal penalty.
2. If he recovers his reason, his sentence shall be executed, unless the penalty has prescribed.
3. Even if while serving his sentence, the convict becomes insane or imbecile, the above provisions shall be observed.
4. But the payment of his civil or pecuniary liabilities shall not be suspended.

Rule on Juveniles in Conflict with the Law

Section 32. Proceedings Before Arraignment - The Diversion Committee shall determine if the child can be diverted and referred to alternative measures or services. Subject to pertinent provisions of this Rule and pending determination of diversion by the Committee, the court shall release the child on recognizance to the parents, guardian or custodian, or nearest relative; or if this is not advisable, commit the child to an appropriate youth detention home or youth rehabilitation center which shall be responsible for the presence of the child during the diversion proceedings.

If the Diversion Committee determines that diversion is not proper, or when the child or the private complainant object to the diversion, or when there is failure if the diversion program if undertaken by the child, it shall submit a report to the court recommending that the case be subjected to formal criminal proceedings. The court in turn shall direct the transmittal of the records of the case to the Office of the Clerk of Court for the assignment of a regular criminal docket number to the case as follows: CICL Crim. Case No.___-___(year). The Office of the Clerk of Court shall thereafter return the case to the court for arraignment and formal proceedings.

D. Subsidiary Imprisonment

Article 38. Pecuniary liabilities; Order of payment. - In case the property of the offender should not be sufficient for the payment of all his pecuniary liabilities, the same shall be met in the following order:
1. The reparation of the damage caused.
2. Indemnification of consequential damages.
3. The fine.
4. The cost of the proceedings.

Article 39. Subsidiary penalty. - If the convict has no property with which to meet the fine mentioned in the paragraph 3 of the nest preceding article, he shall be subject to a subsidiary personal liability at the rate of one day for each eight pesos, subject to the following rules:
1. If the principal penalty imposed be prision correccional or arresto and fine, he shall remain under confinement until his fine referred to in the preceding paragraph is satisfied, but his subsidiary imprisonment shall not exceed one-third of the term of the sentence, and in no case shall it continue for more than one year, and no fraction or part of a day shall be counted against the prisoner.
2. When the principal penalty imposed be only a fine, the subsidiary imprisonment shall not exceed six months, if the culprit shall have been prosecuted for a grave or less grave felony, and shall not exceed fifteen days, if for a light felony.
3. When the principal imposed is higher than prision correccional, no subsidiary imprisonment shall be imposed upon the culprit.
4. If the principal penalty imposed is not to be executed by confinement in a penal institution, but such penalty is of fixed duration, the convict, during the period of time established in the preceding rules, shall continue to suffer the same deprivations as those of which the principal penalty consists.
5. The subsidiary personal liability which the convict may have suffered by reason of his insolvency shall not relieve him, from the fine in case his financial circumstances should improve. (As amended by RA 5465, April 21, 1969).

VII. EXTINCTION OF CRIMINAL LIABILITY AND IMPOSITION OF CIVIL LIABILITY ARISING FROM FELONY

A. Total Extinction

General Rule: Every penalty must be served.
Exception: Extinction of liability.

Article 89. How criminal liability is totally extinguished. - Criminal liability is totally extinguished:

1. By the death of the convict, as to the personal penalties and as to pecuniary penalties, liability therefor is extinguished only when the death of the offender occurs before final judgment.

2. By service of the sentence;

3. By amnesty, which completely extinguishes the penalty and all its effects;

4. By absolute pardon;

5. By prescription of the crime;

6. By prescription of the penalty;

7. By the marriage of the offended woman, as provided in Article 344 of this Code.

DEATH OF THE CONVICT

General rule: Death of the accused pending appeal of his conviction *extinguishes* his criminal liability as well as the civil liability *solely on the offense committed.*

Exception: The claim for civil liability *survives* notwithstanding the death of the accused, if the same may also be *predicated on a source of obligation other than delict*, such as law, contracts, quasi-contracts, and quasi-delicts.

Personal Penalty

Death has to happen before or after final judgment.

- *How can you imprison someone who has died?*
- Criminal liability is extinguished by death at any stage of the proceeding.

Pecuniary Penalty

Death has to occur before final judgment.

Article 100. Every person criminally liable for a felony is also civilly liable

- Civil liability exists only when the accused is convicted by final judgment.
- Once there's final judgment, the estate of the convict will be held liable for the payment.

Pending Appeal on Criminal and Civil Liability

- The right of the offended party to file separate civil action not lost by prescription when the accused dies pending appeal.
- The statute of limitations on the civil liability is deemed interrupted during the pendency of the criminal case.

Death of the offended party

- Does not extinguish the criminal liability of the offender because the offense is committed against the State.

Definition of Final Judgment

- Judgment beyond recall.
- As long as the judgment has not become executory, it cannot be truthfully said that the defendant is definitely guilty of the felony.
- Judgment also becomes final:
  - After the lapse of the 15-day period of perfecting appeal.
  - When the sentence is partially or fully served.
  - When the defendant expressly waives, in writing, his right to appeal.

SERVICE OF SENTENCE

Criminal liability is extinguished when:

- The term of imprisonment has been served.
- The fines have been paid.

AMNESTY

An amnesty is a political declaration that the offense no longer exists. It is an act of both the legislative and executive branches of the government that completely extinguishes both the penalty and all other effects.

On Penalty and All Its Effects

- Act of grace, relieves the offender not only from suffering the penalty but obliterates the effects of the conviction as if the act were not criminal.
- Does not include any crime not covered by the proclamation itself. The latter must specify the crimes to which amnesty is extended.
- While it wipes out all traces and vestiges of the crime, it does not extinguish civil liability

PARDON

- This is an exclusive act of the executive branch which requires no reason for pardoning the recipient and, unless the Supreme Court determines grave abuse of discretion, it is unreviewable.
- Delivery is an indispensable requisite. Until accepted, all that may have been done is a matter of intended favor and may be cancelled.

2 Kinds of Pardon

1. Absolute
2. Conditional

People who may give Pardons

1. By the offended party but it does not extinguish criminal liability.
2. By The President
   a. Private act of the President and must be proved by the accused.
   b. Must be done after final judgment.
   c. Does not extend to cases of impeachment.
   d. Absolute pardon by the President restores all civil rights, except:
      i. Right to suffrage
      ii. Right to hold public office

   These two rights must be specifically granted by the pardon of the President.

Pardon By	Offended Party	President
General Rule	Can't pardon, except in Articles 266-C and 344.	Any crime, including private crimes
When	Before an institution of criminal action	After the final judgment
Civil Liability	Doesn't extinguish but can be waived by offended part	Doesn't extinguish

Difference of Amnesty and Pardon

AMNESTY	PARDON
Does not extinguish civil liability	
Retroacts *As if it never happened*	Prospective *Relieved the offender from consequences*
May be granted before or after criminal prosecution May be granted after conviction	Granted after conviction
A blanket pardon to classes or persons guilty of political offenses	Includes any crime, and exercised individually by the President
Makes an ex-convict no longer a recidivist as it obliterates the crime	Does not alter the fact that the accused is a recidivist as it only extinguishes the personal effects
Needs concurrence of Congress	No concurrence of Congress
Public act → courts should take judicial notice	Private act → must be proved by the person pardoned

MARRIAGE OF THE OFFENDED WOMAN

- Marriage of the offended woman with the offender after rape, seduction, abduction, acts of lasciviousness (Article 344) must be contracted in good faith, and not as a means to avoid criminal liability (devoid of legal effects).
- Pardoned by the woman.
- Rape: felony against persons and is no longer a felony against chastity.
  - Personal extinction
  - If more than one rapists, others are not affected.
- Does not require intervention by complainants.
  - State can pursue if offended party does not file charges.

PRESCRIPTION

Article 90. *Prescription of crime*. - Crimes punishable by death, reclusion perpetua or reclusion temporal shall prescribe in twenty years. Crimes punishable by other afflictive penalties shall prescribe in fifteen years. Those punishable by a correctional penalty shall prescribe in ten years; with the exception of those punishable by arresto mayor, which shall prescribe in five years. The crime of libel or other similar offenses shall prescribe in one year. The crime of oral defamation and slander by deed shall prescribe in six months. Light offenses prescribe in two months. When the penalty fixed by law is a compound one, the highest penalty shall be made the basis of the application of the rules contained in the first, second and third paragraphs of this article. (As amended by RA 4661, approved June 19, 1966).	**Article 92**. *When and how penalties prescribe.* - The penalties imposed by final sentence prescribe as follows: 1. Death and reclusion perpetua, in twenty years; 2. Other afflictive penalties, in fifteen years; 3. Correctional penalties, in ten years; with the exception of the penalty of arresto mayor, which prescribes in five years; 4. Light penalties, in one year.

General Points

- The State loses its right to prosecute.
- In computing the period of prescription, the first day is to be excluded and the last day included
  - A month is computed as a regular 30-day month. The running period of prescription will commence the day following the day on which the crime was committed.
  - When the last day of prescription falls on a sunday or legal holiday.
    - The Information can no longer be filed on the next day as the crime has already prescribed.
  - When the penalty is a compound one, the highest penalty is the basis.
    - When the fine is an alternative penalty higher than the other penalty which is by imprisonment – prescription of the crime is based on the fine.
- The accused cannot be convicted of an offense lesser than that charged if the lesser offense had already prescribed at the time the information was filed.

Definitions

- Prescription of crime → forfeiture or loss of the right of the State to *prosecute* the offender after the lapse of a certain time.
    - Period of when the convict must be brought to jail.
    - If the convict goes to a foreign country that the PH does not have an extradition treaty with, the prescription stops.
    - If the convict commits another crime, prescription stops.
    - If the convict successfully hides, the liability is extinguished.
- Prescription of penalty → loss of forfeiture of the right of the Government to *execute* the final sentence after lapse of time.
    - Period to carry out the sentence.
    - Can stop and run again.
    - Discovered through the elements of a crime.
    - Starts from the filing of complaint or Information.
        - Prescription runs again without conviction.
    - When the wrong people are convicted, they are acquitted and the prescription runs.

Conditions

1. There must be final judgment.
2. The period of time prescribed by law for its enforcement has elapsed.

Defense Of Prescription May Be Raised During The Trial Or During The Appeal

- If the accused failed to move to quash before pleading, he is deemed to have waived all objections, and thus cannot apply for the defense of prescription (which under Article 89 extinguishes criminal liability).
- Prescription although not invoked during trial may be invoked during appeal.
- Prescription does not divest court of jurisdiction because it is a ground for acquittal of the accused.
    - When there is a plea of prescription by the defense and the same appears from the allegation of the information or is established, the court must have jurisdiction holding the action to have prescribed and acquit the accused.

COMPUTATION OF PRESCRIPTION

Article 91. *Computation of prescription of offenses*. - The period of prescription shall commence to run from the day on which the crime is discovered by the offended party, the authorities, or their agents, and shall be interrupted by the filing of the complaint or information, and shall commence to run again when such proceedings terminate without the accused being convicted or acquitted, or are unjustifiably stopped for any reason not imputable to him. The term of prescription shall not run when the offender is absent from the Philippine Archipelago.	**Article 93.** *Computation of the prescription of penalties.* - The period of prescription of penalties shall commence to run from the date when the culprit should evade the service of his sentence, and it shall be interrupted if the defendant should give himself up, be captured, should go to some foreign country with which this Government has no extradition treaty, or should commit another crime before the expiration of the period of prescription.

Points

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    - The period of prescription commences to run from the day on which the crime is discovered by the offended party, the authorities or their agents.
    - It is interrupted by the filing of the complaint or information.
    - It commences to run again when such proceedings terminate without the accused being convicted or acquitted or are unjustifiably stopped for any reason not imputable to him.
    - The term of prescription shall not run when the offender is absent from the Philippines.
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    - The period of prescription of penalties commences to run from the date when the culprit ended the service of his sentence.
    - It is interrupted if the convict:
        - Gives himself up
        - Be captured
        - Goes to a foreign country with which we have no extradition treaty
        - Commits another crime before the expiration of the period of the prescription
    - The period of prescription of penalties shall commence to run again when the convict escapes again, after having been captured and returned to prison.

When the Prescription Begins to Run

1. Commences From Commission Or Discovery Of The Crime
    a. The contrary view would be dangerous as the successful concealment of an offense during the period fixed for its prescription would be the very means by which the offender may escape punishment.
    b. It is discovery of crime, not discovery of the offender.
        i. The fact that culprit is unknown will not prevent the period of prescription from commencing to run.
        ii. It is not necessary that the accused be arrested.
2. The Crime if Discovered By
    a. The offended party
    b. The authority
    c. Their agents
3. Period Of Prescription Of Continuing Crime Never Runs
    a. General Rule: Prescription period for continuing crime cannot begin to run because there could be no termination of continuity and the crime does not end.
    b. Exception: If the information alleged that the continuing crime only existed until a specific time (e.g. dikes were an obstruction until a specific date only), then the crime ended on

that moment and prescription can be computed.

4. Term Of Prescription Does Not Run When The Offender Is Absent From The Philippines

Interruption Of Running Of Prescriptive Period: Filing Of Complaint

- Institution of criminal action shall interrupt the period of prescription of the offense charged unless otherwise provided in special laws.
- The complaint or information that will interrupt the period of prescription must be the proper information or complain corresponding to the offense.
- The filing of information containing elements for trespass to dwelling cannot be said to interrupt the prescription of another case containing information concerning unjust vexation

Effect of filing amended complaint or information upon period of prescription

- If it is merely a correction of a defect, the date of the original complaint or information should be considered.

When Running Of Prescriptive Period Resumes

1. "Proceedings Terminate Without The Accused Being Convicted Or Acquitted"
    a. As such, the period of prescription commenced to run again.
    b. Termination of a criminal case contemplated in Article 91 on prescription of crimes refers to a termination that is final as to amount to jeopardy that would bar a subsequence prosecution
2. "Or Are Unjustifiably Stopped For Any Reason Not Imputable To Him"
    a. If the proceedings are stopped for a reason imputable to the accused, the period of prescription does not commence to run again.

Prescription of Crime	Prescription of Penalty
Loss of right to prosecute	Loss of right to enforce the penalty
Prosecution has yet to begin	Trial on the merits already concluded
Convict may not have been under custody	Convict already was in custody
Begins when corpus delicti discovered	Begins when crime of evasion of service of sentence is done

EFFECT

Article 96. *Effect of commutation of sentence*. - The commutation of the original sentence for another of a different length and nature shall have the legal effect of substituting the latter in the place of the former.

B. Partial Extinction

Article 94. *Partial Extinction of criminal liability*. - Criminal liability is extinguished partially:

1. By conditional pardon;

2. By commutation of the sentence; and

3. For good conduct allowances which the culprit may earn while he is serving his sentence.

Article 95. Obligation incurred by person granted conditional pardon. - Any person who has been granted conditional pardon shall incur the obligation of complying strictly with the conditions imposed therein otherwise, his non-compliance with any of the conditions specified shall result in the revocation of the pardon and the provisions of Article 159 shall be applied to him.

1. **Conditional Pardon**
    a. Nature of conditional pardon
        i. Conditional pardon delivered and accepted is considered a contract between the sovereign power of the executive and the convict that the executive will release the convict upon compliance with the condition.
        ii. Must be given after final judgment and must be accepted by accused.
        iii. Does not extinguish civil liability.
2. **Commutation of sentence**
    a. Change of the decision of the court made by the Chief Executive by reducing the degree of the penalty inflicted upon the convict OR by decreasing the length of the imprisonment or the amount of the fine.
3. **Good Conduct Allowances**

Article 97. *Allowance for good conduct*. - The good conduct of any prisoner in any	**Article 98.** *Special time allowance for loyalty*. - A deduction of one-fifth of the	**Article 99.** *Who grants time allowances*. - Whenever lawfully justified, the Director of

penal institution shall entitle him to the following deductions from the period of his sentence: 1. During the first two years of his imprisonment, he shall be allowed a deduction of five days for each month of good behavior; 2. During the third to the fifth year, inclusive, of his imprisonment, he shall be allowed a deduction of eight days for each month of good behavior; 3. During the following years until the tenth year, inclusive, of his imprisonment, he shall be allowed a deduction of ten days for each month of good behavior; and 4. During the eleventh and successive years of his imprisonment, he shall be allowed a deduction of fifteen days for each month of good behaviour.	period of his sentence shall be granted to any prisoner who, having evaded the service of his sentence under the circumstances mentioned in Article 58 of this Code, gives himself up to the authorities within 48 hours following the issuance of a proclamation announcing the passing away of the calamity or catastrophe to in said article.	Prisons shall grant allowances for good conduct. Such allowances once granted shall not be revoked.

Points

- Allowances for good conduct are deductions from the term of sentence for good behavior. (Article 97)
- Different from that provided in Article 29 which is an extraordinary reduction of full time or four-fifths of the preventive imprisonment from the term of the sentence.
- A prisoner is also entitled to a special time allowance for loyalty. (Article 98) A deduction of 1/5 of the period of his sentence is granted to a loyal prisoner. (See Article 158).
    - It is a deduction of 1/5 of the period of the sentence of a prisoner who, having evaded the service of his sentence during the calamity or catastrophe mentioned in Article 158, gives himself up to the authorities within 48 hours following the issuance of the proclamation by the President announcing the passing away of the calamity or catastrophe.
    - While this article mentions “the period of his sentence,” it should be understood that the convict is to be credited for loyalty with 1/5 of his original sentence -- not of the unexpired portion of his sentence.
- Authority to grant time allowance is exclusively vested in the Director
    - Allowance for good conduct is not an automatic right, for the Director or Prisons must grant it.
    - Allowances for good conduct once granted by the Director of Prisons cannot be revoked by him.

OBLIGATION

Article 95. Obligation incurred by person granted conditional pardon. - Any person who has been granted conditional pardon shall incur the obligation of complying strictly with the conditions imposed therein otherwise, his non-compliance with any of the conditions specified shall result in the revocation of the pardon and the provisions of Article 159 shall be applied to him.

Points

1. He must comply strictly with the conditions imposed in the pardon.
2. Failure to comply with the conditions shall result in the revocation of the pardon
3. No allowance for the good conduct while prisoner is released under conditional pardon
    a. The good conduct time allowance is given in consideration of the good conduct observed by the prisoner while serving his sentence.

EFFECT

Article 96. *Effect of commutation of sentence*. - The commutation of the original sentence for another of a different length and nature shall have the legal effect of substituting the latter in the place of the former.

C. Civil Liability Arising from Felony

a. General Rule

REVISED PENAL CODE

Article 100. *Civil liability of a person guilty of felony*. - Every person criminally liable for a felony is also civilly liable.

- When a person is found criminally liable, there is always a civil liability, always a private offender
  - Some special laws have no civil liability

CIVIL CODE

Article 20. Every person who, contrary to law, wilfully or negligently causes damage to another, shall indemnify the latter for the same.

Article 1161. Civil obligations arising from criminal offenses shall be governed by the penal laws, subject to the provisions of article 2177, and of the pertinent provisions of Chapter 2, Preliminary Title, on Human Relations, and of Title XVIII of this Book, regulating damages.

Article 2176. Whoever by act or omission causes damage to another, there being fault or negligence, is obliged to pay for the damage done. Such fault or negligence, if there is no pre-existing contractual relation between the parties, is called a quasi-delict and is governed by the provisions of this Chapter.

Article 2177. Responsibility for fault or negligence under the preceding article is entirely separate and distinct from the civil liability arising from negligence under the Penal Code. But the plaintiff cannot recover damages twice for the same act or omission of the defendant.

RPC & CIVIL CODE OFFENSES ARE SEPARATE

- **Art. 2176, CC**: The civil liability arising from negligence under the RPC is entirely separate and distinct from the responsibility for fault or negligence called a *quasi delict*
- **Art. 217, CC**: But the party claiming payment for the damage done cannot recover twice for the same act or omission of the defendant
  - Example: A was convicted of serious physical injuries through negligence under the RP, and B, the injured party, was indemnified in the criminal case for the damages caused to him. B cannot recover damages in a separate civil action for the same act or omission of A

BASIS OF CIVIL LIABILITY: DUAL CHARACTER OF CRIME

- The dual character of crime is the principle behind the idea that a person who is criminally liable is also civilly liable
  1. **An Offense Against the State** — because of the disturbance of the social order
  2. **An Offense Against a Private Person** — private person injured by the crime (unless proven that it involves the crime of treason, espionage, rebellion, contempt, etc. where no private person is injured)

2000 RULES ON CRIMINAL PROCEDURE, RULE 111

Section 1. *Institution of criminal and civil actions.*—
(a) When a criminal action is instituted, the civil action for the recovery of civil liability arising from the offense charged shall be deemed instituted with the criminal action unless the offended party waives the civil action, reserves the right to institute it separately or institutes the civil action prior to the criminal action. The reservation of the right to institute separately the civil action shall be made before the prosecution starts presenting its evidence and under circumstances affording the offended party a reasonable opportunity to make such reservation. When the offended party seeks to enforce civil liability against the accused by way of moral, nominal, temperate, or exemplary damages without specifying the amount thereof in the complaint or information, the filing fees therefor shall constitute a first lien on the judgment awarding such damages. Where the amount of damages, other than actual, is specified in the complaint or information, the corresponding filing fees shall be paid by the offended party upon the filing thereof in court. Except as otherwise provided in these Rules, no filing fees shall be required for actual damages. No counterclaim, cross-claim or third-party complaint may be filed by the accused in the criminal case, but any cause of action which could have been the subject thereof may be litigated in a separate civil action.
(b) The criminal action for violation of Batas Pambansa Blg. 22 shall be deemed to include the corresponding civil action. No reservation to file such civil action separately shall be allowed. Upon filing of the aforesaid joint criminal and civil actions, the offended party shall pay in full the filing fees based on the amount of the check involved, which shall be considered as the actual damages claimed. Where the complaint or information also seeks to recover liquidated, moral, nominal, temperate or exemplary damages, the offended party shall pay additional filing fees based on the amounts alleged therein. If the amounts are not so alleged but any of these damages are subsequently awarded by the court, the filing fees based on the amount awarded shall constitute a first lien on the judgment. Where the civil action has been filed separately and trial thereof has not yet commenced, it may be consolidated with the criminal action upon application with the court trying the latter case. If the application is granted, the trial of both actions shall proceed in accordance with section 2 of this Rule governing consolidation of the civil and criminal actions.

Section 2. When separate civil action is suspended.—After the criminal action has been commenced, the separate civil action arising therefrom cannot be instituted until final judgment has been entered in the criminal action. If the criminal action is filed after the said civil action has already been instituted, the latter shall be suspended in whatever stage it may be found before judgment on the merits. The

suspension shall last until final judgment is rendered in the criminal action. Nevertheless, before judgment on the merits is rendered in the civil action, the same may, upon motion of the offended party, be consolidated with the criminal action in the court trying the criminal action. In case of consolidation, the evidence already adduced in the civil action shall be deemed automatically reproduced in the criminal action without prejudice to the right of the prosecution to cross-examine the witnesses presented by the offended party in the criminal case and of the parties to present additional evidence. The consolidated criminal and civil actions shall be tried and decided jointly. During the pendency of the criminal action, the running of the period of prescription of the civil action which cannot be instituted separately or whose proceeding has been suspended shall be tolled. (n) The extinction of the penal action does not carry with it extinction of the civil action. However, the civil action based on delict shall be deemed extinguished if there is a finding in a final judgment in the criminal action that the act or omission from which the civil liability may arise did not exist.

Section 3. When civil action may proceed independently. —In the cases provided in Articles 32, 33, 34 and 2176 of the Civil Code of the Philippines, the independent civil action may be brought by the offended party. It shall proceed independently of the criminal action and shall require only a preponderance of evidence. In no case, however, may the offended party recover damages twice for the same act or omission charged in the criminal action.

Section 4. Effect of death on civil actions. —The death of the accused after arraignment and during the pendency of the criminal action shall extinguish the civil liability arising from the delict. However, the independent civil action instituted under section 3 of this Rule or which thereafter is instituted to enforce liability arising from other sources of obligation may be continued against the estate or legal representative of the accused after proper substitution or against said estate, as the case may be. The heirs of the accused may be substituted for the deceased without requiring the appointment of an executor or administrator and the court may appoint a guardian ad litem for the minor heirs. The court shall forthwith order said legal representative or representatives to appear and be substituted within a period of thirty (30) days from notice. A final judgment entered in favor of the offended party shall be enforced in the manner especially provided in these rules for prosecuting claims against the estate of the deceased. If the accused dies before arraignment, the case shall be dismissed without prejudice to any civil action the offended party may file against the estate of the deceased. (n) Section 5. Judgment in civil action not a bar.—A final judgment rendered in a civil action absolving the defendant from civil liability is not a bar to a criminal action against the defendant for the same act or omission subject of the civil action.

Section 6. Suspension by reason of prejudicial question. — A petition for suspension of the criminal action based upon the pendency of a prejudicial question in a civil action may be filed in the office of the prosecutor or the court conducting the preliminary investigation. When the criminal action has been filed in court for trial, the petition to suspend shall be filed in the same criminal action at any time before the prosecution rests. (6a) Section 7. Elements of prejudicial question. — The elements of a prejudicial question are: (a) the previously instituted civil action involves an issue similar or intimately related to the issue raised in the subsequent criminal action, and (b) the resolution of such issue determines whether or not the criminal action may proceed.

b. Civil Liability and Persons Civilly Liable

GENERAL PROVISIONS

Article 104. *What is included in civil liability.* - The civil liability established in Articles 100, 101, 102, and 103 of this Code includes:

1. Restitution;

2. Reparation of the damage caused;

3. Indemnification for consequential damages.

Article 109. Share of each person civilly liable. - If there are two or more persons civilly liable for a felony, the courts shall determine the amount for which each must respond.

Article 110. Several and subsidiary liability of principals, accomplices and accessories of a felony; Preference in payment. - Notwithstanding the provisions of the next preceding article, the principals, accomplices, and accessories, each within their respective class, shall be liable severally (in solidum) among themselves for their quotas, and subsidiaries for those of the other persons liable.

The subsidiary liability shall be enforced, first against the property of the principals; next, against that of the accomplices, and, lastly, against that of the accessories.

Whenever the liability in solidum or the subsidiary liability has been enforced, the person by whom payment has been made shall have a right of action against the others for the amount of their respective shares.

RESTITUTION

Article 105. *Restitution; How made.* - The restitution of the thing itself must be made whenever possible, with allowance for any deterioration, or diminution of value as determined by the court.

The thing itself shall be restored, even though it be found in the possession of a third person who has acquired it by lawful means, saving to the latter his action against the proper person, who may be liable to him.

This provision is not applicable in cases in which the thing has been acquired by the third person in the manner and under the requirements which, by law, bar an action for its recovery.

Article 111. Obligation to make restitution in certain cases. - Any person who has participated gratuitously in the proceeds of a felony shall be bound to make restitution in an amount equivalent to the extent of such participation.

RESTITUTION

- Offended person must be restored to what they were before the felony took place
- Ex: Robbery - object is returned; if object cannot be returned → reparation
- ART. 111: The convict cannot give the offended party a similar thing of the same amount, kind, species, and quality

ON DETERIORATION OR DIMINUTION OF VALUE

- If the property stolen while in the possession of the thief suffers deterioration due to his fault:
  - The court will assess the amount of deterioration
  - The culprit will be ordered to pay the amount representing the deterioration

GENERAL RULE: The owner of the property illegally taken by the offender can recover it from whomsoever is in possession thereof

- Exception: provision is not applicable in cases in which the thing has been acquired by the third person in the manner and under the requirements which, by law, bar an action for its recovery.

REPARATION

Article 106. *Reparation; How made*. - The court shall determine the amount of damage, taking into consideration the price of the thing, whenever possible, and its special sentimental value to the injured party, and reparation shall be made accordingly.

REPARATION

- Assigning a monetary value to the injury; considers sentimental value, lost income/opportunity
- Ex: Robbery - object cannot be returned, so offender pays the price of the object

TWO CLASSES OF INJURIES

1. **Social Injury**
   - Produced by disturbance and alarm which are the outcome of the offense
   - Repaired through the imposition of the corresponding penalty
2. **Personal Injury**
   - Caused to the victim of the crime who may have suffered damage to his person, property, honor or (her) chastity
   - Repaired through indemnity (civil in nature)

INDEMNIFICATION

Article 107. *Indemnification; What is included*. - Indemnification for consequential damages shall include not only those caused the injured party, but also those suffered by his family or by a third person by reason of the crime.

INDEMNITY v. REPARATION

- **Indemnity**: usually granted to the victims of crimes against persons
- **Reparation**: usually granted to the victims of crimes against property

INDEMNIFICATION

- Paying for the money that a person could have earned
- Also considers moral damages, such as grief, loss, etc.
- Ex: The offender killed the breadwinner of the family. The offender must now pay for the money the deceased could have earned
- Ex: A severely injured B, causing him to be hospitalized. Indemnity for medical services still unpaid may still be recovered

DAMAGES RECOVERABLE IN CASES OF DEATH

1. Civil liability ex delicto
2. Loss of earning capacity of the deceased
3. Support in favor of a person to whom the deceased was obliged to give, such person not being an heir of the deceased
4. Moral damages for mental anguish in favor of spouse, descendants, and ascendants of the deceased
5. Exemplary damages (corrective damages) in certain cases

MURDER OR HOMICIDE

- Civil Indemnity and moral damages are **mandatory** without need of allegation of proof other than the death of a victim in murder and homicide

DAMAGES FOR RAPE

- Civil indemnity are automatically awarded upon proof of the commission of the crime by the offender
- Moral damages automatically awarded without need for further proof

MORAL DAMAGES may be recovered in the following and analogous cases

1. Criminal offense resulting in physical injuries
2. Seduction, abduction, rape, and other lascivious acts
3. Adultery or concubinage
4. Illegal or arbitrary detention or arrest
5. Illegal search
6. Libel, slander, or any other form of defamation
7. Malicious prosecution

OBLIGATION

Article 108. *Obligation to make restoration, reparation for damages, or indemnification for consequential damages and actions to demand the same; Upon whom it devolves.* - The obligation to make restoration or reparation for damages and indemnification for consequential damages devolves upon the heirs of the person liable.

The action to demand restoration, reparation, and indemnification likewise descends to the heirs of the person injured.

- The heirs of the person liable has no obligation if restoration is not possible and the deceased left no property
- Civil liability is possible only when the offender dies after final judgment
    - If offender dies before final judgment, the action for restitution, reparation, or indemnification must be dismissed

c. Special Cases

Article 101. *Rules regarding civil liability in certain cases.* - The exemption from criminal liability established in subdivisions 1, 2, 3, 5 and 6 of Article 12 and in subdivision 4 of Article 11 of this Code does not include exemption from civil liability, which shall be enforced subject to the following rules:

First. In cases of subdivisions 1, 2, and 3 of Article 12, the civil liability for acts committed by an imbecile or insane person, and by a person under nine years of age, or by one over nine but under fifteen years of age, who has acted without discernment, shall devolve upon those having such person under their legal authority or control, unless it appears that there was no fault or negligence on their part.

Should there be no person having such insane, imbecile or minor under his authority, legal guardianship or control, or if such person be insolvent, said insane, imbecile, or minor shall respond with their own property, excepting property exempt from execution, in accordance with the civil law.

Second. In cases falling within subdivision 4 of Article 11, the persons for whose benefit the harm has been prevented shall be civilly liable in proportion to the benefit which they may have received.

The courts shall determine, in sound discretion, the proportionate amount for which each one shall be liable.

When the respective shares cannot be equitably determined, even approximately, or when the liability also attaches to the Government, or to the majority of the inhabitants of the town, and, in all events, whenever the damages have been caused with the consent of the authorities or their agents, indemnification shall be made in the manner prescribed by special laws or regulations.

Third. In cases falling within subdivisions 5 and 6 of Article 12, the persons using violence or causing the fears shall be primarily liable and secondarily, or, if there be no such persons, those doing the act shall be liable, saving always to the latter that part of their property exempt from execution.

(1) Insanity, Imbecility, Minority;

- If guardian is at fault or negligent: The civil liability for acts committed by an imbecile or insane or minor exempt from criminal liability shall devolve upon the persons having legal authority or control over them.
- If guardian is not at fault nor negligent: The imbecile or insane or minor shall respond to the civil liability with their own property and shall not be exempt from execution.

(2) State of Necessity;

- There is no civil liability in justifying circumstances

(3)Irresistible Force, Uncontrollable Fear of Greater or Equal Injury

- The persons using violence or causing fear are primarily liable
- If there be no such persons, those doing the act shall be liable secondarily

d. Inn keepers and similar persons

Article 102. *Subsidiary civil liability of innkeepers, tavernkeepers and proprietors of establishments.* - In default of the persons criminally liable, innkeepers, tavernkeepers, and any other persons or corporations shall be civilly liable for crimes committed in their establishments, in all cases where a violation of municipal ordinances or some general or special police regulation shall have been committed by them or their employees.

Innkeepers are also subsidiarily liable for the restitution of goods taken by robbery or theft within their houses from guests lodging therein, or for the payment of the value thereof, provided that such guests shall have notified in advance the innkeeper himself, or the person representing him, of the deposit of such goods within the inn; and shall furthermore have followed the directions which such innkeeper or his representative may have given them with respect to the care and vigilance over such goods. No liability shall attach in case of robbery with violence against or intimidation of persons unless committed by the innkeeper's employees.

SUBSIDIARY LIABILITY (Article 101)

- Liability that does not pertain to the accused themselves but people who own places where crimes occur
- This is used as a deterrent for criminality
- Ex: A pub owner can be held subsidiarily liable if a crime occurs in his pub. This is meant to deter him from allowing criminal activity in his place of business.

ELEMENTS OF PAR 1, ART. 102

1. The innkeepers, tavernkeepers and proprietors of establishments, or his employee committed a violation of municipal ordinance or some general or special police regulation
2. A crime is committed in such inn, tavern, or establishment
3. The person criminally liable is insolvent (unable to pay debts owed)

ELEMENTS OF PAR. 2, ART. 102

1. The guests notified in advance the innkeeper or the person representing him, of the deposit of such goods within the inn or house
2. The guests followed the directions of the innkeeper or the person representing him with respect to the care and vigilance over such goods
3. Such goods of the guests lodging therein were taken by robbery with force upon things or theft committed within the inn or house.

e. Subsidiary Liability of Other Persons

Article 103. *Subsidiary civil liability of other persons.* - The subsidiary liability established in the next preceding article shall also apply to employers, teachers, persons, and corporations engaged in any kind of industry for felonies committed by their servants, pupils, workmen, apprentices, or employees in the discharge of their duties.

ELEMENTS OF PAR 1, ART. 103

1. The employer, teacher, person, or corporation is engaged in any kind of industry
2. Any of the servants, pupils, workmen, apprentices, or employees commits a felony while in the discharge of their duties.
3. The said employee is insolvent and has not satisfied his civil liability

NOT COVERED BY ART. 103

1. **Hospitals**
   - A hospital is not engaged in industry, hence not subsidiarily liable for acts of nurses.
   - Nurses are not acting as servants of hospitals; they are employed to carry out the orders of the physicians
2. **Private persons without business or industry**
   - The car driven by S was bumped by the car of V driven by V's chauffeur. The chauffeur who was found guilty was insolvent
   - V is not subsidiarily liable because he has no business or industry and uses his car for private purposes

D. Extinction of Civil Liability

Article 112. *Extinction of civil liability.* - Civil liability established in Articles 100, 101, 102, and 103 of this Code shall be extinguished in the same manner as obligations, in accordance with the provisions of the Civil Law.

Civil liability is extinguished:

- By payment or performance
- By the loss of the thing due
- By the condonation or remission of the debt
- By the confusion or merger of the rights of creditor and debtor
- By compensation
- By novation
- Annulment, recission, fulfillment of a resolutory condition and prescription (Article 1231, Civil Code).
- Prescription (for filing a cause of action)
- Subsequent agreement between the accused and the offended party

Effects of Condonation of Civil Liability

- Express condonation by the offended party has the effect of waiving civil liability with regard to the interest of the injured party.
- Civil liability may arise from:
  - Crime (RPC)
  - Breach of contract/culpa contractual (CC)
  - Tortious act/culpa aquilana (CC)

On Lost Stolen Property By Reason of Force Majeure

- Where it appears that a person has been deprived of the possession of his property, the malefactor is responsible to the owner either for the return of the property or for the payment of its value if it cannot be returned.

OBLIGATION

Article 113. *Obligation to satisfy civil liability.* - Except in case of extinction of his civil liability as provided in the next preceding article the offender shall continue to be obliged to satisfy the civil liability resulting from the crime committed by him, notwithstanding the fact that he has served his sentence consisting of deprivation of liberty or other rights, or has not been required to serve the same by reason of amnesty, pardon, commutation of sentence or any other reason.

Civil Code, Article 1231. Obligations are extinguished:

(1) By payment or performance;

(2) By the loss of the thing due;

(3) By the condonation or remission of the debt;

(4) By the confusion or merger of the rights of creditor and debtor;

(5) By compensation;

(6) By novation.

Other causes of extinguishment of obligations, such as annulment, rescission, fulfillment of a resolutory condition, and prescription, are governed elsewhere in this Code.

Civil Liability is not extinguished notwithstanding the following:

1. Service of the sentence
2. Amnesty
3. Pardon
4. Commutation
5. Application for probation

SATISFACTION OF CIVIL LIABILITIES WHEN MORE THAN ONE ARE ACCUSED AND THERE ARE DIFFERENT CLASSES OF ACCUSED.

Principals, accomplices, accessories.

Article 110. *Several and subsidiary liability of principals, accomplices and accessories of a felony; Preference in payment*. - Notwithstanding the provisions of the next preceding article, the principals, accomplices, and accessories, each within their respective class, shall be liable severally (in solidum) among themselves for their quotas, and subsidiaries for those of the other persons liable.

The subsidiary liability shall be enforced, first against the property of the principals; next, against that of the accomplices, and, lastly, against that of the accessories.

Whenever the liability in solidum or the subsidiary liability has been enforced, the person by whom payment has been made shall have a right of action against the others for the amount of their respective shares.

Each one would be liable; however, the penalty differs based on the degree of participation.

- Anyone can be made liable subject to the contribution of others for the whole obligation.
- P1 → P2 & P3 (asks for contributions)
    - P1 is liable wholly for the whole amount.

FOR SUBSIDIARY LIABILITIES

- When no one can pay in the class, liability goes to the principals
- Rationale: to make civil liability meaningful
- Liability is as follows: accessory → accomplice → principal
- Principals can be made to brunt everything, *"rightfully so."*